GNAMMA RESEARCH

الضَّرُورِيُّ فِي أُصُولِ الْفِقْهِ

Historical Lexicon

A companion to Ibn Rushd's
Al-Ḍarūrī fī Uṣūl al-Fiqh

Complete selected historical dictionary articles

153 term dossiers · 157 full articles · 8 dictionaries
Arabic and full working English translations
13 source notes · source records · headword-relation audit

20 October 2026 · Structure and contents revision

Term directory · Scholarly edition ↗

ARABIC AND ENGLISH REFERENCE COMPANION

Historical dictionary articles

Complete selected entries · 153 glossary terms · 157 source articles

This companion reproduces the complete selected dictionary articles from the scholarly edition. Each source article is reproduced with a full working English translation. Arabic is on the physical left; English is on the right. Shared articles are printed once and linked from each relevant term.

What “complete” means. It means the whole selected headword or root article in the identified digital witness—not all articles in every dictionary. The links distinguish exact headwords, derived forms, internal discussions and related lexical evidence. A root article is not mislabelled as a technical definition of a compound. All 153 glossary terms have a dossier; that is not a claim of 153 exact-headword matches.

Chronology. E = earlier than Ibn Rushd’s 552 AH composition; L = later historical witness. Later evidence illuminates terminology but does not prove Ibn Rushd’s usage. Source transcriptions and the new translations are not independently manuscript-collated. Unresolved readings are identified beside the affected articles.

Navigation. Select a term below. Its section references open the corresponding page of the online scholarly PDF. The scholarly edition also contains the analytical subject index and R/BA concordance. R and BA refer to printed editorial numbering systems, not two manuscripts.

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1. ibāḥa إِبَاحَة

In the Darūrī: Permission: a legal allowing of alternatives, distinguished from obligation and from mere absence of an established prohibition.

Text: §16 · §17 · §27 · §203

ibāḥa · الإباحة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 7. Source ↗

هي الإذن بإتيان الفعل كيف شاء الفاعل. — Permission to perform the act as the agent wishes.

↑ Term directory · Sources · Headword relations

2. ibdāl / tabdīl إِبْدَال / تَبْدِيل

In the Darūrī: Substitution: expression of a universal through a particular or vice versa, central to Ibn Rushd's account of semantic extension.

Text: §154 · §165 · §191 · §212 · §221

ibdāl · الإبدال

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 5. Source ↗

هو أن يجعل حرف موضع حرف آخر لدفع الثقل. — Placing one letter in the position of another in order to remove phonetic difficulty.

Editorial note. This is a grammatical definition of ibdāl. It is not itself a definition of legal substitution, and it must not be equated with Ibn Rushd's technical use without an additional contextual argument.

↑ Term directory · Sources · Headword relations

3. ijāza إِجَازَة

In the Darūrī: Authorization to transmit, distinguished from hearing a reading, reading before the teacher, and receiving a written text.

Text: §100 · §103 · §104

munāwala · المناولة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1492. Source ↗

هي أن يعطيه كتاب سماعه بيده ويقول أجزت لك أن تروي عني هذا الكتاب ولا يكفي مجرد إعطاء الكتاب. — To hand someone the book of what one has heard and say, "I authorize you to transmit this book from me." Merely handing over the book is insufficient.

Editorial note. The ijāza cross-reference concerns the authorization expressly included in this munāwala article; it is not an independent ijāza entry.

ijāza · الإجازة

Attributed to Jalāl al-Dīn al-Suyūṭī [L] · *Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm* · entry 55. Source ↗

إذن الشيخ لمعين، أو غير معين في الرواية عنه. — A teacher's permission to a specified or unspecified person to transmit reports from him.

Editorial note. This is authorization to transmit, not permission in every legal sense.

↑ Term directory · Sources · Headword relations

4. ijtihād اجْتِهَاد

In the Darūrī: Independent juristic inquiry: exertion of competent judgement concerning a ruling not already determined by conclusive evidence.

Text: §231 · §236 · §237 · §250

ijtihād · الاجتهاد

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 9. Source ↗

في اللغة بذل الوسع، وفي الاصطلاح: استفراغ الفقيه الوسع ليحصل له ظن بحكم شرعي.

In ordinary language: exerting one’s capacity. Technically: the jurist’s exerting his capacity to the utmost so as to arrive at a probable judgement concerning a legal ruling.

بذل المجهود في طلب المقصود من جهة الاستدلال.

Exerting effort in seeking the intended object by way of inference.

↑ Term directory · Sources · Headword relations

5. ijzāʾ إِجْزَاء

In the Darūrī: Sufficiency or discharge: performance which fulfils the legally required act, including its relevant conditions.

Text: §23 · §56 · §204 · §205

j-z-ʾ · جزأ

al-Muṭarrizī [L] · *al-Mughrib fī tartīb al-Muʿrib* · root جزأ. Source ↗

جزأت الإبل بالرطب عن الماء واجتزأت إذا اكتفت، ومنه لم تجتزئ بتلك الحيضة. وأجزأني الشيء كفاني، وهذا يجزئ عن هذا أي يقضي أو ينوب عنه، ومنه البدنة تجزئ عن سبعة. وأجزأت عنك مجزأ فلان أي كفيت كفايته ونبت منابه، وله في هذا غناء وجزاء أي كفاية. وقول محمد الفارس أجزأ من الراجل أي أكفى.

Jazaʾat al-ibil bi-l-ruṭb ʿan al-māʾ and ijtazaʾat mean that camels found fresh fodder sufficient in place of water. Hence: “She did not count that menstruation as sufficient.” Ajzaʾanī al-shayʾ means that a thing sufficed for me; “this suffices in place of that” means that it discharges or substitutes for it. Hence: “A sacrificial camel suffices for seven people.” Ajzaʾtu ʿanka majzaʾa fulān means that I rendered the service that so-and-so would have rendered and took his place. “He has ghanāʾ and jazāʾ in this” means adequacy. Muḥammad’s statement that a horseman is ajzaʾ than a foot soldier means that he is more effective.

وتليين مثل هذه الهمزة شاذ على ما حكي عن علي بن عيسى أنه قال يقال هذا الأمر يجزئ عن هذا فيهمز ويلين. وعن الأزهري بعض الفقهاء يقول أجزى بمعنى قضى، وعلى ذلك قوله أجزى فيه الفرك أي الدلك والحك، وتقديره أجزأ الفرك عن الغسل أي ناب وأغنى، وأجزأك بمعنى كفاك على حذف المفعول. ومثله إذا صليت في السفينة قاعدا أجزأك على إضمار الفاعل لدلالة ما سبق عليه كأنه قيل أجزأك ما فعلت، ونظيره من كذب كان شرا له.

Softening a hamza of this kind is irregular. ʿAlī ibn ʿĪsā is reported to have said that one says, “This matter suffices in place of that,” either pronouncing the hamza or softening it. Al-Azharī reports that some jurists say ajzā in the sense of qaḍā, “discharged.” This explains the statement, “Rubbing sufficed in this,” meaning rubbing and scraping: its full construction is that rubbing sufficed instead of washing, taking its place and dispensing with it. Ajzaʾaka, meaning “it sufficed for you,” has its object omitted. Likewise, “When you pray sitting down in a ship, it suffices for you”: the subject is implicit, indicated by what precedes, as though one had said, “What you did suffices for you.” A comparable construction is, “Whoever lies—it is worse for him.”

وأما جزى عنه جزاء بمعنى قضى فهو بغير همز، ومنه ولا تجزي عن أحد بعدك أي لا تؤدي عنه ولا تقضي، ومنه الجزية لأنها تجزئ عن الذمي. وأما حديث ابن مسعود أنه اشترى من دهقان أرضا على أن يكفيه جزيتها فالمراد بها خراج الأرض على الاستعارة، والمعنى أنه شرط أن يؤدي عنه الخراج في السنة التي وقع فيها البيع. وقولهم صلاة مجزية إن كان من هذا فالصواب جازية وإلا فهي مجزئة بالهمزة أو تركه على ما ذكر آنفا.

As for jazā ʿanhu jazāʾan in the sense of “discharged on his behalf,” it has no hamza. Hence: “It will not suffice for anyone after you,” meaning that it neither performs nor discharges the duty on his behalf. From this comes jizya, since it discharges the protected non-Muslim’s obligation. In the report that Ibn Masʿūd bought land from a dihqān on condition that the seller take care of its jizya for him, the word figuratively means the land tax. The meaning is that he stipulated that the seller pay the land tax for him in the year of the sale. In the expression “a sufficient prayer” (ṣalāh mujziya), if the adjective derives from this form, the correct form is jāziya; otherwise it is mujziʾa, with the hamza pronounced or omitted as just explained.

Source notes

“A sacrificial camel suffices for seven people.”

Cf. Ṣaḥīḥ Muslim 1318a, Jābir’s report of seven persons sharing a camel at al-Ḥudaybiyya. The dictionary gives a condensed formulation.

Online witness: 1

“It will not suffice for anyone after you”

Ṣaḥīḥ al-Bukhārī 5557, al-Barāʾ’s report concerning Abū Burda’s young goat. The dictionary varies the negative particle.

Online witness: 1

“In the report that Ibn Masʿūd bought land from a dihqān on condition that the seller take care of its jizya for him”

Abū ʿUbayd, Kitāb al-Amwāl, ed. Muḥammad Khalīl Harrās, no. 199, p. 100. This is an athar concerning Ibn Masʿūd; Abū ʿUbayd discusses interpreting the transaction as a lease.

Online witness: 1

ijzāʾ · الإجزاء

Attributed to Jalāl al-Dīn al-Suyūṭī [L] · *Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm* · entry 97. Source ↗

هو الأداء الكافي لسقوط التعبدية، وقيل: سقوط القضاء.

Performance sufficient to discharge the obligation of worship; alternatively, the falling away of the requirement of make-up performance.

↑ Term directory · Sources · Headword relations

6. ijmāʿ إِجْمَاع

In the Darūrī: Consensus: agreement of those competent in the relevant inquiry. Mere majority, silence and unidentified Medinan practice are not equivalent to it.

Text: §130 · §133 · §134 · §137 · §138

ijmāʿ · الإجماع

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 9. Source ↗

في اللغة العزم والاتفاق، وفي الاصطلاح: اتفاق المجتهدين في أمة محمد -عليه الصلاة والسلام- في عصر على أمر ديني.

In ordinary language: resolve and agreement. Technically: the agreement, within an age, of the qualified jurists of Muḥammad’s community—peace and blessings be upon him—on a religious matter.

العزم التام على أمر من جماعة أهل الحل والعقد.

The complete resolve upon a matter of a group of those possessing authority to bind and loose.

↑ Term directory · Sources · Headword relations

7. adāʾ أَدَاء

In the Darūrī: Timely performance: discharging an act within its legally appointed time; distinguish repetition and make-up performance.

Text: §57 · §59

adāʾ · الأداء

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 14. Source ↗

هو تسليم العين الثابت في الذمة بالسبب الموجب، كالوقت للصلاة، والشهر للصوم، إلى من يستحق ذلك الواجب.

It is the delivery, to the one entitled to the obligation, of the very thing established as a liability by the obligating cause—for example, the appointed time in the case of prayer, or the month in the case of fasting.

عبارة عن إتيان عين الواجب في الوقت.

It consists in performing the very act that is obligatory within its appointed time.

↑ Term directory · Sources · Headword relations

8. idhn إِذْن

In the Darūrī: Permission or authorization; its context matters in reports about guardianship and in a teacher's authorization to transmit.

Text: §103 · §171

idhn · الإذن

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 15. Source ↗

في اللغة: الإعلام، وفي الشرع: فك الحجر وإطلاق التصرف لمن كان ممنوعا شرعا.

In ordinary language: making known. In revealed law: lifting an interdiction and allowing a person to transact who had been legally prevented from doing so.

↑ Term directory · Sources · Headword relations

9. irāda إِرَادَة

In the Darūrī: Will or volition. Its relation to desire, assent and intending obedience is discussed in the account of voluntary action.

Text: §43 · §44

irāda · الإرادة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 15. Source ↗

صفة توجب للحي حالا يقع منه الفعل على وجه دون وجه، وفي الحقيقة: هي ما لا يتعلق دائما إلا بالمعدوم، فإنها صفة تخصص أمرا لحصوله ووجوده، كما قال الله تعالى: {إنما أمره إذا أراد شيئا أن يقول له كن فيكون} .

An attribute that brings about, in a living being, a state in which an act proceeds from him in one manner rather than another. In its proper sense it is always directed only towards what is not yet existent, for it is an attribute that specifies something for realization and existence. As God, exalted is He, says: "His command, when He wills a thing, is only to say to it, 'Be,' and it is" [Q 36:82].

ميل يعقب اعتقاد النفع.

An inclination following a belief in benefit.

مطالبة القلب غذاء الروح من طيب النفس، وقيل: الإرادة حجب النفس عن مراداتها، والإقبال على أوامر الله تعالى والرضا، وقيل: الإرادة: جمرة من نار المحبة في القلب مقتضية لإجابة دواعي الحقيقة.

The heart's seeking nourishment for the spirit through the goodness of the soul. It has also been said that will means withholding the lower self from its own desires, turning towards God's commands, and being content; or that it is an ember of the fire of love within the heart, requiring one to answer the summons of reality.

↑ Term directory · Sources · Headword relations

10. istithnāʾ اسْتِثْنَاء

In the Darūrī: Exception: exclusion related to a statement's scope, with distinct problems of connection, reach and the genus excepted.

Text: §183 · §184 · §185 · §186 · §187 · §188

istithnāʾ · الاستثناء

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الاستثناء. Source ↗

إيراد لفظ يقتضي دفع بعض ما يوجبه عموم لفظ متقدم أو يقتضي رفع حكم اللفظ كما هو، فالأول نحو {قُلْ لا أَجِدُ فِي مَا أُوحِيَ إِلَيَّ} الآية والثاني نحو لأفعلن إن شاء الله تعالى.

Introducing an expression which entails excluding some of what the generality of a preceding expression would otherwise require, or which entails lifting the expression's ruling as it stands. The first is exemplified by 'Say: I find nothing in what has been revealed to me …' [Q 6:145]; the second by 'I will certainly do it, God willing.'

Editorial note. The source itself cites only the opening of Q 6:145; its "the verse" refers onwards to the exception in that verse. The abbreviated citation is the author's, not an omitted part of his dictionary article.

↑ Term directory · Sources · Headword relations

11. istiḥsān اسْتِحْسَان

In the Darūrī: Juristic preference. A judgement so named needs a recognized evidential warrant; its name does not confer authority.

Text: §146

istiḥsān · الاستحسان

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 82. Source ↗

في اللغة هو عد الشيء واعتقاده حسنا واصطلاحا هو اسم لدليل من الأدلة الأربعة يعارض القياس الجلي ويعمل به إذا كان أقوى منه سموه بذلك لأنه في الأغلب يكون أقوى من القياس الجلي فيكون قياسا مستحسنا قال الله تعالى فبشر عبادي الذين يستمعون القول يتبعون أحسنه الزمر 18.

وترك القياس والأخذ بما هو أرفق للناس.

In ordinary language: regarding a thing, and believing it to be, good. Technically: the name of a proof belonging to the four kinds of proof that opposes an evident analogy and is acted upon when it is stronger. They called it this because it is generally stronger than the evident analogy, and so is an analogy judged preferable. God, exalted is He, says: "Give good tidings to My servants who listen to speech and follow the best of it" [Q 39:17–18].

Also: abandoning analogy and adopting what is easier for people.

↑ Term directory · Sources · Headword relations

12. istidlāl اسْتِدْلَال

In the Darūrī: Inference or reasoning from an indication to what it establishes. It need not be a formal syllogism.

Text: §1 · §2 · §81 · §148

istidlāl · استدلال

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 87. Source ↗

تقرير الدليل لإثبات المدلول سواء كان ذلك من الأثر إلى المؤثر فيسمى استدلالا أنيا أو بالعكس ويسمى استدلالا لميا أو من أحد الأثرين إلى الآخر.

Setting out a proof to establish what it indicates, whether proceeding from an effect to its cause, in which case it is called a “that” inference; in the reverse direction, in which case it is called a “why” inference; or from one of two effects to the other.

↑ Term directory · Sources · Headword relations

13. istiṣḥāb اسْتِصْحَاب

In the Darūrī: Presumption of continuity: retaining an established judgement, subject to whether the relevant case or attribute has changed.

Text: §141 · §142

istiṣḥāb · الاستصحاب

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 89. Source ↗

عبارة عن إبقاء ما كان على ما كان عليه لانعدام المغير.

Maintaining what was in the state in which it was, because no changer is present.

وهو الحكم الذي يثبت في الزمان الثاني بناء على الزمان الأول.

It is a judgement established at a second time on the basis of the first time.

Editorial note. This article has its own headword and attribution. It is not printed as part of al-Rāghib’s barāʾa article or as an exact dictionary entry for barāʾa aṣliyya.

↑ Term directory · Sources · Headword relations

14. istiṣlāḥ اسْتِصْلَاح

In the Darūrī: Welfare-oriented reasoning. The Darūrī asks what makes a proposed benefit legally authoritative rather than merely attractive.

Text: §146 · §217

maṣlaḥa · المصلحة

Muḥammad ʿAlī al-Tahānawī [L] · *Kashshāf iṣṭilāḥāt al-funūn wa-l-ʿulūm* · vol. 2, p. 1559. Source ↗

هي ما يترتّب على الفعل وقد ذكر في لفظ الغاية في الناقص اليائي، وجمع المصلحة المصالح. والمصالح المرسلة عند الأصوليين هي الأوصاف التي تعرف علّيتها أي بدون شهادة الأصول بمجرّد الإخالة أي بمجرّد كونها مخيّلة أي موقعة في القلب خيال العلّية والصّحة فلم يشهد لها الشرع بالاعتبار ولا بالإبطال، وهي مقبولة عند الغزالي إذا كانت المصلحة ضرورية قطعية كلّية.

It is what results from an act; it has been discussed under ghāya in the section for roots whose final radical is yāʾ. The plural of maṣlaḥa is maṣāliḥ. Among the legal theorists, unrestricted interests (al-maṣāliḥ al-mursala) are attributes whose causal relevance is recognized—that is, without testimony from the established sources—merely through their appearing appropriate (ikhāla): merely through their suggesting, or producing in the mind an impression of, causal relevance and soundness. The revealed law has therefore testified neither to their recognition nor to their invalidation. Al-Ghazālī accepts them when the interest is necessary, certain and universal.

ثم قال الغزالي: وهذه أي المصلحة التي لم يشهد لها الشرع بالاعتبار ولا بالإبطال وإن سمّيناها مصلحة مرسلة، لكنها راجعة إلى الأصول الأربعة لأنّ مرجع المصلحة إلى حفظ مقاصد الشرع المعلومة بالكتاب والسّنّة والإجماع، فهي ليست بقياس إذ القياس له أصل معيّن.

Al-Ghazālī then said: this—that is, an interest to whose recognition or invalidation the revealed law has not testified—even though we call it an unrestricted interest, nevertheless goes back to the four sources. For interest ultimately consists in preserving the purposes of the revealed law that are known through the Book, the Sunna and consensus. It is not analogy, since analogy has a particular original case.

والمصالح الحاجية هي التي في محلّ الحاجة، والمصالح التحسينية هي التي لا تكون في محلّ الضرورة ولا الحاجة بل هي تقرير الناس على مكارم الأخلاق ومحاسن الشّيم، هكذا يستفاد من التوضيح والتلويح والچلبي ويجيء في لفظ المناسبة أيضا.

Interests pertaining to needs (al-maṣāliḥ al-ḥājiyya) are those arising where there is a need. Refining interests (al-maṣāliḥ al-taḥsīniyya) arise neither at the level of necessity nor at that of need; rather, they establish people in noble character and praiseworthy dispositions. This is what is gathered from al-Tawḍīḥ, al-Talwīḥ and al-Chalabī. It will also be discussed under munāsaba.

Editorial note. The historical Arabic article is reproduced in full up to the following headword, al-muṣmat. The modern English/French labels of the 1996 edition are not part of al-Tahānawī's article. "Universal" translates kulliyya in the quoted condition; this is the dictionary's report of al-Ghazālī, not an assertion that Ibn Rushd adopts that condition.

↑ Term directory · Sources · Headword relations

15. istiʿāra اسْتِعَارَة

In the Darūrī: Transfer or metaphorical borrowing of an expression, one way words can signify beyond their original assignment.

Text: §153 · §164 · §180

istiʿāra · الاستعارة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 94. Source ↗

ادعاء معنى الحقيقة في الشيء للمبالغة في التشبيه مع طرح ذكر المشبه من البين كقولك لقيت أسدا وأنت تعني به الرجل الشجاع ثم إذا ذكر المشبه به مع ذكر القرينة يسمى استعارة تصريحية وتحقيقية نحو لقيت أسدا في الحمام.

Claiming that a thing possesses the literal meaning, in order to intensify a comparison, while omitting mention of the thing compared. For example, you say "I met a lion" while meaning a courageous man. When the object of comparison is mentioned together with a contextual indicator, this is called an explicit and realized metaphor, as in "I met a lion in the bathhouse."

وإذا قلنا المنية أي الموت أنشبت أي علقت أظفارها بفلان فقد شبهنا المنية بالسبع في اغتيال النفوس أي هلاكها من غير تفرقة بين نفاع وضرار فأثبتنا لها الأظفار التي لا يكمل ذلك الاغتيال فيه بدونها تحقيقا للمبالغة في التشبيه فتشبيه المنية بالسبع استعارة بالكناية وإثبات الأظفار لها استعارة تخيلية.

When we say, "Death has fastened its claws upon so-and-so"—maniyya meaning death, and anshabat meaning fastened—we compare death to a beast of prey in its destroying lives, without distinguishing between the beneficial and the harmful. We attribute to death the claws without which the beast's destruction would not be complete, to realize the force of the comparison. Comparing death to the beast is an implicit metaphor; attributing claws to it is an imaginative metaphor.

والاستعارة في الفعل لا تكون إلا تبعية كنطقت الحال.

Metaphor in a verb is always derivative, as in "The situation spoke."

↑ Term directory · Sources · Headword relations

16. istiqrāʾ اسْتِقْرَاء

In the Darūrī: Induction from particular cases. In §4 Ibn Rushd says many universal notions in the discipline were validated through case-by-case examination of early legal opinions; he does not say every rule originated in that way.

Text: §4 · §217

istiqrāʾ · الاستقراء

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 108. Source ↗

هو الحكم على كلي بوجوده في أكثر جزئياته وإنما قال في أكثر جزئياته لأن الحكم لو كان في جميع جزئياته لم يكن استقراء بل قياسا مقسما ويسمى هذا استقراء لأن مقدماته لا تحصل إلا بتتبع الجزئيات كقولنا كل حيوان يحرك فكه الأسفل عند المضغ لأن الإنسان والبهائم والسباع كذلك وهو استقراء ناقص لا يفيد اليقين لجواز وجود جزئي لم يستقرأ ويكون حكمه مخالفا لما استقرئ كالتمساح فإنه يحرك فكه الأعلى عند المضغ.

Judging concerning a universal on the basis of its presence in most of its particulars. He says “in most of its particulars” because, if the judgement concerned all its particulars, it would not be induction but a divided syllogism. It is called induction because its premises are obtained only by investigating particulars. For example: “Every animal moves its lower jaw when chewing,” because human beings, domestic animals, and beasts of prey do so. This is incomplete induction and does not yield certainty, since a particular may exist that has not been investigated and whose case differs from those investigated—as with the crocodile, which, according to the example, moves its upper jaw when chewing.

Editorial note. The crocodile example is reproduced as the author’s historical example, not as an independently verified claim about animal anatomy. The article’s restriction of “induction” is likewise this source’s terminology, not a universal convention of the logical tradition.

↑ Term directory · Sources · Headword relations

17. ishtirāk اشْتِرَاك

In the Darūrī: Equivocation: one expression’s established use for distinct meanings, not the inclusion of many instances within a single general meaning.

Text: §158 · §177

al-mushtarak · المشترك

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · entry 1372. Source ↗

ما وضع لمعنى كثير بوضع كثير كالعين لاشتراكه بين المعاني ومعنى الكثرة ما يقابل القلة فيدخل فيه المشترك بين المعنيين فقط كالقرء والشفق فيكون مشتركا بالنسبة إلى الجميع ومجملا بالنسبة إلى كل واحد.

A word assigned to several meanings through several acts of assignment, such as ʿayn, which is shared by different meanings. Multiplicity here is that which contrasts with paucity [so the transcription reads]; this includes a word shared by only two meanings, such as qurʾ and shafaq. It is thus equivocal in relation to all its meanings and indeterminate in relation to each one.

والاشتراك بين الشيئين إن كان بالنوع يسمى مماثلة كاشتراك زيد وعمرو في الإنسانية وإن كان بالجنس يسمى مجانسة كاشتراك إنسان وفرس في الحيوانية وإن كان بالعرض إن كان في الكم يسمى مادة كاشتراك ذراع من خشب وذراع من ثوب في الطول وإن كان في الكيف يسمى مشابهة كاشتراك الإنسان والحجر في السواد وإن كان بالمضاف يسمى مناسبة كاشتراك زيد وعمرو في بنوة بكر وإن كان بالشكل يسمى مشاكلة كاشتراك الأرض والهواء في الكرية وإن كان بالوضع المخصوص يسمى موازنة وهو ألا يختلف البعد بينهما كسطح كل فلك وإن كان بالأطراف يسمى مطابقة كاشتراك الإجانتين في الأطراف.

When two things share a species, this is called likeness in species (mumāthala), as Zayd and ʿAmr share humanity. When they share a genus, it is called common membership of a genus (mujānasa), as a human and a horse share animality. When their sharing is accidental: in quantity, it is called mādda [the transcription's reading], as a cubit of wood and a cubit of cloth share length; in quality, resemblance (mushābaha), as a human and a stone share blackness; in relation, proportional correspondence (munāsaba), as Zayd and ʿAmr are both sons of Bakr; in shape, conformity of shape (mushākala), as earth and air share sphericity; in a particular position, parallelism (muwāzana), meaning that the distance between them does not vary, as with the surface of each celestial sphere; and in extremities, coincidence (muṭābaqa), as with the edges of two basins.

Editorial note.
Complete article, including the second, categorial sense of ishtirāk. Two doubtful digital readings are retained openly: "paucity" probably stands for "unity," and mādda for musāwāt, "equality." Neither conjecture is silently substituted. The second paragraph is not a further definition of lexical equivocity.

↑ Term directory · Sources · Headword relations

18. aṣl أَصْل

In the Darūrī: Foundation, source, original case, or governing principle. In qiyās it is the case or meaning from which extension proceeds.

Text: §62 · §141 · §210 · §212

aṣl · الأصل

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 27. Source ↗

هو ما يبتنى عليه غيره.

It is that upon which something else is built.

↑ Term directory · Sources · Headword relations

19. uṣūl al-fiqh أُصُول الْفِقْهِ

In the Darūrī: Principles of jurisprudence: in this abridgement, above all the disciplined understanding of revealed indications and the means of reaching rulings.

Text: §1 · §2 · §5 · §6 · §148

uṣūl al-fiqh · أصول الفقه

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 159. Source ↗

هو العلم بالقواعد التي يتوصل بها إلى الفقه والمراد من الأصول في قولهم هكذا في رواية الأصول الجامع الصغير والجامع الكبير والمبسوط والزيادات.

Knowledge of the rules by which jurisprudence is reached. By "the foundational works" in the expression "Thus in the transmission of the foundational works," they mean al-Jāmiʿ al-ṣaghīr, al-Jāmiʿ al-kabīr, al-Mabsūṭ, and al-Ziyādāt.

Editorial note. The second sentence explains a different Ḥanafī bibliographical use of uṣūl, not the definition of the science itself.

↑ Term directory · Sources · Headword relations

20. iqrār إِقْرَار

In the Darūrī: Tacit approval: the Prophet's non-objection in relevant circumstances, indicating permissibility rather than automatically establishing obligation.

Text: §150 · §227

iqrār · الإقرار

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 32. Source ↗

هو في الشرع إخبار بحق لآخر عليه.	In revealed law, a person's acknowledging a right that another holds against him.
إخبار عما سبق.	Reporting something that has already occurred.

↑ Term directory · Sources · Headword relations

21. imkān إِمْكَان

In the Darūrī: Possibility: physical capacity to perform an act is not the same as the presence of every legal condition governing it.

Text: §45 · §49 · §50

imkān · الإمكان

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 35. Source ↗

عدم اقتضاء الذات الوجود والعدم.	The essence's entailing neither existence nor non-existence.

↑ Term directory · Sources · Headword relations

22. bāṭil / buṭlān بَاطِل / بُطْلَان

In the Darūrī: Invalid / invalidity. In contracts, absence of the intended legal effect; invalidity is not interchangeable with moral prohibition.

Text: §28 · §56 · §206

bāṭil · الباطل

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 41. Source ↗

هو الذي لا يكون صحيحا بأصله.	That which is not valid in its very basis.
ما لا يعتد به، ولا يفيد شيئا.	That which is not legally counted and produces no effect.
ما كان فائت المعنى من كل وجه، مع وجود الصورة؛ إما لانعدام الأهلية أو المحلية، كبيع الحر، وبيع الصبي.	That in which the relevant substance or purpose is absent in every respect, although its outward form exists, whether because the requisite capacity or a legally eligible object is absent—for example, a sale of a free person or a sale made by a child.

Editorial note. The source headword is bāṭil, not a separate buṭlān article. The author's school-specific contrasts with fāsid are preserved in the independent fasād article. "A sale made by a child" translates بيع الصبي here in the context of deficient contracting capacity; it is not "the sale of a child."

↑ Term directory · Sources · Headword relations

23. barāʾa aṣliyya بَرَاءَة أَصْلِيَّة

In the Darūrī: Original freedom from liability: obligation requires a warrant; absence of such a warrant is not itself a newly revealed duty.

Text: §141 · §142 · §247

bara’a · برأ

al-Rāghib al-Iṣfahānī [E] · *al-Mufradāt fī gharīb al-Qur’ān* · s.v. برأ. Source ↗

أصل البُرْءِ والبَرَاءِ والتَبَرِّي: التقصّي مما يكره مجاورته، ولذلك قيل: بَرَأْتُ من المرض وبَرِئْتُ من فلان وتَبَرَّأْتُ وأَبْرَأْتُهُ من كذا، وبَرَّأْتُهُ، ورجل بَرِيءٌ، وقوم بُرَآء وبَرِيئُون.

The original sense of bur’, barā’ and tabarrī is to free oneself entirely from that whose proximity is disliked. Hence one says: “I recovered from illness”; “I dissociated myself from so-and-so”; “I disowned [something]”; “I released him from such-and-such”; and “I cleared him.” One speaks of a man as barī’, and of a group as burā’ or barī’ūn.

قال عزّ وجلّ: بَراءَةٌ مِنَ اللَّهِ وَرَسُولِهِ [التوبة/1]، أَنَّ اللَّهَ بَرِيءٌ مِنَ الْمُشْرِكِينَ وَرَسُولُهُ [التوبة/3]، وقال: أَنْتُمْ بَرِيئُونَ مِمَّا أَعْمَلُ وَأَنَا بَرِيءٌ مِمَّا تَعْمَلُونَ [يونس/41]، إِنَّا بُرَآؤُا مِنْكُمْ وَمِمَّا تَعْبُدُونَ مِنْ دُونِ اللَّهِ [الممتحنة/4]، وَإِذْ قالَ إِبْراهِيمُ لِأَبِيهِ وَقَوْمِهِ إِنَّنِي بَراءٌ مِمَّا تَعْبُدُونَ [الزخرف/26]، فَبَرَّأَهُ اللَّهُ مِمَّا قالُوا [الأحزاب/69]، وقال: إِذْ تَبَرَّأَ الَّذِينَ اتُّبِعُوا مِنَ الَّذِينَ اتَّبَعُوا [البقرة/166].

God—mighty and majestic—says: “A declaration of release from God and His Messenger” [Q 9:1]; “God is free of the polytheists, and so is His Messenger” [Q 9:3]; “You are free of responsibility for what I do, and I am free of responsibility for what you do” [Q 10:41]; “We disown you and what you worship apart from God” [Q 60:4]; “When Abraham said to his father and his people: I am quit of what you worship” [Q 43:26]; “God cleared him of what they said” [Q 33:69]; and “When those who were followed disown those who followed them” [Q 2:166].

والبارئ خصّ بوصف الله تعالى، نحو قوله: الْبارِئُ الْمُصَوِّرُ [الحشر/24]، وقوله تعالى: فَتُوبُوا إِلى بارِئِكُمْ [البقرة/54]، والبَرِيَّة: الخلق، قيل: أصله الهمز فترك، وقيل: بل ذلك من قولهم: بريت العود، وسمّيت بريّة لكونها مبريّة من البرى أي: التراب، بدلالة قوله تعالى: خَلَقَكُمْ مِنْ تُرابٍ [غافر/67]، وقوله تعالى: أُولئِكَ هُمْ خَيْرُ الْبَرِيَّةِ [البينة/7]، وقال: شَرُّ الْبَرِيَّةِ [البينة/6].

Al-Bāri’ is reserved as a description of God, as in “the Originator, the Fashioner” [Q 59:24] and “Turn in repentance to your Originator” [Q 2:54]. Al-bariyya means created beings. It is said that the word originally had a hamza which was dropped. Another account derives it from “I pared the stick”: creatures are called bariyya because they are fashioned out of barā, that is, earth. This is supported by “He created you from earth” [Q 40:67], “Those are the best of created beings” [Q 98:7], and “the worst of created beings” [Q 98:6].

Editorial note.
This is the complete article برأ, including its theological and etymological senses. It is not an article headed براءة أصلية. The legal principle’s contextual explanation remains in the Darūrī term register; al-Jurjānī’s istiṣḥāb is a separately attributed article, never part of this one.

↑ Term directory · Sources · Headword relations

24. burhān بُرْهَان

In the Darūrī: Demonstration or conclusive proof. Its logical analysis belongs to a different discipline from the present abridgement’s immediate task.

Text: §9 · §15 · §75

burhān · البرهان

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 43. Source ↗

هو القياس المؤلف من اليقينيات، سواء كانت ابتداء؛ وهي الضروريات، أو بواسطة؛ وهي النظريات. والحد الأوسط فيه لا بد أن يكون علة لنسبة الأكبر إلى الأصغر؛ فإن كان مع ذلك علة لوجود تلك النسبة في الخارج أيضا، فهو برهان لمي، كقولنا: هذا متعفن الأخلاط، وكل متعفن الأخلاط محموم، فهذا محموم، فتعفن الأخلاط، كما أنه علة لثبوت الحمى في الذهن، كذلك علة لثبوت الحمى في الخارج، وإن لم يكن كذلك كان لا يكون علة للنسبة إلا في الذهن، فهو برهان إني، كقولنا: هذا محموم، متعفن الأخلاط، فهذا متعفن الأخلاط، فالحمى، وإن كانت علة لثبوت تعفن الأخلاط في الذهن، إلا أنها ليست علة له في الخارج، بل الأمر بالعكس.

A syllogism composed of certain premises, whether they are certain immediately—in which case they are necessary truths—or through an intermediary—in which case they are conclusions of inquiry. Its middle term must be a cause of attributing the major term to the minor. If it is also a cause of that relation's existence outside the mind, the demonstration is a "why" demonstration. For example: "This person has putrefied humours; everyone with putrefied humours has a fever; therefore this person has a fever." The putrefaction of the humours is a cause of the fever's being established in the mind and also of its existence outside the mind. If the middle term causes the relation only in the mind, it is a "that" demonstration. For example: "This person has a fever; [the text's statement of the major premise is defective:] putrefied humours; therefore this person has putrefied humours." Although the fever is a cause of establishing the putrefaction of the humours in the mind, it is not its cause outside the mind; rather, the reverse is the case.

Editorial note. The second syllogism is defective in the digital witness: the major premise is not fully expressed. The translation marks the defect instead of silently inserting an allegedly original sentence. The humoral example is a historical illustration, not a contemporary medical claim.

bariha / burhān · برء

al-Rāghib al-Iṣfahānī [E] · *al-Mufradāt fī gharīb al-Qurʾān* · s.v. برء. Source ↗

البُرْهَان: بيان للحجة، وهو فعلان مثل: الرّجحان والثنيان، وقال بعضهم: هو مصدر بَرِهَ يَبْرَهُ: إذا ابيضّ، ورجل أَبْرَهُ وامرأة بَرْهَاءُ، وقوم بُرْهٌ، وبَرَهْرَهَة: شابة بيضاء. والبُرْهَة: مدة من الزمان، فالبُرْهَان أوكد الأدلّة، وهو الذي يقتضي الصدق أبدا لا محالة، وذلك أنّ الأدلة خمسة أضرب: دلالة تقتضي الصدق أبدا. ودلالة تقتضي الكذب أبدا. ودلالة إلى الصدق أقرب. ودلالة إلى الكذب أقرب. ودلالة هي إليهما سواء.

قال تعالى: قُلْ: هاتُوا بُرْهانَكُمْ إِنْ كُنْتُمْ صادِقِينَ [البقرة/111]، قُلْ: هاتُوا بُرْهانَكُمْ هذا ذِكْرُ مَنْ مَعِيَ [الأنبياء/24]، قَدْ جاءَكُمْ بُرْهانٌ مِنْ رَبِّكُمْ [النساء/174].

Burhān is the clarification of an argument. Its pattern is fuʿlān, like rujḥān and thunyān. Some say it is a verbal noun of bariha, yabrahu, "to become white": one says abrah of a man, barhāʾ of a woman, and burh of a group. Barahraha is a young, fair-complexioned woman; burha is a period of time. Burhān is therefore the most certain of proofs, invariably requiring truth. For indications are of five kinds: one which always requires truth; one which always requires falsehood; one nearer to truth; one nearer to falsehood; and one equally related to the two.

God says: "Say: bring your proof, if you are truthful" [Q 2:111]; "Say: bring your proof; this is the reminder of those with me" [Q 21:24]; and "A proof has come to you from your Lord" [Q 4:174].

↑ Term directory · Sources · Headword relations

25. bayān بَيَان

In the Darūrī: Clarification: whatever validly brings a meaning to understanding, including wording, context and explanatory action.

Text: §159 · §160 · §161 · §228

bayān · البيان

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 297. Source ↗

عبارة عن إظهار المتكلم المراد للسامع وهو بالإضافة خمسة.

1 - بيان التبديل هو النسخ وهو رفع حكم شرعي بدليل شرعي متأخر.

2 - بيان الضرورة هو نوع بيان يقع بغير ما وضع له لضرورة ما إذ الموضوع له النطق وهذا يقع بالسكوت مثل سكوت المولى عن النهي حين يرى عبده يبيع ويشتري فإنه يجعل إذنا له في التجارة ضرورة دفع الغرر عمن يعامله فإن الناس يستدلون بسكوته على إذنه فلو لم يجعل إذنا لكان إضرارا بهم وهو مدفوع.

3 - بيان التغيير هو تغيير موجب الكلام نحو التعليق والاستثناء والتخصيص.

4 - بيان التفسير وهو بيان ما فيه خفاء من المشترك أو المشكل أو المجمل أو الخفي كقوله تعالى وأقاموا الصلاة وآتو الزكاة البقرة 277 فإن الصلاة مجمل فلحق البيان بالسنة وكذا الزكاة مجمل في حق النصاب والمقدار ولحق البيان بالسنة.

5 - وهو النطق الفصيح المعرب أي المظهر عما في الضمير وإظهار المعنى وإيضاح ما كان مستورا قبله وقيل هو الإخراج عن حد الإشكال والفرق بين التأويل والبيان أن التأويل ما يذكر في كلام لا يفهم منه معنى محصل في أول وهلة والبيان ما يذكر فيما يفهم ذلك لنوع خفاء بالنسبة إلى البعض.

The speaker’s making the intended meaning manifest to the listener. In its subdivisions it is fivefold:

1. Clarification by replacement is abrogation: removing a legal ruling through a later legal proof.

2. Clarification by necessity occurs by something other than the appointed means because of a necessity. The appointed means is speech, but this occurs through silence: for example, a master refrains from prohibiting his slave when he sees him buying and selling. This is treated as permission to trade because of the need to remove the risk faced by those dealing with him. People infer permission from the master’s silence; refusing to count it as permission would harm them, and that harm is averted.

3. Clarification by modification changes what speech entails, as with conditional attachment, exception, and specification.

4. Clarification by explanation explains what is obscure in the equivocal, problematic, indeterminate, or hidden, as in “They establish prayer and give alms” [Q 2:277]. Prayer is indeterminate and received its explanation through the Sunna; likewise alms is indeterminate concerning the threshold and amount, and was explained by the Sunna.

5. It is eloquent, expressive speech—that is, speech making manifest what is in the mind—and the manifestation of meaning and clarification of what was previously concealed. It is also said to be removing something from the domain of difficulty. Interpretation differs from clarification: interpretation concerns speech from which no determinate meaning is understood at first encounter; clarification concerns speech from which such a meaning is understood, but which has a kind of obscurity for some people.

Editorial note. This witness’s fivefold numbering is retained, although its fifth item shifts from a named legal subdivision to general definitions. This is not an editorial repair of the classification.

↑ Term directory · Sources · Headword relations

26. taʾthīm تَأْثِيم

In the Darūrī: Attribution of sin. Its absence does not entail the absence of error; knowledge and the accessibility of evidence matter.

Text: §242 · §243 · §244 · §245

al-ithm · الإثم

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الإثم. Source ↗

والآثام اسم للأفعال المبطئة عن الثواب، وتسمية الكذاب إثما كتسمية الإنسان حيوانا لكونه من جملتهم، والآثم بالمد المتحمل للإثم. قال الراغب والإثم أعم من العدوان.

Ithm and āthām are names for actions that delay reward. Calling falsehood ithm is like calling a human an animal, since it belongs within that class. Āthim, with a long initial vowel, is someone who bears sin. Al-Rāghib says that ithm is more general than transgression (ʿudwān).

Editorial note. The digital text's al-kadhdhāb may also be read "the liar"; the translation follows the abstract comparison with a class of acts.

↑ Term directory · Sources · Headword relations

27. taʾwīl تَأْوِيل

In the Darūrī: Interpretation supported by evidence, especially departure from an expression's apparent meaning to a less evident one.

Text: §164 · §166 · §171

taʾwīl · التأويل

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 313. Source ↗

في الأصل الترجيع وفي الشرع صرف اللفظ عن معناه الظاهر إلى معنى يحتمله إذا كان المحتمل الذي يراه موافقا للكتاب والسنة مثل قوله تعالى يخرج الحي من الميت الأنبياء 95 أن أراد به إخراج الطير من البيضة كان تفسيرا وإن أراد به إخراج المؤمن من الكافر أو العالم من الجاهل كان تأويلا.

Originally, bringing back. In revealed law: diverting an expression from its apparent meaning to another meaning it admits, provided that the possible meaning one adopts accords with the Book and the Sunna. For example, with God's saying "He brings the living out of the dead": taking it to mean bringing a bird out of an egg is explanation; taking it to mean bringing a believer out of an unbeliever, or a learned person out of an ignorant person, is interpretive redirection.

Editorial note. The verse reference printed in this electronic witness is wrong; the wording occurs, for example, at Q 6:95 and Q 30:19.

↑ Term directory · Sources · Headword relations

28. takhṣīṣ تَخْصِيص

In the Darūrī: Specification: restricting a general expression's scope on adequate evidence; chronology helps distinguish it from abrogation.

Text: §174 · §181 · §182 · §190

takhṣīṣ · التخصيص

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. التخصيص. Source ↗

تفرد بعض الشيء بما لا يشاركه فيه الجملة، ذكره الراغب. وعبر عنه الأصوليون بقولهم: التخصيص، قصر العام على افراده بدليل مستقل مقترن به واحترز ب المستقل عن الاستثناء والشرط والغاية والصفة فإنها وإن لحقت العام لا تسمى تخصيصا، وبمقترن به عن النسخ نحو {خَالِقُ كُلِّ شَيْءٍ} إذ يعلم ضرورة أن الباري تقدس مخصوص به منه.

Some part of a thing's being distinguished by what the whole does not share: this is al-Rāghib's account. The legal theorists express it as restricting a general expression to [some of] its instances by an independent proof accompanying it. 'Independent' excludes exception, condition, limit and attribute: although these attach to a general expression, they are not called specification in this terminology. 'Accompanying it' excludes abrogation. An example is 'Creator of every thing' [Q 6:102; 13:16], since it is necessarily known that the Creator, exalted is He, is excluded from its scope.

Editorial note. The digital reading قصر العام على افراده lacks “some”. The bracketed words in English supply the restriction required by the definition and its following contrasts; no silent Arabic emendation is made. This restrictive use of takhṣīṣ is not shared by all legal theorists.

↑ Term directory · Sources · Headword relations

29. tarjīḥ تَرْجِيح

In the Darūrī: Giving greater weight: preferring the stronger evidence or judgement on a relevant ground, not free personal choice.

Text: §96 · §246 · §256 · §257

tarjīḥ · الترجيح

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 352. Source ↗

إثبات مرتبة في أحد الدليلين على الآخر.

Establishing a superior rank for one of two proofs over the other.

↑ Term directory · Sources · Headword relations

30. taṣdīq تَصْدِيق

In the Darūrī: Assent to an assertion. Its cause, necessity and degree are discussed especially in the analysis of mass transmission.

Text: §15 · §44 · §74 · §75 · §76

taṣdīq · التصديق

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 374. Source ↗

هو أن تنسب باختيارك الصدق إلى المخبر.

Your voluntarily attributing truthfulness to the informant.

Editorial note. This definition concerns crediting an informant. Other logical senses are not collapsed into it.

↑ Term directory · Sources · Headword relations

31. taṣwīb تَصْوِيب

In the Darūrī: Declaring juristic conclusions correct; the debate asks whether every qualified conclusion is true or whether one determinate ruling is sought.

Text: §237 · §239 · §240 · §243

al-ṣawāb · الصواب

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · entry 883. Source ↗

خلاف الخطأ وهما يستعملان في المجتهدات والحق والباطل يستعملان في المعتقدات حتى إذا سئلنا في مذهبنا ومذهب من خالفنا في الفروع يجب علينا أن نجيب بأن مذهبنا صواب يحتمل الخطأ ومذهب من خالفنا خطأ يحتمل الصواب وإذا سئلنا عن معتقدنا ومعتقد من خالفنا في المعتقدات يجب علينا أن نقول الحق ما عليه نحن والباطل ما عليه خصومنا.

The opposite of error. The two terms are used concerning matters subject to juristic reasoning, whereas “true” and “false” are used concerning matters of belief. Thus, when asked about our school and that of those who differ from us concerning derivative legal questions, we must answer: our school’s position is correct but admits the possibility of error, and the position of those who differ from us is erroneous but admits the possibility of correctness. When asked about our belief and the belief of those who differ from us concerning doctrinal matters, we must say: what we hold is true, and what our opponents hold is false.

هكذا نقل عن المشايخ وتمام المسألة في أصول الفقه ولغة السداد واصطلاحا هو الأمر الثابت الذي لا يسوغ إنكاره وقيل الصواب إصابة الحق والفرق بين الصواب والصدق والحق أن الصواب هو الأمر الثابت في نفس الأمر الذي يسوغ إنكاره والصدق هو الذي يكون ما في الذهن مطابقا لما في الخارج والحق هو الذي يكون ما في الخارج مطابقا لما في الذهن.

This is what has been transmitted from the masters; the full discussion belongs to legal theory. In language, ṣawāb means soundness; technically, it is an established matter whose denial is not admissible. It is also said to mean attaining the truth. The distinction between correctness (ṣawāb), truthfulness (ṣidq), and truth (ḥaqq) is that correctness is a matter established in itself whose denial is admissible [as the text here reads]; truthfulness is the correspondence of what is in the mind with what is outside it; and truth is the correspondence of what is outside the mind with what is in it.

Editorial note. The article itself changes from “denial is not admissible” to “denial is admissible”; both readings are translated, not harmonized. This is an attributed later discussion, not a statement that Ibn Rushd adopts the author’s doctrinal contrast.

↑ Term directory · Sources · Headword relations

32. taʿāruḍ تَعَارُض

In the Darūrī: Conflict of evidence: an apparent opposition requiring assessment of reconciliation, chronology, preference or suspension.

Text: §96 · §181 · §229 · §246

al-muʿāraḍa · المعارضة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · entry 1402. Source ↗

لغة هي المقابلة على سبيل الممانعة واصطلاحا هي إقامة الدليل على خلاف ما أقام الدليل عليه الخصم ودليل المعارض إن كان عين دليل المعلل يسمى قلبا وإلا فإن كانت صورته كصورته يسمى معارضة بالمثل وإلا فمعارضة بالغير وتقديرها إذا استدل على المطلوب بدليل فالخصم إن منع مقدمة من مقدماته أو كل واحدة منها على التعيين فذلك يسمى منعا مجردا ومناقضة ونقضا تفصيليا ولا يحتاج في ذلك إلى شاهد فإن ذكر شيئا يتقوى به يسمى سندا للمنع وإن منع مقدمة غير معينة بأن يقول ليس دليلك بجميع مقدماته صحيحا ومعناه أن فيها خللا فذلك يسمى نقضا إجماليا ولا بد هاهنا من شاهد على الاختلال وإن لم يمنع شيئا من المقدمات لا معينة ولا غير معينة بأن أورد دليلا على نقض مدعاه فذلك يسمى معارضة.

In language, counter-opposition is confrontation by way of resistance. Technically, it is establishing a proof for the opposite of what the opponent has established by proof. If the counter-arguer’s proof is identical with the original arguer’s proof, it is called reversal (qalb). Otherwise, if its form is the same as the other’s, it is counter-opposition by a like proof; if not, counter-opposition by a different proof. Its analysis is as follows. When someone argues for a conclusion by a proof, if the opponent challenges one of its premises—or each one, specifically—this is called bare denial, contradiction, or detailed refutation; no supporting witness is required. If the opponent mentions something strengthening the challenge, it is called a support for the denial. If an unspecified premise is challenged by saying, “Your proof is not sound in all its premises,” meaning that there is a flaw in them, this is called summary refutation; here a witness to the flaw is required. If no premise is challenged, whether specifically or nonspecifically, but a proof is produced overturning the claim, this is called counter-opposition.

Editorial note. Muʿāraḍa in disputation is not automatically identical with the uṣūl problem of apparently conflicting proofs (taʿāruḍ). The original glossary’s contextual meaning is retained separately.

↑ Term directory · Sources · Headword relations

33. taʿdīl تَعْدِيل

In the Darūrī: Attestation of probity, distinct from criticism and from an automatic guarantee of every report.

Text: §94 · §95 · §96 · §97

al-taʿādul · التعادل

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. التعادل. Source ↗

التساوي بين الشيئين، ومنه قسمة التعديل وهي قسمة الشيء باعتبار القيمة والمنفعة لا باعتبار العدل، فيجوز كون الجزء الأقل يعادل الأعظم في قيمته ومنفعته. وتعديل الشاهد نسبته إلى العدالة ووصفه بها.

Equality between two things. From this comes division by equalization: dividing a thing with regard to value and benefit, not with regard to “justice” [the transmitted reading]. Thus the smaller portion may equal the larger in value and benefit. The accreditation (taʿdīl) of a witness is attributing probity to him and describing him as possessing it.

Editorial note.
The digital text reads al-ʿadl, “justice,” where al-ʿadad, “number,” is contextually expected; the printed reading has not been silently supplied.

↑ Term directory · Sources · Headword relations

34. taqlīd تَقْلِيد

In the Darūrī: Following another’s authority. Trustworthy expert reliance is distinguished from treating memorized school opinions as independent evidence.

Text: §249 · §250 · §251 · §252 · §255

taqlīd · التقليد

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 410. Source ↗

عبارة عن إتباع الإنسان غيره فيما يقول أو يفعل معتقدا للحقيقة فيه من غير نظر وتأمل في الدليل كأن هذا المتبع جعل قول الغير أو فعله قلادة في عنقه وعبارة عن قبول قول الغير بلا حجة ولا دليل.

A person’s following another in what the latter says or does, believing it to be true without investigating or reflecting upon the proof—as though the follower had placed the other’s statement or action as a necklace around his neck. Also: accepting another’s statement without an argument or proof.

↑ Term directory · Sources · Headword relations

35. taklīf تَكْلِيف

In the Darūrī: Legal responsibility or imposition of a duty, directed to an agent under conditions of comprehension and capacity.

Text: §17 · §38 · §42 · §45

taklīf · التكليف

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 414. Source ↗

إلزام الكلفة على المخاطب.

Imposing a burden upon the addressee.

↑ Term directory · Sources · Headword relations

36. tamthīl تَمْثِيل

In the Darūrī: Exemplification or reasoning by a comparable particular; do not assume that every legal extension has this structure.

Text: §1 · §210 · §212 · §223

tamthīl · التمثيل

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 423. Source ↗

إثبات حكم واحد في جزأين لثبوته في جزئي الآخر لمعنى مشترك بينهما والفقهاء يسمونه قياسا والجزئي الأول فرعا والثاني أصلا والمشترك علة وجامعا كما يقال العالم مؤلف فهو حادث كالبيت يعني البيت حادث لأنه مؤلف وهذه العلة موجودة في العالم فيكون حادثا.

Establishing a single judgement in two particulars because it is established in the other particular, on account of a meaning they share. Jurists call this analogy, the first particular the derivative case, the second the original case, and the shared feature the cause and connecting feature. Thus: “The world is composite, so it is originated, like a house.” That is, a house is originated because it is composite, and this cause exists in the world, which is therefore originated.

Editorial note. The opening is awkward in this witness (جزأين … جزئي الآخر). The translation makes its comparison between particulars explicit without changing the Arabic.

↑ Term directory · Sources · Headword relations

37. tanbīh تَنْبِيه

In the Darūrī: Indication or directing attention to an unstated meaning, often through the relation between a named particular and an intended universal.

Text: §191 · §209 · §212 · §215

tanbīh · التنبيه

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 433. Source ↗

إعلام ما في ضمير المتكلم للمخاطب وفي اللغة هو الدلالة عما غفل عنه المخاطب وفي الاصطلاح ما يفهم من مجمل بأدنى تأمل إعاما بما في ضمير المتكلم للمخاطب وقيل التنبيه قاعدة تعرف بها الأبحاث الآتية بجملة.

Making what is in the speaker’s mind known to the addressee. In ordinary language, indicating what the addressee has overlooked. Technically, what is understood from an indeterminate expression with the least reflection, thus making the speaker’s intention known to the addressee. It is also said to be a rule through which subsequent investigations are known in outline.

Editorial note. The witness’s إعاما is treated as a typographical loss in إعلاما in translation.

↑ Term directory · Sources · Headword relations

38. tawātur تَوَاتُر

In the Darūrī: Mass transmission producing certainty, whose conditions are contextual and not captured by a single numerical threshold.

Text: §74 · §75 · §76 · §78

khabar mutawātir · الخبر المتواتر

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 643. Source ↗

هو الذي نقله جماعة عن جماعة والفرق بين المتواتر والمشهور أن جاحد الخبر المتواتر كافر بالاتفاق وجاحد الخبر المشهور مختلف فيه والأصح أنه يكفر وجاحد خبر الواحد لا يكفر بالاتفاق.

That which a group transmits from a group. The difference between the massively and the widely transmitted report is that denying the former constitutes unbelief by agreement, whereas the status of one who denies the latter is disputed, the view here called sounder being that it constitutes unbelief. Denying a solitary report does not constitute unbelief by agreement.

وهو الخبر الثابت على ألسنة قوم لا يتصور تواطؤهم على الكذب والخبر نوعان مرسل ومسند فالمرسل منه ما أرسله الراوي إرسالا من غير إسناد إلى راو آخر وهو حجة عندنا كالمسند خلافا للشافعي في إرسال سعيد بن المسيب فقد روى عن أبي بكر مرسلا والمسند ما أسنده الراوي إلى راو آخر إلى أن يصل إلى النبي صلى الله عليه وسلم.

It is a report established on the tongues of people whose collusion in falsehood is inconceivable. Reports are of two kinds: mursal and musnad. A mursal report is one the transmitter sends forth without assigning it to another transmitter. According to us it is a proof, like the musnad, in disagreement with al-Shāfiʿī; the passage then mentions the mursal transmission of Saʿīd b. al-Musayyab, who transmitted from Abū Bakr without a connected chain. A musnad report is one assigned by a transmitter to another transmitter until it reaches the Prophet, peace and blessings be upon him.

ثم المسند أنواع متواتر ومشهور وآحاد فالمتواتر منه ما نقله قوم عن قوم لا يتصور تواطؤهم على الكذب فيه وهو الخبر المتصل إلى رسول الله صلى الله عليه وسلم وحكمه يوجب العلم والعمل قطعا حتى يكفر جاحده.

Musnad reports are then of several types: massively transmitted, widely transmitted, and solitary. The massively transmitted is what one body of people transmits from another in circumstances where their collusion in falsehood is inconceivable. It is a report connected to God’s Messenger, peace and blessings be upon him. Its evidential effect is decisively to require knowledge and action, such that its denier is judged an unbeliever.

فالمشهور منه هو ما كان من الآحاد في العصر الأول ثم اشتهر في العصر الثاني حتى رواه جماعة لا يتصور تواطؤهم على الكذب وتلقته العلماء بالقبول وهو أحد قسمي المتواتر وحكمه يوجب طمأنينة القلب لا علم يقين حتى يضل جاحده ولا يكفر وهو الصحيح وخبر الآحاد هو ما نقله واحد عن واحد وهو الذي لم يدخل في حد الاشتهار وحكمه يوجب العمل دون العلم ولهذا لا يكون حجة في المسائل الاعتقادية.

The widely transmitted is what was solitary in the first generation but became widespread in the second, until it was transmitted by a group whose collusion in falsehood was inconceivable and was accepted by the scholars. It is one of the two divisions of massive transmission. Its effect is to produce reassurance of the heart, not certain knowledge; consequently, its denier is held to be astray but not an unbeliever—and this is the correct view. A solitary report is what one person transmits from one person, without its entering the category of wide transmission. Its effect is to require action rather than knowledge, and for this reason it is not a proof in matters of belief.

Editorial note. The article contains both a stricter opening judgement and the later qualification “and this is the correct view” concerning denial of a widely transmitted report. Both are retained. The wording about al-Shāfiʿī and Saʿīd b. al-Musayyab is compressed in this digital witness and is not used here to establish al-Shāfiʿī’s doctrine independently.

tawātur · التواتر

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 440. Source ↗

هو الخبر الثابت على ألسنة قوم لا يتصور تواطؤهم على الكذب.

A report established on the tongues of a group whose collusion in falsehood cannot be conceived.

↑ Term directory · Sources · Headword relations

39. tawaqquf تَوَقُّف

In the Darūrī: Suspension of judgement when the evidence does not justify a determinate conclusion; distinct from arbitrary choice.

Text: §229 · §246

waqf · وقف

Aḥmad b. Muḥammad al-Fayyūmī [L] · *al-Miṣbāḥ al-munīr fī gharīb al-Sharḥ al-kabīr* · Kitāb al-wāw, root w-q-f. Source ↗

وَقَفَتِ الدَّابَّةُ تَقِفُ وَقْفًا وَوُقُوفًا سَكَنَتْ وَوَقَفْتُهَا أَنَا يَتَعَدَّى وَلَا يَتَعَدَّى وَوَقَفْتُ الدَّارَ وَقْفًا حَبَسْتُهَا فِي سَبِيلِ اللَّهِ وَشَيْءٌ مَوْقُوفٌ وَوَقْفٌ أَيْضًا تَسْمِيَةٌ بِالْمَصْدَرِ وَالْجَمْعُ أَوْقَافٌ مِثْلُ ثَوْبٍ وَأَثْوَابٍ وَوَقَفْتُ الرَّجُلَ عَنِ الشَّيْءِ وَقْفًا مَنَعْتُهُ عَنْهُ وَأَوْقَفْتُ الدَّارَ وَالدَّابَّةَ بِالْأَلِفِ لُغَةُ تَمِيمٍ وَأَنْكَرَهَا الْأَصْمَعِيُّ وَقَالَ الْكَلَامُ وَقَفْتُ بِغَيْرِ أَلِفٍ

Waqafat al-dābbatu, taqifu, waqfan and wuqūfan: the animal stood still. “I stopped it” is waqaftuhā; the verb is both transitive and intransitive. Waqaftu al-dāra waqfan means that I placed the house in inalienable dedication in God’s path. A thing so dedicated is mawqūf, and also waqf, the verbal noun being used as its name. The plural is awqāf, like thawb and athwāb. Waqaftu al-rajula ʿan al-shayʾi waqfan means that I prevented the man from it. Awqaftu al-dāra wa-l-dābbata, with alif, is the usage of Tamīm. Al-Aṣmaʿī rejected it and said that the expression is waqaftu, without alif.

وَأَوْقَفْتُ عَنِ الْكَلَامِ بِالْأَلِفِ أَقْلَعْتُ عَنْهُ وَكَلَّمَنِي فُلَانٌ فَأَوْقَفْتُ أَيْ أَمْسَكْتُ عَنِ الْحُجَّةِ عِيًّا وَحَكَى بَعْضُهُمْ مَا يُمْسَكُ بِالْيَدِ يُقَالُ فِيهِ أَوْقَفْتُهُ بِالْأَلِفِ وَمَا لَا يُمْسَكُ بِالْيَدِ يُقَالُ وَقَفْتُهُ بِغَيْرِ أَلِفٍ وَالْفَصِيحُ وَقَفْتُ بِغَيْرِ أَلِفٍ فِي جَمِيعِ الْبَابِ إِلَّا فِي قَوْلِكَ مَا أَوْقَفَكَ هَهُنَا وَأَنْتَ تُرِيدُ أَيُّ شَأْنٍ حَمَلَكَ عَلَى الْوُقُوفِ فَإِنْ سَأَلْتَ عَنْ شَخْصٍ قُلْتَ مَنْ وَقَفَكَ بِغَيْرِ أَلِفٍ

Awqaftu ʿan al-kalām, with alif, means that I ceased speaking. “So-and-so spoke to me, and I awqaftu” means that I refrained from giving an argument because I could not express myself. Some have reported that, for what is held in the hand, one says awqaftuhu with alif, and for what is not held in the hand one says waqaftuhu without alif. The eloquent usage is waqaftu without alif throughout this class, except when one says mā awqafaka hāhunā, meaning “What circumstance made you stop here?” If you ask about a person, you say man waqafaka, without alif.

وَوَقَفْتُ بِعَرَفَاتٍ وُقُوفًا شَهِدْتُ وَقْتَهَا وَتَوَقَّفَ عَنِ الْأَمْرِ أَمْسَكَ عَنْهُ وَوَقَفْتُ الْأَمْرَ عَلَى حُضُورِ زَيْدٍ عَلَّقْتُ الْحُكْمَ فِيهِ بِحُضُورِهِ وَوَقَفْتُ قِسْمَةَ الْمِيرَاثِ إِلَى الْوَضْعِ أَخَّرْتُهُ حَتَّى تَضَعَ وَالْمَوْقِفُ مَوْضِعُ الْوُقُوفِ.

Waqaftu bi-ʿArafātin wuqūfan means that I was present there at its appointed time. Tawaqqafa ʿan al-amr means that he held back from the matter. “I made the matter waqf on Zayd’s arrival” means that I made judgement on it conditional upon his arrival. “I deferred the division of the inheritance until the birth” means that I delayed it until she gave birth. Mawqif is the place of standing or stopping.

↑ Term directory · Sources · Headword relations

40. tawqīf تَوْقِيف

In the Darūrī: Dependence on revealed instruction; in §229 the printed term is understood contextually as withholding judgement. Note the distinct usages.

Text: §49 · §229

w-q-f · وقف

al-Muṭarrizī [L] · *al-Mughrib fī tartīb al-Muʿrib* · root وقف. Source ↗

وقفه حبسه وقفا ووقف بنفسه وقوفا يتعدى ولا يتعدى وهو واقف وهم وقوف. ومنه وقف داره أو أرضه على ولده لأنه يحبس الملك عليه، وقيل للموقوف وقف تسمية بالمصدر ولذا جمع على أوقاف كوقت وأوقات. قالوا ولا يقال أوقفه إلا في لغة رديئة، وقيل يقال وقفه فيما يحبس باليد وأوقفه فيما لا يحبس بها. ومنه أوقفته على ذنبه أي عرفته إياه والمشهور وقفته. وما روي أنه صلى الله عليه وآله وسلم قال: من وهب هبة ثم أراد أن يرجع فيها فليوقف وليعرف قبح فعله، يحتمل أن يكون من البابين. وقوله قلت لها قفي فقالت لي قاف أي وقفت فاختصره. وقوله حين وقفه أي عرفه إياه من قولهم وقفت القارئ توقيفا إذا علمته مواضع الوقوف.

Waqafahu means “he detained it,” with the verbal noun waqf; waqafa by itself means “he stopped,” with the verbal noun wuqūf. The verb is both transitive and intransitive; its active participle is wāqif, plural wuqūf. Hence, “He endowed his house or land for his children,” since he restricts ownership to their benefit. The endowed property itself was called waqf, using the verbal noun as its name; hence the plural awqāf, like waqt and awqāt. They say that awqafahu is used only in an inferior dialect. It is also said that waqafahu is used for what is restrained by the hand, and awqafahu for what is not so restrained. Hence, “I apprised him of his sin,” meaning that I made it known to him; the well-known form is waqaftuhu. The reported saying of the Prophet—God bless him and his family and grant them peace—“Whoever gives a gift and then wishes to reclaim it should be stopped/apprised and made to know the ugliness of his action,” may belong to either construction. In “I said to her, ‘Stop!’ and she replied, ‘Qāf,’” qāf abbreviates “I have stopped.” And “when he waqqafahu” means “when he made it known to him,” from the expression “I instructed the reciter” (waqqaftu al-qāriʾa tawqīfan), meaning that I taught him the places at which to pause.

Editorial note. The instruction sense provides lexical evidence only. The article does not define the technical dependence of a ruling on revelation. Waqf as an endowment, stopping, and instruction remain distinct senses, not interchangeable definitions.

Source notes

“Whoever gives a gift and then wishes to reclaim it should be stopped/apprised and made to know the ugliness of his action”
Cf. Sunan Abī Dāwūd 3540, on reclaiming a gift. The dictionary expands the report’s instruction to stop the giver and make him aware; its explanatory wording is retained.
Online witness: 1

↑ Term directory · Sources · Headword relations

41. jarḥ جَرْح

In the Darūrī: Criticism of a narrator’s credibility or probity; the grounds and relative force of such criticism require assessment.

Text: §94 · §95 · §96

jarḥ · الجرح

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الجرح. Source ↗

أثر دم في الجلد، ويسمى القدح في الشاهد جرحا تشبيها به، وتسمى الصائدة من الكلاب والفهود والطير جارحة وجمعها جوارح أيضًا لأنها تجرح أو تكسب، وتسمى الأعضاء الكاسبة جوارح تشبيها بها لأحد هذين. وفي المصباح: جرحه بلسانه عابه وتنقصه، ومنه جرحت الشاهد إذا أظهرت فيه ما ترد به شهادته. والاجتراح اكتساب الإثم أصله من الجراحة.

A trace of blood in the skin. Impugning a witness is called jarḥ by analogy with this. Hunting dogs, cheetahs and birds are called jāriḥa, plural jawāriḥ, because they wound or acquire prey; the bodily organs by which one acquires are likewise called jawāriḥ by analogy, for one of these two reasons. In al-Miṣbāḥ: ‘He wounded him with his tongue’ means that he disparaged and belittled him. Hence ‘I impugned the witness’ means that I disclosed something in him on account of which his testimony is rejected. Ijtirāḥ is the acquisition of sin; its original sense comes from wounding.

↑ Term directory · Sources · Headword relations

42. juzʾī جُزْئِيّ

In the Darūrī: Particular: an individual case or more restricted meaning relative to a universal. It is not simply a grammatical “specific expression.”

Text: §2 · §165 · §191 · §212

juzʾī ḥaqīqī · الجزئي الحقيقي

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 489. Source ↗

ما يمنع نفس تصوره من وقوع الشركة كزيد ويسمى جزئيا لأن جزئية الشيء إنما هي بالنسبة إلى الكلي والكلي جزء الجزئي فيكون منسوبا إلى الجزء والمنسوب إلى الجزء جزئي وبإزائه الكلي الحقيقي.

That whose very conception prevents its being shared, as with Zayd. It is called a particular because a thing’s particularity is relative to the universal, and the universal is a part of the particular; the particular is thus related to a part, and what is related to a part is called juzʾī. Its counterpart is the real universal.

Editorial note.
The source’s derivation of the terminology is translated as given; it should not be mistaken for a claim that an individual is merely a physical portion of a universal.

juzʾī iḍāfī · الجزئي الإضافي

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 488. Source ↗

عبارة عن كل أخص تحت الأعم كالإنسان بالنسبة إلى الحيوان يسمى بذلك لأن جزئيته بالإضافة إلى شيء آخر وبإزائه الكلي الإضافي وهو الأعم من شيء والجزئي الإضافي أعم من الجزئي الحقيقي فجزء الشيء ما يتركب ذلك الشيء منه ومن غيره كما أن الحيوان جزء زيد وزيد مركب من الحيوان وغيره وهو ناطق وعلى هذا التقدير زيد يكون كلا والحيوان جزءا فإن نسب الحيوان إلى زيد يكون الحيوان كليا وإن نسب زيد إلى الحيوان يكون زيد جزئيا.

Every narrower item falling under a broader one, as the human being falls under animal. It is called this because its particularity is relative to something else. Its counterpart is the relative universal, which is broader than something. The relative particular is broader in extension than the real particular. A part of a thing is that from which, together with something else, the thing is composed. Thus animal is a part of Zayd, and Zayd is composed of animal and something else, namely rational. On this account Zayd is a whole and animal a part. When animal is related to Zayd, animal is universal; when Zayd is related to animal, Zayd is particular.

↑ Term directory · Sources · Headword relations

43. jins جِنْس

In the Darūrī: Genus or kind: a grouping by an intelligible common feature, important in classification and in recognized suitable grounds.

Text: §185 · §217 · §224

jins · الجنس

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 514. Source ↗

اسم دال على كثيرين مختلفين بأنواع.

وكلي مقول على كثيرين مختلفين بالحقيقة في جواب ما هو من حيث هو كذلك فالكلي جنس وقوله مختلفين بالحقيقة يخرج النوع والخاصة والفصل القريب وقوله في جواب ما هو يخرج الفصل البعيد والعرض العام وهو قريب إن كان الجواب عن الماهية وعن بعض ما يشاركها في ذلك الجنس هو الجواب عنها وعن كل ما يشاركها فيه كالحيوان بالنسبة إلى الإنسان وبعيد إن كان الجواب عنها وعن بعض ما يشاركها فيه غير الجواب عنها وعن البعض الآخر كالجسم النامي بالنسبة إلى الإنسان.

A name indicating many things that differ in species.

Also: a universal predicated of many things differing in their realities, in answer to “What is it?”, considered precisely in that respect. “Universal” supplies the genus of the definition. “Differing in their realities” excludes species, property, and proximate differentia. “In answer to ‘What is it?’” excludes remote differentia and common accident. A genus is proximate when the answer concerning a quiddity and some of what shares that genus is the same as the answer concerning it and everything that shares the genus—for example, “animal” in relation to the human being. It is remote when the answer concerning the quiddity and some of what shares it differs from the answer concerning it and the remainder—for example, “growing body” in relation to the human being.

↑ Term directory · Sources · Headword relations

44. ḥākim حَاكِم

In the Darūrī: One who determines or commands; in the account of legal judgement, ultimately God, with derivative human authority distinguished.

Text: §36 · §37

ḥākim · الحاكم

Muḥammad ʿAlī al-Tahānawī [L] · *Kashshāf iṣṭilāḥāt al-funūn wa-l-ʿulūm* · s.v. الحاكم. Source ↗

عند الأصوليين والفقهاء هو الله تعالى والمحكوم عليه هو من وقع له الخطاب أي المخاطب بالفتح وهو المكلّف والمحكوم به هو ما يتعلّق به الخطاب وهو فعل المكلّف ويسمّى بالمحكوم فيه. فإذا قيل الصلاة واجبة، فالمحكوم عليه هو المكلّف والمحكوم به هو الصلاة، وهذا كما يقال حكم الأمير على زيد بكذا، وهذا بخلاف اصطلاح المنطقيين فإنهم يطلقون المحكوم عليه وبه على طرفي القضية.

For legal theorists and jurists, the one who rules is God, exalted is He. The person ruled upon is the one to whom the address comes—that is, its addressee—and is the legally responsible person. What is ruled about is that to which the address relates: the act of the legally responsible person. This is also called the matter in which the ruling is made. Thus, when one says ‘Prayer is obligatory’, the person ruled upon is the legally responsible person, and what is ruled about is prayer. This is like saying ‘The ruler adjudged such-and-such against Zayd’. This differs from the terminology of logicians, who apply ‘what is judged upon’ and ‘what is judged’ to the two terms of a proposition.

فالمحكوم عليه في المثال المذكور عندهم الصلاة والمحكوم به هو الوجوب لا فعل المكلّف وهذا ظاهر فيما هو صفة فعل المكلّف كالوجوب ونحوه، وفيما هو حكم تعليقي كالسببية ونحوها، فإنه خاطب المكلّف بأنّ فعله سبب لشيء أو شرطه أو غير ذلك. وأما فيما هو أثر لفعل المكلّف كملك الرقبة أو المتعة أو المنفعة أو ثبوت الدّين في الذمة فكون المحكوم به فعل المكلّف ليس بظاهر، بل إذا جعلنا الملك نفس الحكم فليس هاهنا ما يصلح محكوما به كذا في التلويح.

In the example just given, for logicians the subject judged upon is prayer, and the predicate judged is obligatoriness, not the legally responsible person's act. The jurists' account is clear where the ruling is an attribute of that person's act, such as obligatoriness, and where it is a conditional ruling, such as causal status: the person is addressed to the effect that his act is a cause of something, a condition of it, or the like. But where the ruling is an effect of the person's act—such as ownership of the thing itself, entitlement to conjugal enjoyment or usufruct, or the establishment of a debt as a liability—it is not evident that what is ruled about is the person's act. Indeed, if ownership itself is taken to be the ruling, there is nothing here suitable to serve as what is ruled about. Thus in al-Talwīḥ.

↑ Term directory · Sources · Headword relations

45. ḥujja حُجَّة

In the Darūrī: Authoritative evidence or argument capable of supporting a legal conclusion; its authority and degree of certainty are separate questions.

Text: §1 · §81 · §130 · §144

ḥujja · الحجة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 81. Source ↗

ما دل به على صحة الدعوى، وقيل: الحجة والدليل واحد.

That by which the correctness of a claim is indicated. It has also been said that ḥujja and dalīl are one and the same.

↑ Term directory · Sources · Headword relations

46. ḥadd حَدّ

In the Darūrī: Definition or boundary. In another context, a prescribed penalty; these senses must not be collapsed into one English rendering.

Text: §10 · §11 · §219

ḥadd · الحد

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 82. Source ↗

قول دال على ماهية الشيء، وعند أهل الله: الفصل بينك وبين مولاك، كتعبدك وانحصارك في الزمان والمكان المحدودين.

A statement indicating a thing's quiddity. Among the people of God, it is the boundary between you and your Lord, such as your condition of servanthood and your confinement within limited time and place.

في اللغة: المنع، وفي الاصطلاح: قول يشتمل على ما به الاشتراك، وعلى ما به الامتياز.

In ordinary language: prevention or restraint. Technically: a statement comprising that in virtue of which things share a feature and that in virtue of which they are distinguished.

↑ Term directory · Sources · Headword relations

47. ḥadīth حَدِيث

In the Darūrī: A transmitted report, especially one attributed to the Prophet. The discussion distinguishes its wording, content, chain and resulting degree of assent.

Text: §66 · §80 · §109 · §233

ṣaḥīḥ · الصحيح

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الصحيح. Source ↗

عند أهل الأصول: ما يتعلق به النفوذ ويعتد به.

For the legal theorists, that to which legal efficacy attaches and of which account is taken.

الصحيح عند النحاة: اسم ليس في آخره حرف علة.

For grammarians, a sound noun is a noun whose final letter is not a weak letter.

الصحيح لذاته من الحديث: هو ما يشتمل من صفات القبول على أعلاها بأن ينقله عدل تمام الضبط متصل السند غير معلل ولا شاذ. وتتفاوت رتبه بسبب تفاوت هذه الأوصاف في القوة فإن خف الضبط وتكثرت طرقه فهو الصحيح لغيره.

A report sound in itself is one possessing the highest conditions of acceptance: it is transmitted by an upright narrator of complete precision, with a continuous chain, without a hidden defect and without anomalous opposition. Its grades differ according to the differing strength of these characteristics. Where precision is lighter but its transmission routes are numerous, it is sound through corroboration.

↑ Term directory · Sources · Headword relations

48. ḥarām حَرَام

In the Darūrī: Forbidden: subject to legal prohibition. Whether a forbidden act is also invalid is a further issue.

Text: §17 · §28 · §206

ḥarām · الحرام

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الحرام. Source ↗

الممنوع منه إما بتسخير إلهي أو بشري وإما بمنع من جهة العقل أو البشرية أو من جهة من يرتسم أمره.

That from which one is prevented, either through divine or human constraint, or through a prohibition arising from reason, from human nature, or from one whose command is obeyed.

Editorial note. A broad lexical definition, not a definition confined to the juristic category of prohibition. The digital witness reads البشرية; the translation preserves this as human nature rather than silently replacing it with الشريعة.

↑ Term directory · Sources · Headword relations

49. ḥaraj حَرَج

In the Darūrī: Restriction, difficulty or legal impediment; removing a prohibition need not itself issue a positive recommendation.

Text: §60 · §203

ḥaraj · الحرج

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الحرج. Source ↗

محركا، أصله مجتمع الشيء، وتصور منه الضيق فقيل للضيق حرج وللإثم حرج.

With both consonants vowelled: its original sense is the place where something gathers densely. Constriction was conceived from this; hence constriction is called ḥaraj, and sin is also called ḥaraj.

↑ Term directory · Sources · Headword relations

50. ḥiss حِسّ

In the Darūrī: Sense perception. Actual sensory apprehension, not mere perceptibility, matters in the account of transmitted certainty.

Text: §15 · §45 · §77 · §78

iḥsās · الإحساس

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 49. Source ↗

إدراك الشيء بإحدى الحواس فإن كان الإحساس للحس الظاهر فهو المشاهدات وإن كان للحس الباطن فهو الوجدانيات.

Apprehending a thing through one of the senses. When sensation belongs to an external sense, it belongs to observations; when to an internal sense, to inner awarenesses.

↑ Term directory · Sources · Headword relations

51. ḥusn / qubḥ حُسْن / قُبْح

In the Darūrī: Goodness / badness: evaluative terms whose intrinsic, relational and revealed senses are distinguished at the beginning of the book.

Text: §11 · §12 · §13

ḥusn · الحسن

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 86. Source ↗

هو كون الشيء ملائما للطبع، كالفرح، وكون الشيء صفة كمال، كالعلم، وكون الشيء متعلق المدح، كالعبادات.

A thing's being congenial to natural disposition, as with joy; its being a perfection, as with knowledge; or its being an object of praise, as with acts of worship.

وهو ما يكون متعلق المدح في العاجل والثواب في الآجل.

That which is an object of praise in the present life and of reward in the life to come.

Editorial note. These are the complete definitions under ḥusn in this witness. Qubḥ is the paired glossary term, not an additional Arabic paragraph supplied under this source attribution.

↑ Term directory · Sources · Headword relations

52. ḥaṣr حَصْر

In the Darūrī: Restriction or exclusive limitation, conveyed by expressions such as innamā; its contrary implication is assessed contextually.

Text: §195

ḥaṣr · الحصر

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 87. Source ↗

عبارة عن إيراد الشيء على عدد معين.

Presenting something within a specified number of alternatives.

إما عقلي، وهو الذي يكون دائرا بين النفي والإثبات، ومنه الاحتمال العقلي فضلا عن الوجودي، كقولنا: الدلالة إما لفظي وإما غير لفظي. وإما استقرائي، وهو الذي لا يكون دائرا بين النفي والإثبات، بل يحصل بالاستقراء والتتبع، ولا يضره الاحتمال العقلي، بل يضره الوقوعي، كقولنا: الدلالة اللفظية إما وضعية وإما طبعية.

It is either rational, revolving around negation and affirmation—[the digital witness is defective at this point concerning the exclusion of further rational, and hence actual, alternatives]—as when we say that indication is either verbal or non-verbal; or inductive, which does not revolve around negation and affirmation but is obtained by induction and investigation. A merely rational possibility does not impair the latter, but an actual counter-instance does. The example given is: "Verbal indication is either conventional or natural."

Editorial note. The reading ومنه الاحتمال العقلي فضلا عن الوجودي is problematic; it is not silently translated as an established corrected reading. The final example, as transmitted, lists only two divisions. No missing category is attributed to this witness.

↑ Term directory · Sources · Headword relations

53. ḥaqīqa حَقِيقَة

In the Darūrī: Proper or literal usage, opposed to transferred or figurative usage; context determines which sense is established.

Text: §65 · §153 · §162 · §164

ḥaqīqa · الحقيقة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 594. Source ↗

اسم أريد به ما وضع له فعيلة من حق الشيء إذا ثبت بمعنى فاعلة أي حقيق والتاء فيه للنقل من الوصفية إلى اسمية كما في العلامة لا للتأنيث وفي الاصطلاح هي الكلمة المستعملة فيما وضعت له في اصطلاح به التخاطب.

A name by which what it was assigned to is intended. It is a faʿīla form from “a thing was established,” with an active meaning, “established”; its final tāʾ marks the transfer from adjectival to nominal use, as in ʿallāma, not feminine gender. Technically, it is a word used for what it was assigned to in the convention governing the discourse.

واحترز به عن المجاز الذي استعمل فيما وضع له في اصطلاح آخر غير اصطلاح التخاطب كالصلاة إذا استعملها المخاطب بعرف الشرع في الدعاء فإنها تكون مجازا لكون الدعاء غير ما وضعت هي له في اصطلاح الشرع لأنها في اصطلاح الشرع وضعت للأركان والأذكار المخصوصة مع إنها موضوعة للدعاء في اصطلاح اللغة.

This excludes figurative usage in which a word is used for what it was assigned to in a convention other than that governing the discourse. For example, when someone speaking according to revealed-law convention uses ṣalāh for supplication, it is figurative: supplication is not what the word was assigned to in that convention, where it denotes specified integral acts and recollections, even though in ordinary language it was assigned to supplication.

وكل لفظ يبقى على موضوعه. وقيل ما اصطلح الناس على التخاطب به.

Also: every expression remaining with its assigned meaning; or what people have conventionally agreed to use in addressing one another.

والشيء الثابت قطعا ويقينا يقال حق الشيء إذا ثبت وهو اسم للشيء المستقر في محله فإذا أطلق يراد به ذات الشيء الذي وضعه واضع اللغة في الأصل كاسم الأسد للبهيمة وهو ما كان قارا في محله والمجاز ما كان قارا في غير محله.

Also: a thing established decisively and certainly. One says “the thing is true” when it is established. It names a thing settled in its place; when used without qualification it means the very thing for which the institutor of language originally assigned the name, such as “lion” for the animal. Literal usage remains in its own place; figurative usage rests elsewhere.

Editorial note. This complete witness supplies the words lost in the earlier digital extract’s prayer example. The article’s separate senses remain identifiable.

↑ Term directory · Sources · Headword relations

54. ḥukm حُكْم

In the Darūrī: Judgement or ruling: the legal determination concerning an act, with its author, addressee and object analysed separately.

Text: §10 · §11 · §17 · §36 · §239

ḥukm · الحكم

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 91. Source ↗

إسناد أمر إلى آخر إيجابا أو سلبا، فخرج بهذا ما ليس بحكم، كالنسبة التقييدية.

Attributing one thing to another affirmatively or negatively. This excludes what is not a judgement, such as a restrictive, non-predicative relation.

↑ Term directory · Sources · Headword relations

55. khāṣṣ خَاصّ

In the Darūrī: Specific expression: wording directly designating a restricted subject, which may nevertheless indicate an intended universal through context.

Text: §165 · §191

khāṣṣ · الخاص

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 634. Source ↗

هو كل لفظ وضع لمعنى معلوم على الانفراد المراد بالمعنى الذي وضع له اللفظ عينا كان أو عرضا وبانفراد اختصاص اللفظ بذلك المعنى وإنما قيده بالانفراد ليتميز عن المشترك.

Every expression assigned to a known meaning individually. “Meaning” here is that to which the expression was assigned, whether a concrete entity or an accident; “individually” signifies the expression’s restriction to that meaning. The qualification “individually” distinguishes it from an equivocal expression.

عبارة عن التفرد يقال فلان خص بكذا أي أفرد به ولا شركة للغير فيه.

Also: singleness or exclusive possession. One says that a person was singled out for something, meaning that it was allotted to him alone and no one else shares it.

↑ Term directory · Sources · Headword relations

56. khabar خَبَر

In the Darūrī: Report: a communicated assertion assessed through its source, wording and evidential consequences.

Text: §66 · §74 · §80 · §109

khabar · الخبر

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 638. Source ↗

لفظ مجرد عن العوامل اللفظية مسند إلى ما تقدمه لفظا نحو زيد قائم أو تقديرا نحو أقائم زيد وقيل الخبر ما يصح السكوت عليه وهو الكلام المحتمل للصدق والكذب.

An expression free of overt verbal governors, predicated of something that precedes it either in utterance, as in “Zayd is standing,” or in the underlying construction, as in “Is Zayd standing?” It has also been said that a khabar is something after which one may appropriately fall silent. It is discourse admitting truth or falsehood.

وخبر إن وأخواتها هو المسند بعد دخول إن وأخواتها والخبر على ثلاثة أقسام خبر متواتر وخبر مشهور وخبر واحد.

The predicate of inna and its sisters is what is predicated after the introduction of inna or one of its sisters. Reports are of three kinds: massively transmitted, widely transmitted, and solitary.

أما الخبر المتواتر فهو كلام يسمعه من رسول الله جماعة ومنها جماعة أخرى إلى أن ينتهي إلى المتمسك.

A massively transmitted report is discourse heard from God’s Messenger by a group, and from that group by another group, continuing until it reaches the person relying upon it.

وأما الخبر المشهور فهو كلام يسمعه من رسول الله صلى الله عليه وسلم واحد ويسمعه من الواحد جماعة ومن تلك الجماعة أيضا جماعة إلى أن ينتهي إلى المتمسك والفرق هو أن جاحد الخبر المتواتر يكون كافرا بالاتفاق وجاحد الخبر المشهور مختلف فيه والأصح أن يكفر وجاحد خبر الواحد لا يكون كافرا بالاتفاق.

A widely transmitted report is discourse heard from God's Messenger, peace and blessings be upon him, by one person, from whom a group hears it, and from that group another group, continuing until it reaches the person relying upon it. The difference, according to this passage, is that denying a massively transmitted report constitutes unbelief by agreement; the status of one who denies a widely transmitted report is disputed, the view here called sounder being that it constitutes unbelief; denying a solitary report does not constitute unbelief by agreement.

Editorial note. These judgements are the historical source's formulation, not declarations about any living person. The separate article "massively transmitted report" below preserves a different qualification regarding denial of a widely transmitted report; the difference is not harmonized away.

↑ Term directory · Sources · Headword relations

57. khabar al-wāḥid خَبَر الْوَاحِد

In the Darūrī: Solitary report: a report not attaining the certainty of mass transmission; "solitary" does not necessarily mean only one transmitter at every stage.

Text: §79 · §81 · §83 · §112

khabar al-wāḥid · خبر الواحد

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 644. Source ↗

هو الحديث الذي يرويه الواحد أو الاثنان فصاعدا ما لم يبلغ الشهرة والتواتر.

A report transmitted by one person, two, or more, provided that it has not reached the level of wide transmission or massive transmission.

↑ Term directory · Sources · Headword relations

58. khaṭaʾ خَطَأ

In the Darūrī: Error: failure to attain the true ruling or perform correctly. It can be pardoned without becoming correctness.

Text: §237 · §243 · §244 · §245

khaṭaʾ · الخطأ

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 659. Source ↗

هو ما ليس للإنسان فيه قصد وهو عذر صالح لسقوط حق الله تعالى إذا حصل عن اجتهاد ويصير شبهة في العقوبة حتى لا يؤثم الخاطئ ولا يؤاخذ بحد ولا قصاص ولم يجعل عذرا في حق العباد حتى وجب عليه ضمان العدوان ووجبت به الدية كما إذا رمى شخصا ظنه صيدا أو حربيا فإذا هو مسلم أو غرضا فأصاب آدميا وما جرى مجراه كنائم ثم انقلب على رجل فقتله.

That in which a person has no intention. When it arises from conscientious judgement, it is an excuse capable of removing a claim belonging to God, exalted is He, and introduces doubt concerning punishment, so that the mistaken person is not held sinful or subjected to a prescribed penalty or retaliation. It is not made an excuse with respect to the rights of created persons: compensation for the injury remains due, and blood-money is required. For example, someone shoots at a person whom he supposes to be game or an enemy combatant, but who turns out to be a Muslim; or shoots at a target but hits a human being. Comparable cases include a sleeping person who rolls over upon a man and kills him.

Editorial note. A historical legal definition, not advice for deciding a contemporary criminal or compensation case.

↑ Term directory · Sources · Headword relations

59. khiṭāb خِطَاب

In the Darūrī: Address or discourse: the Lawgiver’s communication as directed to an addressee concerning an act; context is constitutive of understanding.

Text: §11 · §36 · §38 · §239

khaṭaba · خطب

al-Rāghib al-Iṣfahānī [E] · *al-Mufradāt fī gharīb al-Qurʾān* · s.v. خطب. Source ↗

الخَطْبُ والمُخَاطَبَة والتَّخَاطُب: المراجعة في الكلام، ومنه: الخُطْبَة والخِطْبَة لكن الخطبة تختصّ بالموعظة، والخطبة بطلب المرأة قال تعالى: وَلا جُناحَ عَلَيْكُمْ فِيما عَرَّضْتُمْ بِهِ مِنْ خِطْبَةِ النِّساءِ [البقرة/235]، وأصل الخطبة: الحالة التي عليها الإنسان إذا خطب نحو الجلسة والقعدة، ويقال من الخُطْبَة: خاطب وخطيب، ومن الخِطْبَة خاطب لا غير، والفعل منهما خَطَبَ.

والخَطْبُ: الأمر العظيم الذي يكثر فيه التخاطب، قال تعالى: فَما خَطْبُكَ يا سامِرِيُّ [طه/95]، فَما خَطْبُكُمْ أَيُّهَا الْمُرْسَلُونَ [الذاريات/31]، وفصل الخِطَاب: ما ينفصل به الأمر من الخطاب.

Khaṭb, mukhāṭaba and takhāṭub mean an exchange of speech. From this come khuṭba and khiṭba: khuṭba is specifically an admonitory address, while khiṭba is seeking a woman in marriage. God says: “There is no blame upon you for what you intimate concerning proposals to women” [Q 2:235]. The original sense of khiṭba is the state of a person when proposing, like jalsa and qaʿda [a manner of sitting]. For khuṭba one says khāṭib or khaṭīb; for khiṭba one says only khāṭib. The verb in both cases is khaṭaba.

Khaṭb also means a momentous affair concerning which much discussion occurs. God says: “What is your affair, O Sāmirī?” [Q 20:95] and “What is your affair, O messengers?” [Q 51:31]. Faṣl al-khiṭāb is speech by which an affair is decisively resolved.

Editorial note. Khuṭba (address) and khiṭba (marriage proposal) are distinguished in the translation even where the digital text leaves the repeated spelling unvowelled. This lexical root article does not itself supply Ibn Rushd’s complete legal definition of divine address.

↑ Term directory · Sources · Headword relations

60. dalāla دَلَالَة

In the Darūrī: Indication or signification: the relation by which words, understood meanings, acts or approval make a ruling intelligible.

Text: §148 · §149 · §150 · §193

dalāla · الدلالة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 103. Source ↗

هي كون الشيء بحالة يلزم من العلم به العلم بشيء آخر، والشيء الأول هو الدال، والثاني هو المدلول، وكيفية دلالة اللفظ على المعنى باصطلاح علماء الأصول محصورة في عبارة النص، وإشارة النص، ودلالة النص، واقتضاء النص. ووجه ضبطه أن الحكم المستفاد من النظم إما أن يكون ثابتا بنفس النظم، أو لا، والأول: إن كان النظم مسوقا له، فهو العبارة، وإلا فالإشارة، والثاني: إن كان الحكم مفهوما من اللفظ لغة فهو الدلالة، أو شرعا فهو الاقتضاء؛ فدلالة النص عبارة عما ثبت بمعنى النص لغة لا اجتهادا. فقوله: لغة، أي يعرفه كل من يعرف هذا اللسان بمجرد سماع اللفظ من غير تأمل، كالنهي عن التأفيف في قوله تعالى: {فلا تقل لهما أف} ، يوقف به على حرمة الضرب وغيره مما فيه نوع من الأذى بدون الاجتهاد.

A thing's being in such a state that knowing it entails knowing something else. The first thing is the indicator, and the second is what is indicated. In the terminology of the scholars of legal theory, the ways in which an expression indicates a meaning are confined to the text's direct expression, its allusion, its implication, and its required presupposition. The classification is controlled as follows: a ruling understood from the wording is either established by the wording itself or is not. In the first case, if the wording is directed towards it, this is direct expression; otherwise it is allusion. In the second case, if the ruling is understood from the expression through language, this is implication; if through revealed law, it is a required presupposition. The text's implication thus denotes what is established by its meaning linguistically, not by juristic exertion. "Linguistically" means that anyone who knows the language recognizes it merely by hearing the expression, without reflection. For example, the prohibition of saying "uff" in His statement, "Do not say 'uff' to them" [Q 17:23], makes one aware, without juristic exertion, of the prohibition of striking them and of other forms of injury.

Editorial note.
The fourfold classification is the author's later technical scheme. It must not be substituted without argument for Ibn Rushd's own arrangement of indication.

↑ Term directory · Sources · Headword relations

61. dalīl دَلِيل

In the Darūrī: Evidence, indicator or proof. Its strength may be conclusive or probable; "proof" does not always mean logical demonstration.

Text: §62 · §74 · §81 · §241

dalīl · الدليل

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 103. Source ↗

في اللغة هو المرشد، وما به الإرشاد، وفي الاصطلاح: هو الذي يلزم من العلم به العلم بشيء آخر. وحقيقة الدليل، هو ثبوت الأوسط للأصغر، واندراج الأصغر تحت الأوسط.

In ordinary language it means a guide, or that by which guidance is given. Technically, it is that whose being known entails knowledge of something else. The reality of a proof is the establishment of the middle term for the minor term and the inclusion of the minor under the middle.

↑ Term directory · Sources · Headword relations

62. dalīl al-khiṭāb دَلِيل الْخِطَاب

In the Darūrī: Contrary implication inferred from a restriction, condition or qualification. Its force depends on context, not form alone.

Text: §193 · §195

mafhūm al-mukhālafa · مفهوم المخالفة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1444. Source ↗

هو ما يفهم منه بطريق الالتزام وقيل هو أن يثبت الحكم في المسكوت على خلاف ما ثبت في المنطوق.

What is understood by implication. It is also said to be establishing a ruling concerning what is unmentioned contrary to the ruling established concerning what is expressed.

Editorial note. The first formulation is broader than the second. Both are the dictionary's formulations. Dalīl al-khiṭāb is an editorial cross-reference to this actual headword.

↑ Term directory · Sources · Headword relations

63. rāwī رَاوٍ

In the Darūrī: Narrator or transmitter. Reception, retention, probity, attribution and denial are separate aspects of assessment.

Text: §83 · §85 · §94 · §107

r-w-y · روي

al-Muṭarrizī [L] · *al-Mughrib fī tartīb al-Muʿrib* · root روي. Source ↗

الري بالكسر خلاف العطش يقال روي من الماء فهو ريان وهي ريا وهم وهن رواء. والراوية المزادة من ثلاثة جلود، ومنها قوله اشترى راوية فيها ماء وشق راوية لرجل، وفي السير ظفروا بروايا فيها ماء، وأصلها بعير السقاء لأنه يروي الماء أي يحمله. ومنه راوي الحديث وراويته والتاء للمبالغة، يقال روى الحديث والشعر رواية ورويته إياه حملته على روايته، ومنه إنا روينا في الأخبار.

Riyy, with kasra, is the opposite of thirst. One says rawiya min al-māʾ, "he drank his fill of water"; the masculine adjective is rayyān, the feminine rayyā, and the masculine and feminine plural riwāʾ. A rāwiya is a waterskin made of three hides. Hence the statements "He bought a rāwiya containing water," "He slit a man's rāwiya," and, in al-Siyar, "They captured rawāyā containing water." Originally it meant the water-carrier's camel, because it yarwī the water—that is, carries it. From this comes "transmitter of a report," rāwī al-ḥadīth, and its intensive form rāwiya, whose tāʾ marks intensity. One says rawā al-ḥadītha wa-l-shiʿra riwāyatan, "he transmitted the report and poetry"; rawwaytuhu iyyāhu means "I caused him to transmit it." Hence: "We were given to transmit in the reports" (innā ruwwīnā fī l-akhbār).

↑ Term directory · Sources · Headword relations

64. rukhṣa رُخْصَة

In the Darūrī: Concession: a legally warranted relaxation under an impediment or need; not mere indulgence outside the Law.

Text: §58 · §60

rukhṣa · الرخصة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 719. Source ↗

في اللغة اليسر والسهولة وفي الشريعة اسم لما شرع متعلقا بالعوارض أي ما استبيح بعذر مع قيام الدليل المحرم وقيل هي ما بني أعذار العباد عليه.

In ordinary language: ease and facility. In revealed law: the name of what is legislated in relation to incidental circumstances—that is, what is permitted because of an excuse despite the continuing presence of the prohibiting proof. It is also said to be that upon which people's excuses are founded.

↑ Term directory · Sources · Headword relations

65. ziyāda زِيَادَة

In the Darūrī: Addition: extra wording in a report, an added legal requirement, or linguistic surplus; these distinct contexts have different rules.

Text: §108 · §118 · §154

al-ziyāda · الزيادة

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الزيادة. Source ↗

استحداث أمر لم يكن في موجود الشيء، قاله الحرالي. وقال الراغب: أن ينضم إلى ما عليه الشيء في نفسه شيء آخر، وذلك قد تكون تارة مذمومة كالزيادة على الكفاية كزائد الأصابع أو قوائم الدابة، وقد تكون محمودة نحو {للذين أحسنوا الحسنى وزيادة}، وهي النظر إلى وجه الله تعالى.

The introduction of something that was not present in the thing's existing state, according to al-Ḥarāllī. Al-Rāghib says: the joining of something else to what the thing already has in itself. This can sometimes be blameworthy, as with an addition beyond sufficiency, such as extra fingers or extra legs on an animal. It can also be praiseworthy, as in "For those who do good there is the fairest reward and an increase" [Q 10:26]; the increase is beholding the face of God Most High.

↑ Term directory · Sources · Headword relations

66. sibār سِبَار

In the Darūrī: Method of examination or disciplined inquiry in §2, named by analogy with a physical instrument used to probe or measure. Its methodological function is to test reasoning alongside a guiding standard (qānūn); the literal instrument sense belongs in the lexical note.

Text: §2

sabr / sibr / sibār · سبر

Ibn Manẓūr [L] · *Lisān al-ʿArab* · 7:108–109. Source ↗

السبر: التجربة سبر الشيء سبرا حزره وخبره. واسبر لي ما عنده أي اعلمه، والسبر: استخراج كنه الأمر. والسبر: مصدر سبر الجرح يسبره ويسبره سبرا نظر مقداره وقاسه ليعرف غوره، ومسبرته: نهايته. وفي حديث الغار: قال له أبو بكر: لا تدخله حتى أسبره قبلك أي أختبره وأعتبره وأنظر هل فيه أحد أو شيء يؤذي. والمسبار والسبار ما سبر به وقدر به غور الجراحات؛ قال يصف جرحها: ترد السبار على السابر. التهذيب: والسبار فتيلة تجعل في الجرح؛ وأنشد: ترد على السابري السبارا.

Sabr means testing. Sabara al-shayʾa sabran means that he estimated and examined a thing. Usbur lī mā ʿindahu means: ascertain for me what he has. Sabr also means bringing out the innermost nature of a matter. It is the verbal noun of sabara al-jurḥa, with either yasburu or yasbiru: he examined and measured a wound to discover its depth. Its masbara is its farthest extent. In the report about the cave, Abū Bakr said to him, "Do not enter it until I have examined it before you": that is, tested and inspected it, looking to see whether it contained anyone or anything harmful. Misbār and sibār are instruments used to probe and measure the depth of wounds. A poet, describing her wound, says: "It sends the probe back against the one probing." Al-Tahdhīb says that sibār is a wick placed in a wound, and quotes: "It sends the probe back against the prober."

وكل أمر زرته فقد سبرته وأسبرته. يقال: حمدت مسبره ومخبره. والسبر والسبر: الأصل واللون والهيئة والمنظر. قال أبو زياد الكلابي: وقفت على رجل من أهل البادية بعد منصرفي من العراق فقال: أما اللسان فبدوي، وأما السبر فحضري؛ قال: السبر، بالكسر، الزي والهيئة. قال: وقالت بدوية أعجبنا سبر فلان أي حسن حاله وخصبه في بدنه، وقالت: رأيته سيئ السبر إذا كان شاحبا مضرورا في بدنه، فجعلت السبر بمعنيين، ويقال: إنه لحسن السبر إذا كان حسن السحناء والهيئة؛ والسحناء: اللون.

وفي الحديث: يخرج رجل من النار وقد ذهب حبره وسبره؛ أي هيئته. والسبر: حسن الهيئة والجمال؛ وفلان حسن الحبر والسبر إذا كان جميلا حسن الهيئة؛ قال الشاعر: أنا ابن أبي البراء، وكل قوم لهم من سبر والدهم رداء / وسبري أنني حر نقي وأني لا يزايلني الحياء.

والمسبور: الحسن السبر. وفي حديث الزبير أنه قيل له: مر بنيك حتى يتزوجوا في الغرائب فقد غلب عليهم سبر أبي بكر ونحوله؛ قال ابن الأعرابي: السبر هاهنا الشبه، قال: وكان أبو بكر دقيق المحاسن نحيف البدن فأمره الرجل أن يزوجهم الغرائب ليجتمع لهم حسن أبي بكر وشدة غيره. ويقال: عرفته بسبر أبيه أي بهيئته وشبهه؛ وقال الشاعر: أنا ابن المضرحي أبي شليل وهل يخفى على الناس النهار؟ / علينا سبره، ولكل فحل على أولاده منه نجار.

والسبر أيضا: ماء الوجه، وجمعها أسبار. والسبر والسبر: حسن الوجه. والسبر: ما استدل به على عتق الدابة أو هجنتها. أبو زيد: السبر ما عرفت به لؤم الدابة أو كرمها أو لونها من قبل أبيها. والسبر أيضا: معرفتك الدابة بخصب أو بجدب. والسبرات: جمع سبرة وهي الغداة الباردة بسكون الباء، وقيل: هي ما بين السحر إلى الصباح، وقيل: ما بين غدوة إلى طلوع الشمس.

Any matter you have visited [the digital witness reads zurtahu] you have probed or investigated. One says: “I approved what testing and examination disclosed about him.” Sibr and sabr mean origin, complexion, appearance, and outward aspect. Abū Ziyād al-Kilābī said: “After returning from Iraq I stopped beside a Bedouin, who said: ‘Your speech is Bedouin, but your appearance is urban.’” Sibr, with kasra, means dress and appearance. A Bedouin woman said: “We admired so-and-so’s sibr,” meaning his good condition and bodily flourishing; she said, “I saw him with poor sibr,” when he was pale and physically afflicted. Thus she used sibr in two senses. Someone is said to have good sibr when his complexion and appearance are good; saḥnāʾ means complexion.

In a report: “A man will emerge from the Fire after his ḥibr and sibr have disappeared”—that is, his appearance. Sibr means beauty and a fine appearance. A person has good ḥibr and sibr when he is handsome and well-looking. The poet says: “I am the son of Abū al-Barāʾ; every people wears a cloak of its father’s character. / My character is that I am free-born and unstained, and modesty never leaves me.”

Masbūr means someone of fine sibr. In the report about al-Zubayr, he was told: “Tell your sons to marry outside their kin, for Abū Bakr’s appearance and slenderness have become predominant in them.” Ibn al-Aʿrābī explained that sibr here means resemblance. Abū Bakr had delicate features and a slender body; the man therefore told him to have his sons marry outsiders, so that their descendants might combine Abū Bakr’s beauty with others’ strength. One says: “I recognized him by his father’s sibr,” meaning his appearance and resemblance. The poet says: “I am the son of the noble Abū Shulayl; can daylight be hidden from people? / His appearance is upon us: every sire leaves upon his offspring a stamp of his own stock.”

Sibr also means the lustre of the face; its plural is asbār. Sibr and sabr mean facial beauty. Sibr is an indication by which an animal’s pure breeding or mixed breeding is inferred. Abū Zayd says it is what enables one to recognize an animal’s inferior or noble breeding, or its colour as inherited from its sire. It also means recognizing whether an animal is well-fed or undernourished. Sabarāt is the plural of sabra—with the bāʾ unvowelled—a cold morning. Some say it is the interval between the last part of the night and morning; others, between early morning and sunrise.

وفي الحديث: فيم يختصم الملأ الأعلى يا محمد؟ فسكت ثم وضع الرب تعالى يده بين كتفيه فألهمه إلى أن قال: في المضي إلى الجمعات وإسباغ الوضوء في السبرات؛ وقال الحطيئة: عظام مقيل الهام غلب رقابها يباكرن حد الماء في السبرات. يعني شدة برد الشتاء والسنة.

In a report: “Over what does the highest assembly dispute, Muḥammad?” He remained silent; then the Lord Most High placed His hand between his shoulders and inspired him, until he said: “Over going to the Friday congregations and completing ablution on cold mornings.” Al-Ḥuṭayʾa said: “Large at the resting-place of their heads, thick-necked, they meet the water’s cutting cold early on chilly mornings.” He means the severity of the cold in winter and a year of hardship.

وفي حديث زواج فاطمة عليها السلام فدخل عليها رسول الله، صلى الله عليه وسلم، في غداة سبرة؛ وسبرة بن العوال مشتق منه، والسبر من أسماء الأسد، وقال المؤرج في قول الفرزدق: بجنبي خلال يدقع الضيم منهم خوادر في الأخياس، ما بينها سبر. قال: معناه ما بينها عداوة. قال: والسبر العداوة، قال: وهذا غريب.

In the report of Fāṭima’s marriage, peace be upon her: the Messenger of God, God bless him and grant him peace, entered her room on a cold morning. The name Sabra ibn al-ʿAwwāl is derived from this. Sibr is also a name for the lion. Al-Muʾarrij, discussing al-Farazdaq’s verse, “On the two sides of Khilāl, lions concealed in thickets repel oppression from among them; there is no sibr between them,” said that this means there is no hostility between them. Sibr means hostility; he added that this usage is rare.

وفي الحديث: لا بأس أن يصلي الرجل وفي كمه سبورة؛ قيل: هي الألواح من الساج يكتب فيها التذاكير، وجماعة من أصحاب الحديث يروونها ستورة، قال: وهو خطأ. والسبرة: طائر تصغيره سبيرة، وفي المحكم السبر: طائر دون الصقر، وأنشد الليث: حتى تعاوره العقبان والسبر.

In a report: there is no harm in a man praying with a sabbūra in his sleeve. These are said to be teak tablets on which memoranda are written. A number of transmitters read it as sattūra; he says this is an error. Sabra is a bird, whose diminutive is subayra. In al-Muḥkam, sibr is a bird smaller than a falcon. Al-Layth quotes: “Until the eagles and the sibr took turns assailing it.”

والسابري من الثياب الرقاق؛ قال ذو الرمة: فجاءت بنسج العنكبوت كأنه على عصويها، سابري مشبرق. وكل رقيق: سابري. وعرض سابري: رقيق، ليس بمحقق، وفي المثل عرض سابري؛ يقوله من يعرض عليه الشيء عرضا لا يبالغ فيه لأن السابري من أجود الثياب يرغب فيه بأدنى عرض؛ قال الشاعر: بمنزلة لا يشتكي السل أهلها وعيش كمثل السابري رقيق.

Sābirī is a kind of fine cloth. Dhū al-Rumma says: “She brought a spider’s weaving, as though on her two little sticks it were a sābirī fabric torn to shreds.” Anything fine is called sābirī. An ʿarḍ sābirī is a slight offer, not one made insistently. In the proverb, “a sābirī offer,” the speaker is someone to whom a thing is offered without much insistence: sābirī is among the finest fabrics and attracts desire with the slightest offer. The poet says: “In a dwelling whose people do not complain of consumption, with a life as delicate as sābirī cloth.”

وفي حديث حبيب بن أبي ثابت: رأيت على ابن عباس ثوبا سابريا أستشف ما وراءه. كل رقيق عندهم: سابري، والأصل فيه الدروع السابرية منسوبة إلى سابور. والسابري: ضرب من التمر؛ يقال: أجود تمر الكوفة النرسيان والسابري. والسبرور: الفقير كالسبروت؛ حكاه أبو علي؛ وأنشد: تطعم المعتفين مما لديها من جناها والعائل السبرورا. قال ابن سيده: فإذا صح هذا فتاء سبروت زائدة.

Ḥabīb ibn Abī Thābit reported: “I saw Ibn ʿAbbās wearing a sābirī garment through which I could see.” They call anything fine sābirī. The original expression is “Sāburian shirts of mail,” named after Sābūr. Sābirī is also a kind of date: it is said that the finest dates of Kufa are narsiyān and sābirī. Sabrūr means a poor person, like sabrūt. Abū ʿAlī records it and cites: “She feeds those who seek her gifts from the fruit she has gathered, and the needy, destitute man.” Ibn Sīda says: if this is sound, the tāʾ in sabrūt is additional.

وسابور: موضع أعجمي معرب؛ وقوله: ليس بجسر سابور أنيس يؤرقه أنينك، يا معين. يجوز أن يكون اسم رجل وأن يكون اسم بلد. والسبارى: أرض؛ قال لبيد: درى بالسبارى حبة إثر مية مسطعة الأعناق بلق القوادم.

Sābūr is a foreign place-name adapted into Arabic. In the verse, “At Sābūr’s bridge there is no companion whom your groaning keeps awake, Muʿīn,” it can be a man’s name or a town’s name. Al-Subārā is a tract of land. Labīd says: “[Birds] at al-Subārā, a grain after a hundred [the opening words are textually uncertain], their necks raised, their foremost flight-feathers variegated.”

Editorial note. This is the complete root article, not a selected medical or methodological excerpt. The instrument sibār, the act sabr, bodily appearance, cold mornings and other senses remain distinct. The witness reads zurtahu (“visited it”) where lexical context suggests ruztahu (“tested it”); no unmarked emendation is made. The final verse’s first hemistich is textually uncertain: the literal English rendering is provisional. The reported traditions are translated as lexical witnesses, without a separate authentication judgement. Sabr wa-taqsīm as a technical inferential procedure requires its own technical entry and is not identified with every root sense.

Source notes

“Do not enter it until I have examined it before you”

Ibn al-Athīr, al-Nihāya, 2:333, s.v. s-b-r, records the same wording. An independent transmission for this sentence has not been established in the present edition.

Online witness: 1

“A man will emerge from the Fire after his ḥibr and sibr have disappeared”

Abū ʿUbayd, Gharīb al-ḥadīth, 1:221–222, no. 52, records disagreement over the attribution: some transmit it from the Prophet, others as a saying of Muṭarrif b. ʿAbd Allāh b. al-Shikhkhīr. Cf. Ibn al-Athīr, al-Nihāya, 2:333, s.v. s-b-r.

Online witnesses: 1 · 2

“Tell your sons to marry outside their kin, for Abū Bakr’s appearance and slenderness have become predominant in them.”

Cf. Ibn al-Athīr, al-Nihāya, 2:333, s.v. s-b-r. The speaker is an unnamed adviser to al-Zubayr; an independent transmission remains unverified.

Online witness: 1

“Over going to the Friday congregations and completing ablution on cold mornings.”

Cf. Jāmiʿ al-Tirmidhī 3233–3235. The lexicon has “Friday congregations” and “cold mornings”; these Tirmidhī versions have “congregations” and “hardships”. For the sabarāt wording, see Ibn al-Athīr, al-Nihāya, 2:333, s.v. s-b-r.

Online witnesses: 1 · 2 · 3 · 4

“the Messenger of God, God bless him and grant him peace, entered her room on a cold morning.”

Ibn al-Athīr, al-Nihāya, 2:333, s.v. s-b-r, records this wording concerning Fāṭima’s marriage. An independent transmission has not been established in the present edition.

Online witness: 1

“there is no harm in a man praying with a sabbūra in his sleeve.”

Cf. Ibn al-Athīr, al-Nihāya, 2:334, s.v. s-b-r. The speaker is not identified in this lexical report; no independent transmission is established here.

Online witness: 1

“I saw Ibn ʿAbbās wearing a sābirī garment through which I could see.”

Ibn al-Athīr, al-Nihāya, 2:334, s.v. s-b-r, records this athar of Ḥabīb b. Abī Thābit concerning Ibn ʿAbbās. A source with an isnād independent of the lexical tradition has not been established.

Online witness: 1

↑ Term directory · Sources · Headword relations

67. sabab سَبَب

In the Darūrī: Cause, occasion or sign. A legal cause may manifest a ruling without producing it as a physical cause produces an effect.

Text: §54 · §55 · §176

sabab · السبب

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 769. Source ↗

في اللغة اسم لما يتوصل به إلى المقصود وفي الشريعة عبارة عما يكون طريقا للوصول إلى الحكم غير مؤثر فيه والسبب التام هو الذي يوجد المسبب بوجوده فقط والسبب الثقيل هو حرفان متحركان نحو لك ولم والسبب الخفيف هو متحرك بعده ساكن نحو قم ومن والسبب الغير التام هو الذي يتوقف وجود المسبب عليه لكن لا يوجد المسبب بوجوده فقط.

In ordinary language: the name of what enables an intended end to be reached. In revealed law: what constitutes a route to a ruling without itself producing it. A complete cause is one through whose existence alone the caused thing exists. In prosody, a heavy sabab comprises two vowelled letters, as in laka and lima; a light sabab comprises a vowelled letter followed by a quiescent one, as in qum and min. An incomplete cause is something upon which the caused thing's existence depends, although the latter does not exist through its presence alone.

↑ Term directory · Sources · Headword relations

68. sabr wa-taqsīm سَبْر وَتَقْسِيم

In the Darūrī: Testing and division: enumerating and examining candidates for a relevant ground, then eliminating those not warranted.

Text: §220 · §221

sabr / sibr / sibār · سبر. Complete article printed under sibār. full root article; includes sibār explicitly.

↑ Term directory · Sources · Headword relations

69. sunna سُنَّة

In the Darūrī: Prophetic normative teaching and practice; "it is Sunna" as a transmission formula must be assessed for its source and scope.

Text: §66 · §71 · §114

sunna · السنة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 805. Source ↗

في اللغة الطريقة مرضية كانت أو غير مرضية والعادة وفي الشريعة هي الطريقة المسلوكة في الدين من غير افتراض وجوب فالسنة ما واظب النبي ص - عليها مع الترك أحيانا فإن كانت المواظبة المذكورة على سبيل العبادة فسنن الهدى وإن كانت على سبيل العادة فسنن الزوائد.

In ordinary language: a way, whether approved or not, and a habit. In revealed law: a way followed in religion without an imposed obligation. A sunna is what the Prophet practised regularly while sometimes omitting it. If that regular practice was devotional, these are the practices of guidance; if habitual, they are supplementary practices.

فسنة الهدى ما يكون إقامتها تكميلا للدين وهي التي تتعلق بتركها كراهة أو إساءة وسنة الزوائد هي التي أخذها هدى أي إقامتها حسنة ولا يتعلق بتركها كراهة ولا إساءة كسير النبي ص - في قيامه وقعوده ولباسه وأكله.

A practice of guidance is one whose observance completes religion and whose omission involves disapproval or blame. A supplementary practice is one whose adoption is guidance—that is, whose observance is good—but whose omission involves neither disapproval nor blame, such as the Prophet's manner of standing, sitting, dressing, and eating.

وهي مشترك بين ما صدر عن النبي ص - من قول أو فعل أو تقرير وبين ما واظب النبي ص - عليه بلا وجوب وهي نوعان.

The word is shared between what proceeds from the Prophet as statement, action, or approval, and what he regularly performed without obligation. It is of two kinds:

سنة هدى ويقال لها السنة المؤكدة كالأذان والإقامة والسنن والرواتب والمضمضة والاستنشاق على رأي وحكمه كالواجب المطالبة في الدنيا إلا أن تاركه يعاقب وتاركها لا يعاقب وسنن الزوائد كأذان المنفرد والسواك والأفعال المعهودة في الصلاة وفي خارجها وتاركها غير معاقب.

A practice of guidance, also called an emphasized sunna, such as the call to prayer, the commencement call, regular supererogatory prayers, and—according to one view—rinsing the mouth and nose. Its ruling resembles the obligatory in being demanded in this world, except that one who omits the obligatory is punished whereas one who omits it is not. Supplementary practices include the call to prayer by someone praying alone, using the tooth-stick, and familiar acts within and outside prayer; their omission is not punished.

Editorial note. These are the dictionary's school-specific formulations, not a universal statement of every madhhab's classification.

↑ Term directory · Sources · Headword relations

70. shubha شُبْهَة

In the Darūrī: Ground of uncertainty or apparent likeness. Its exact force varies between evidential doubt and a proposed analogy.

Text: §92 · §218 · §238

shubha · الشبهة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 815. Source ↗

هو ما لم يتيقن كونه حراما أو حلالا.

That of which it is not certain whether it is prohibited or lawful.

↑ Term directory · Sources · Headword relations

71. sharṭ شَرْط

In the Darūrī: Condition: a qualification for a legal ruling or valid performance; not every legal condition is a condition of physical possibility.

Text: §23 · §49 · §50 · §56 · §195

sharṭ · الشرط

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 822. Source ↗

تعليق شيء بشيء بحيث إذا وجد الأول وجد الثاني وقيل الشرط ما يتوقف عليه وجود الشيء ويكون خارجا عن ماهيته ولا يكون مؤثرا في وجوده وقيل الشرط ما يتوقف ثبوت الحكم عليه.

Making one thing depend upon another so that, when the first exists, the second exists. It is also said to be that upon which a thing's existence depends, while lying outside its quiddity and not producing its existence; or that upon which establishment of a ruling depends.

وفي اللغة عبارة عن العلامة ومنه أشراط الساعة والشروط في الصلاة وفي الشريعة عبارة عما يضاف الحكم إليه وجودا عند وجوده لا وجوبا.

In ordinary language: a sign, whence the signs of the Hour and the conditions of prayer. In revealed law: that to which a ruling is related in respect of its occurring when the condition occurs, not as something that necessitates it.

Editorial note. These distinct formulations should not be compressed into one modern necessary-and-sufficient-condition definition.

↑ Term directory · Sources · Headword relations

72. sharʿ شَرْع

In the Darūrī: Revealed Law or revelation as normative authority; distinguish its address from the jurist's reconstruction of a ruling.

Text: §11 · §13 · §37 · §239

sharʿ · الشرع

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 824. Source ↗

في اللغة عبارة عن البيان والإظهار يقال شرع الله كذا أي جعله طريقا ومذهبا ومنه المشرعة.

In ordinary language: clarification and making manifest. One says "God legislated such-and-such," meaning that He made it a path and a way. From the same root comes mashraʿa, an access to water.

↑ Term directory · Sources · Headword relations

73. ṣaḥīḥ / ṣiḥḥa صَحِيح / صِحَّة

In the Darūrī: Valid / validity; also soundness of a report in transmission. The intended legal or hadith sense must be specified.

Text: §56 · §93 · §205

ṣiḥḥa · الصحة

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الصحة. Source ↗

حالة أو ملكة بها تصدر الأفعال عن موضعها سليمة. وعند الفقهاء: موافقة الفعل ذي الوجهين وقوعا الشرع وأن تسقط القضاء. وقيل الصحة في العبادة: إسقاط القضاء وفي المصباح: الصحة في البدن حالة طبيعية تجري أفعاله على المجرى الطبيعي، وقد استعيرت الصحة للمعاني فقيل صحت الصلاة إذا أسقطت القضاء، وصح العقد إذا ترتب عليه أثره وصح القول إذا طابق الواقع.

A state or settled capacity by which actions issue soundly from their proper seat. For jurists, it is an act capable of occurring in either of two ways conforming to the Law, and its removing the requirement of make-up performance. It is also said that validity in worship means removal of make-up performance. In al-Miṣbāḥ: health in the body is a natural state in which its functions follow their natural course. Soundness has been extended metaphorically to meanings: a prayer is said to be valid when it removes the requirement of make-up performance; a contract is valid when its legal effect follows from it; and a statement is sound when it corresponds to reality.

Editorial note. The juristic sentence is syntactically compressed in this digital witness; "either of two ways" refers to conformity or nonconformity to the Law. The article reports several definitions rather than declaring them interchangeable.

ṣaḥīḥ · الصحيح. Complete article printed under ḥadīth. complete adjacent ṣaḥīḥ articles: legal, grammatical and hadith senses, individually distinguished.

↑ Term directory · Sources · Headword relations

74. ṣalāḥ صَلَاح

In the Darūrī: Welfare, right ordering or fitness; its appearance in a proposed rationale must be disciplined by the Law's recognition.

Text: §19 · §146 · §217

ṣalāḥ · الصلاح

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الصلاح. Source ↗

ضد الفساد، ويختصان في أكثر الاستعمال بالأفعال، وقوبل في القرآن تارة بالفساد وأخرى بالتشبيه.

The contrary of corruption. In most usage both are particularly applied to actions. In the Qurʾān, it is contrasted at one time with corruption and at another with [bad action].

Editorial note. The digital witness reads بالتشبيه (“with comparison”), which does not fit the stated Qurʾānic contrast. The translation follows the contextual reading بالسيئة (“with bad action”), as supported by the parallel in al-Rāghib under ṣalaḥa and Q 9:102. The transmitted Arabic remains visible.

↑ Term directory · Sources · Headword relations

75. ṣināʿa صِنَاعَة

In the Darūrī: An intellectual art or disciplined expertise: mastery of reasoned operations according to their proper standards. In the Ḍarūrī, especially the canons and conditions governing valid inference from legal sources (§§2–6), not the manufacture of divine law. Fiqh is directed to action; uṣūl regulates how legal determinations are reached.

Text: §1 · §2 · §6 · §9

ṣināʿa · الصناعة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 880. Source ↗

ملكة نفسانية تصدر عنها الأفعال الاختيارية من غير روية وقيل المتعلق بكيفية العمل.

A disposition of the soul from which voluntary actions proceed without deliberation; or, it is said, what concerns the manner of acting.

Editorial note.
Editorial comparison (not wording by al-Jurjānī or Ibn Rushd): In al-Ḍarūrī §§2–6, ṣināʿa denotes a disciplined intellectual art whose distinctive subject is the qawānīn and aḥwāl of valid legal inference. Ibn Rushd distinguishes this methodological knowledge from fiqh as knowledge directed towards action (§6); he also recognises that early jurists exercised its capacity before its rules were systematically articulated (§§3–4). In §231, the mujtahid requires the relevant canons and conditions. In §§237–241, Ibn Rushd rejects the idea that personal inclination creates the correctness of a legal ruling: evidence has its own indicative force. Juristic conclusions are formulated through inquiry, but the jurist does not manufacture the authority of revealed law. Later lexicographical accounts of ṣināʿa as acquired malaka or knowledge of how to operate are comparative evidence, not Ibn Rushd’s own explicit definition. Al-Fārābī’s description of logic as an intellectual art, Avicenna’s understanding of rational expertise, and the Scholastic distinction between ars and prudentia are useful philosophical comparisons; no direct borrowing is asserted.

↑ Term directory · Sources · Headword relations

76. ṣīgha صِيغَة

In the Darūrī: Verbal form: grammatical or conventional expression as distinct from the meaning understood in context.

Text: §149 · §151 · §197 · §223

ṣawgh · صوغ

Aḥmad b. Muḥammad al-Fayyūmī [L] · *al-Miṣbāḥ al-munīr fī gharīb al-Sharḥ al-kabīr* · Kitāb al-ṣād, root ṣ-w-gh. Source ↗

صَاغَ الرَّجُلُ الذَّهَبَ يَصُوغُهُ صَوْغًا جَعَلَهُ حَلْيًا فَهُوَ صَائِغٌ وَصَوَّاغٌ وَهِيَ الصِّيَاغَةُ وَصَاغَ الْكَذِبَ صَوْغًا اخْتَلَقَهُ وَالصِّيغَةُ أَصْلُهَا الْوَاوُ مِثْلُ الْقِيمَةِ وَصِيغَةُ اللَّهِ خِلْقَتُهُ وَالصِّيغَةُ الْعَمَلُ وَالتَّقْدِيرُ وَهَذَا صَوْغُ هَذَا إذَا كَانَ عَلَى قَدْرِهِ وَصِيغَةُ الْقَوْلِ كَذَا أَيْ مِثَالُهُ وَصُورَتُهُ عَلَى التَّشْبِيهِ بِالْعَمَلِ وَالتَّقْدِيرِ.

Ṣāgha al-rajulu al-dhahaba, yaṣūghuhu, ṣawghan: the man fashioned gold into jewellery. He is a ṣāʾigh or ṣawwāgh, and the craft is ṣiyāgha. Ṣāgha al-kadhiba ṣawghan means that he fabricated a lie. The original radical of ṣīgha is wāw, as in qīma. Ṣīghat Allāh means His creation or fashioning. Ṣīgha also means workmanship and determining a form or measure. “This is the ṣawgh of that” is said when it corresponds to its measure. “The ṣīgha of the utterance is such-and-such” means its pattern and form, by analogy with workmanship and determining a form or measure.

↑ Term directory · Sources · Headword relations

77. ḍidd ضِدّ

In the Darūrī: Contrary: opposed acts or qualities. Whether alternatives exhaust the possibilities is crucial to the argument about commands and prohibitions.

Text: §26 · §32 · §33 · §34 · §52

ḍiddān · الضدان

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 894. Source ↗

صفتان وجوديتان يتعاقبان في موضع واحد يستحيل اجتماعهما كالسواد والبياض والفرق بين الضدين والنقيضين أن النقيضين لا يجتمعان ولا يرتفعان كالعدم والوجود والضدين لا يجتمعان ولكن يرتفعان كالسواد والبياض.

Two positive attributes that alternate in one subject and cannot coexist, such as blackness and whiteness. Contraries differ from contradictories: contradictories can neither coexist nor both be absent, as with nonexistence and existence; contraries cannot coexist but can both be absent, as with blackness and whiteness.

↑ Term directory · Sources · Headword relations

78. ḍarūra ضَرُورَة

In the Darūrī: Necessity or constraint. In practical law it can ground a concession; this is distinct from the epistemic sense of necessary knowledge.

Text: §53 · §60

ḍarūra · الضرورة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 137. Source ↗

مشتقة من الضرر، وهو النازل مما لا مدفع له.

Derived from ḍarar (“harm”): an affliction that descends upon someone and cannot be averted.

↑ Term directory · Sources · Headword relations

79. ḍarūrī ضَرُورِيّ

In the Darūrī: Necessary; in knowledge, immediately or inevitably known rather than acquired through a consciously constructed argument. In the title, what is indispensable to the craft.

Text: §1 · §2 · §15 · §76

ḍarūrī · الضروري

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الضروري. Source ↗

ما اتصلت الحاجة إليه إلى حد الضرورة كحفظ الدين فالنفس فالعقل فالنسب، فالمال فالعرض.

That for which need reaches the degree of necessity, such as preserving religion, then life, then intellect, then lineage, then property, then honour.

Editorial note. This is the necessities-of-welfare sense, not a claim that the author has here defined immediately evident knowledge.

badīhī · البديهي

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. البديهي. Source ↗

ما لا يتوقف حصوله على نظر وكسب سواء احتاج لشيء آخر من نحو حدس أو تجربة أو لا فيرادف الضروري، وقد يراد به ما لا يحتاج بعد توجه العقل إلى شيء أصلا فيكون أخص من الضروري كتصور الحرارة والبرودة والتصديق بأن النفي والإثبات لا يجتمعان ولا يرتفعان.

That whose acquisition does not depend on inquiry and acquisition, whether or not it needs something else, such as intuition or experience. In this sense it is synonymous with necessary knowledge. It may instead mean that which, once the intellect has attended to it, needs nothing further at all; it is then narrower than the necessary. Examples are conceiving heat and cold, and assenting that negation and affirmation can neither both hold nor both fail to hold.

↑ Term directory · Sources · Headword relations

80. ḍamīr ضَمِير

In the Darūrī: Pronoun: an expression whose referent can be determinate or ambiguous; reference is one component of verbal indication.

Text: §152 · §157 · §158

muḍmar · المضمر

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1393. Source ↗

ما وضع لمتكلم أو مخاطب أو غائب تقدم ذكره لفظا نحو زيد ضربت غلامه أو معنى بأن ذكر مشتقه كقوله تعالى اعدلوا هو أقرب للتقوى المائدة 9 أي العدل أقرب لدلالة اعدلوا عليه أو حكما أي ثابتا في الذهن كما في ضمير الشأن نحو هو زيد قائم.

An expression assigned to a speaker, an addressee, or an absent person previously mentioned: either expressly, as in “Zayd—I struck his servant”; by implication, through mention of a derivative, as in God’s saying “Act justly: it is nearer to godfearingness”—that is, justice is nearer, because “act justly” indicates it; or by an assumed presence in the mind, as with the pronoun introducing a state of affairs, “It is: Zayd is standing.”

وعبارة عن اسم يتضمن الإشارة إلى المتكلم أو المخاطب أو غيرهما بعدما سبق ذكره إما تحقيقا أو تقديرا.

Also: a noun involving reference to the speaker, the addressee, or another, following an actual or understood prior mention.

والمضمر المتصل ما لا يستقل بنفسه في التلفظ. والمضمر المنفصل ما يستقل بنفسه.

A conjunct pronoun cannot stand independently in pronunciation; a disjunct pronoun can.

Editorial note. The actual headword is muḍmar, not ḍamīr. The Qurʾanic verse is Q 5:8; the electronic witness prints “9”. This grammatical article does not establish every legal use of an implicit element.

↑ Term directory · Sources · Headword relations

81. ṭaliba طَلِبَة

In the Darūrī: Request or petition, one of the forms of complete discourse. This is the noun for a request, not the plural ṭalaba, “students.”

Text: §152 · §197

ṭalab · طلب

Aḥmad b. Muḥammad al-Fayyūmī [L] · *al-Miṣbāḥ al-munīr fī gharīb al-Sharḥ al-kabīr* · Kitāb al-ṭāʾ, root ṭ-l-b. Source ↗

طَلَبْتُهُ أَطْلُبُهُ طَلَبًا فَأَنَا طَالِبٌ وَالْجَمْعُ طُلَّابٌ وَطَلَبَةٌ مِثْلُ كَافِرٍ وَكُفَّارٍ وَكَفَرَةٍ وَطَالِبُونَ وَامْرَأَةٌ طَالِبَةٌ وَنِسَاءٌ طَالِبَاتٌ وَطَوَالِبُ وَاطَّلَبْتُ عَلَى افْتَعَلْتُ بِمَعْنَى طَلَبْتُ وَبِاسْمِ الْفَاعِلِ سُمِّيَ عَبْدُ الْمُطَّلِبِ وَيُنْسَبُ إلَى الثَّانِي وَالْمَطْلَبُ يَكُونُ مَصْدَرًا وَمَوْضِعَ الطَّلَبِ وَالطِّلَابُ مِثْلُ كِتَابٍ مَا تَطْلُبُهُ مِنْ غَيْرِكَ وَهُوَ مَصْدَرٌ فِي الْأَصْلِ تَقُولُ طَالَبْتُهُ مُطَالَبَةً وَطِلَابًا مِنْ بَابِ قَاتَلَ وَالطَّلِبَةُ وِزَانُ كَلِمَةٍ وَالْجَمْعُ طَلَبَاتٌ مِثْلُهُ وَتَطَلَّبْتُ الشَّيْءَ تَبَغَّيْتُهُ وَأَطْلَبْتُ زَيْدًا بِالْأَلِفِ أَسْعَفْتُهُ بِمَا طَلَبَ وَأَطْلَبْتُهُ أَحْوَجْتُهُ إلَى الطَّلَبِ.

Ṭalabtuhu, aṭlubuhu, ṭalaban: I sought it; I am a ṭālib. Its plurals are ṭullāb and ṭalaba, like kāfir, kuffār and kafara, and also ṭālibūn. A woman is ṭāliba; women are ṭālibāt or ṭawālib. Iṭṭalabtu, on the pattern iftaʿaltu, has the meaning of ṭalabtu. The active participle supplied the name ʿAbd al-Muṭṭalib; the relational adjective is formed from the second component. Maṭlab can be a verbal noun or the place of seeking. Ṭilāb, on the pattern kitāb, is what you request from another; it is originally a verbal noun. You say ṭālabtuhu, muṭālabatan and ṭilāban, in the conjugational class of qātala. Ṭaliba, on the pattern kalima, has the same meaning, and its plural is ṭalabāt. Taṭallabtu al-shayʾa means that I sought the thing. Aṭlabtu Zaydan, with initial alif, means that I supplied Zayd with what he requested; aṭlabtuhu can also mean that I made him need to ask.

Editorial note. The witness has ṭaliba on the pattern kalima. It is not the immediately preceding plural ṭalaba. The article supplies lexical evidence for the request noun, not an independent classification of forms of discourse.

↑ Term directory · Sources · Headword relations

82. ẓāhir ظَاهِر

In the Darūrī: Apparent or prima-facie indication: the meaning more readily warranted, though another remains possible. It can arise from understood import as well as verbal form.

Text: §164 · §166 · §193 · §224

ẓāhir · الظاهر

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 926. Source ↗

هو اسم لكلام ظهر المراد منه للسامع بنفس الصيغة ويكون محتملا للتأويل والتخصيص.

The name of speech whose intended meaning is apparent to the listener through its form itself, while admitting interpretive redirection and specification.

وما ظهر المراد منه للسامع بنفس الكلام كقوله تعالى وأحل الله البيع البقرة 275 وقوله تعالى فأنكحوا ما طاب لكم النساء 3 وضده الخفي وهو ما لا ينال المراد إلا بالطلب كقوله تعالى وحرم الربا البقرة 275.

Also: that whose intended meaning is apparent to the listener through the speech itself, as in “God has permitted sale” [Q 2:275] and “Marry those who seem good to you” [Q 4:3]. Its opposite is the obscure: that whose intended meaning is reached only through investigation, as in “and prohibited usury” [Q 2:275].

وظاهر العلم عبارة عند أهل التحقيق عن أعيان الممكنات وظاهر الممكنات هو تجلي الحق بصور أعيانها وصفاتها وهو المسمى بالوجود الإلهي وقد يطلق عليه ظاهر الوجود وظاهر المذهب وظاهر الرواية المراد بهما ما في المبسوط والجامع الكبير والجامع الصغير والسير الكبير والمراد بغير ظاهر المذهب والرواية الجرجانيات والكيسانيات والهارونيات.

Among the people of realization, the outward aspect of knowledge means the entities of possible things. The outward aspect of possible things is the Real’s self-disclosure in the forms of their entities and attributes, called divine existence; it may also be called the outward aspect of existence. By the manifest doctrine and manifest transmission they mean what is in al-Mabsūṭ, al-Jāmiʿ al-kabīr, al-Jāmiʿ al-ṣaghīr, and al-Siyar al-kabīr; by what is outside the manifest doctrine and transmission they mean al-Jurjāniyyāt, al-Kaysāniyyāt, and al-Hārūniyyāt.

وظاهر الوجود عبارة عن تجليات الأسماء فإن الإمتياز في ظاهر العلم حقيقي والوحدة نسبية وأما في ظاهر الوجود فالوحدة حقيقية والامتياز نسبي.

The outward aspect of existence means the self-disclosures of the names. In the outward aspect of knowledge, distinction is real and unity relative; in the outward aspect of existence, unity is real and distinction relative.

Editorial note. Legal-semantic, spiritual, and Ḥanafī bibliographical usages remain distinct, though this electronic witness groups them in one numbered article.

↑ Term directory · Sources · Headword relations

83. ẓann ظَنّ

In the Darūrī: Probable judgement: an evidentially grounded but nonconclusive assent, not necessarily a pejorative “guess.”

Text: §74 · §79 · §90 · §237 · §257

ẓann · الظن

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 934. Source ↗

هو الاعتقاد الراجح مع احتمال النقيض ويستعمل في اليقين والشك.

Predominant belief that still admits its contrary. The word is also used for certainty and doubt.

وقيل الظن أحد طرفي الشك بصفة الرجحان.

It is also said to be one of the two sides of doubt characterized by predominance.

ẓann · الظن

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الظن. Source ↗

الاعتقاد الراجح مع استعمال النقيض، ويستعمل في اليقين والشك. وفي المفردات: الظن اسم لما يحصل عن أمارة ومتى قويت أدت إلى العلم، ومتى ضعفت جدا لم يتجاوز حد الوهم، ومتى قوي أو تصور بصورة القوي استعمل معه أن المشددة والمخففة، ومتى ضعف استعمل بعد أن المختصة بالمعدومين من القول والفعل.

A preponderant belief while [allowing] its contrary. The word is also used for certainty and doubt. In al-Mufradāt: ẓann names what is obtained from an indication. When the indication becomes strong, it leads to knowledge; when very weak, it does not exceed the level of supposition. When it is strong, or is represented as strong, anna in its doubled or lightened form is used with it. When weak, it is followed by an, the form associated with what has not occurred, whether speech or action.

Editorial note.
The witness reads استعمال النقيض (“using the contrary”), where احتمال النقيض (“allowing the contrary”) is expected. The English brackets mark that contextual reading. Its final grammatical clause is likewise imperfectly transmitted; no additional Arabic wording is invented.

↑ Term directory · Sources · Headword relations

84. ʿāmm عَامّ

In the Darūrī: General expression: wording embracing the instances of a meaning. Do not confuse this linguistic scope with several equivocal meanings.

Text: §169 · §170 · §174 · §177

ʿāmm · العام

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 144. Source ↗

لفظ وضع وضعا واحدا لكثير غير محصور مستغرق جميع ما يصلح له، فقوله: "وضعا واحدا" يخرج المشترك؛ لكونه بأوضاع، ولكثير يخرج ما يوضع لكثير، كزيد وعمرو، وقوله: "غير محصور" يخرج أسماء العدد فإن المائة مثلا وضعت وضعا واحدا لكثير، وهو مستغرق جميع ما يصلح له لكن الكثير محصور، وقوله: "مستغرق جميع ما يصلح له" الجمع المنكر، نحو: رأيت رجالا؛ لأن جميع الرجال غير مرئي له؛ وهو إما عام بصفته، ومعناه كالرجال، وإما عام بمعناه فقط، كالرهط والقوم.

An expression assigned, by a single act of linguistic institution, to an unrestricted plurality, embracing everything to which it is applicable. The words “by a single act of institution” exclude an equivocal expression, since its meanings arise through several acts of institution. “To a plurality” excludes what is [not] assigned to a plurality, such as Zayd and ʿAmr. “Unrestricted” excludes number-words: “one hundred,” for example, is assigned through a single institution to a plurality and embraces everything to which it applies, but that plurality is restricted in number. “Embracing everything to which it is applicable” [excludes] the indefinite plural, as in “I saw men,” since he has not seen all men. The expression is general either in its form and meaning, as with al-rijāl (“the men”), or in its meaning alone, as with al-raht and al-qawm (“the group” and “the people”).

Editorial note. The digital witness has ما يوضع لكثير where the example and the exclusion require a negation; the translation supplies [not]. It also omits the verb before الجمع المنكر; [excludes] makes the grammatical connection explicit. Neither intervention is presented as an independently verified manuscript reading.

↑ Term directory · Sources · Headword relations

85. ʿibāda عِبَادَة

In the Darūrī: Worship or devotional observance. Its valid performance, intention and timing are analysed without identifying all legal consequences with worship.

Text: §43 · §56 · §57

ʿibāda · العبادة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 145. Source ↗

هو فعل المكلف على خلاف هوى نفسه؛ تعظيما لربه.

The act of the legally responsible person, contrary to the inclination of his lower self, in magnification of his Lord.

↑ Term directory · Sources · Headword relations

86. ʿadāla عَدَالَة

In the Darūrī: Probity: a disposition supporting a transmitter’s reliability, not a claim that every lapse destroys credibility.

Text: §86 · §87 · §90 · §98

ʿadāla · العدالة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 146. Source ↗

في اللغة: الاستقامة، وفي الشريعة: عبارة عن الاستقامة على طريق الحق بالاجتناب عما هو محظور دينا.

In ordinary language: uprightness. In the revealed law: remaining upright upon the path of truth by avoiding what religion prohibits.

↑ Term directory · Sources · Headword relations

87. ʿurf عُرْف

In the Darūrī: Established usage or convention, linguistic or legal; a command's force must be learned in its relevant convention.

Text: §153 · §199 · §200 · §203

ʿurf · العرف

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 964. Source ↗

ما استقرت النفوس عليه بشهادة العقول وتلقته الطبائع بالقبول وهو حجة أيضا لكنه أسرع إلى الفهم وكذا العادة هي ما استمر الناس عليه على حكم العقول وعادوا إليه مرة أخرى.

What souls have settled upon with the testimony of reason and natural dispositions have received with acceptance. It is also a proof, but is quicker to be understood. Likewise, custom is what people have continued to do in accordance with reason's judgement and returned to again.

↑ Term directory · Sources · Headword relations

88. ʿazīma / ʿazm عَزِيمَة / عَزْم

In the Darūrī: Original legal requirement, contrasted with a concession. The text uses the vocabulary of the unrelaxed requirement in defining the contrast.

Text: §60

ʿazīma · العزيمة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 149. Source ↗

في اللغة عبارة عن الإرادة المؤكدة، قال الله تعالى: {ولم نجد له عزما} أي لم يكن له قصد مؤكد في الفعل بما أمر به. وفي الشريعة: اسم لما هو أصل المشروعات، غير متعلق بالعوارض.

In ordinary language it denotes firm resolve. God, exalted is He, says, "We found no firm resolve in him" [Q 20:115]: that is, he lacked a firmly established intention to perform what he had been commanded. In revealed law it is the name for the original legal prescriptions, without dependence upon supervening circumstances.

↑ Term directory · Sources · Headword relations

89. ʿaql عَقْل

In the Darūrī: Intellect or reason; its relation to goodness, obligation and revealed authority is discussed without making theology the whole of uṣūl.

Text: §11 · §13 · §37 · §45

ʿaql · العقل

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · pp. 150–151. Source ↗

هو حذف الحرف الخامس المتحرك من "مفاعلتن"، وهي اللام، ليبقى: "مفاعلتن"، فينقل إلى "مفاعلن"، ويسمى: معقولا.

[In prosody,] it is the removal of the fifth, vowelled letter of mufāʿalatun—namely, the lām. The remaining pattern is then transferred to mufāʿilun and is called maʿqūl.

جوهر مجرد عن المادة في ذاته، مقارن لها في فعله، وهي النفس الناطقة التي يشير إليها كل أحد بقوله: أنا، وقيل: العقل: جوهر روحاني خلقه الله تعالى متعلقا ببدن الإنسان، وقيل: العقل: نور في القلب يعرف الحق والباطل، وقيل: العقل: جوهر مجرد عن المادة يتعلق بالبدن تعلق التدبير

A substance immaterial in its essence but associated with matter in its activity: the rational soul to which each person refers when saying “I.” It has also been said that intellect is a spiritual substance which God, exalted is He, created in relation to the human body; that it is a light in the heart through which truth and falsehood are known; or that it is an immaterial substance related to the body as its governor.

ما يعقل به حقائق الأشياء، قيل: محله الرأس، وقيل: محله القلب.

That by which the realities of things are apprehended intellectually. Its seat has been said to be the head, and it has been said to be the heart.

مأخوذ من عقال البعير، يمنع ذوي العقول من العدول عن سواء السبيل، والصحيح أنه جوهر مجرد يدرك الفانيات بالوسائط والمحسوسات بالمشاهدة.

The word is taken from the camel’s tether: it prevents those endowed with intellect from departing from the straight path. The correct view [according to the author] is that it is an immaterial substance which apprehends transient things through intermediaries and sensible things through direct observation.

Editorial note. The opening definition concerns the prosodic operation called ʿaql, not intellect. The digital witness repeats the unchanged metrical spelling after the deletion; the translation describes the stated operation without inventing a manuscript correction. Its final paragraph reads الفانيات (“transient things”); that reading is retained rather than silently replaced by a philosophical conjecture.

↑ Term directory · Sources · Headword relations

90. ʿilm عِلْم

In the Darūrī: Knowledge, sometimes certain cognition and sometimes a discipline. Its theoretical, practical and instrumental ends are distinguished.

Text: §2 · §8 · §74 · §75

ʿilm; ʿalam (homograph) · العلم

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · pp. 154–155. Source ↗

هو الاعتقاد الجازم المطابق للواقع، وقال الحكماء: هو حصول صورة الشيء في العقل، والأول أخص من الثاني، وقيل: العلم هو إدراك الشيء على ما هو به، وقيل: زوال الخفاء من المعلوم، والجهل نقيضه، وقيل: هو مستغن عن التعريف، وقيل: العلم: صفة راسخة تدرك بها الكليات والجزئيات، وقيل: العلم، وصول النفس إلى معنى الشيء، وقيل: عبارة عن إضافة مخصوصة بين العاقل والمعقول، وقيل: عبارة عن صفة ذات صفة.

Knowledge is firm belief corresponding to reality. The philosophers say that it is the presence of a thing’s form in the intellect; the first definition is narrower than the second. It has also been defined as apprehending a thing as it is; as the removal of obscurity from the known, ignorance being its contrary; as something that needs no definition; as an established attribute through which universals and particulars are apprehended; as the soul’s reaching the meaning of a thing; as a particular relation between the intellective subject and the intelligible object; or as “an attribute of something possessing an attribute.”

ينقسم إلى قسمين: قديم، وحادث، فالعلم القديم هو القائم بذاته تعالى، ولا يشبه بالعلوم المحدثة للعباد، والعلم المحدث ينقسم إلى ثلاثة أقسام: بديهي، وضروري، واستدلالي. فالبديهي: ما لا يحتاج إلى تقديم مقدمة، كالعلم بوجود نفسه، وأن الكل أعظم من الجزء، والضروري، ما لا يحتاج فيه إلى تقديم مقدمة، كالعلم بثبوت الصانع وحدوث الأعراض.

Knowledge is divided into eternal and originated. Eternal knowledge subsists in His essence, exalted is He, and is not comparable to the originated knowledge of created servants. Originated knowledge is divided into three kinds: self-evident, necessary, and inferential. The self-evident requires no prior premise, as with knowing one's own existence and that the whole is greater than the part. The necessary, according to the wording transmitted here, likewise requires no prior premise, as with knowledge that the Maker exists and that accidents originate.

ما وضع لشيء، وهو العلم القصدي، أو غلب وهو العلم اللازم لشيء بعينه خارجا أو ذهنا، ولم تتناوله السببية.

[ʿAlam, a proper name:] that which has been assigned to a thing—an intentionally instituted name—or has become prevalent—a name inseparably attached to a particular thing, externally or mentally, and which is not encompassed by causality [as the digital wording reads].

Editorial note. The third paragraph concerns ʿalam ("proper name"), a distinct word sharing the unvowelled spelling of ʿilm. It is not a definition of knowledge. The digital witness's last phrase السببية and its duplicated definition of "necessary" knowledge are retained and marked; no corrected printed or manuscript reading is claimed.

↑ Term directory · Sources · Headword relations

91. ʿilla عِلَّة

In the Darūrī: Effective ground or explanatory feature connecting a ruling with a case. It must be distinguished from a general benefit or an accidental concomitant.

Text: §210 · §213 · §217 · §218 · §222

ʿilla · العلة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · pp. 153–154. Source ↗

لغة: عبارة عن معنى يحل بالمحل فيتغير به حال المحل بلا اختيار، ومنه يسمى المرض علة؛ لأنه بحلوله يتغير حال الشخص من القوة إلى الضعف، وشريعة: عبارة عما يجب الحكم به معه، والعلة في العروض: التغيير في الأجزاء الثمانية، إذا كان في العروض والضرب.

In ordinary language: a feature that enters a subject and changes its condition without choice. Illness is therefore called an ʿilla, since its presence changes a person's condition from strength to weakness. In revealed law: that together with which a ruling necessarily follows on its account. In prosody: a change in the eight metrical feet when it occurs in the final foot of the first or second hemistich.

هي ما يتوقف عليه وجود الشيء ويكون خارجا مؤثرا فيه.

That upon which the existence of something depends, which is external to it and exerts an effect upon it.

الصورية: ما يوجد الشيء بالفعل، والمادية: ما يوجد الشيء بالقوة، والفاعلية: ما يوجد الشيء بسببه، والغائية: ما يوجد الشيء لأجله.

The formal cause: that through which a thing exists in actuality. The material cause: that through which a thing exists potentially. The efficient cause: that because of which a thing exists. The final cause: that for the sake of which a thing exists.

↑ Term directory · Sources · Headword relations

92. ʿumūm عُمُوم

In the Darūrī: Generality: inclusion of the instances falling within a meaning. Its force differs across forms and contexts.

Text: §169 · §170 · §174 · §178

ʿumūm · العموم

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1016. Source ↗

في اللغة عبارة عن إحاطة الأفراد دفعة وفي اصطلاح أهل الحق ما يقع به الاشتراك في الصفات سواء كان في صفات الحق كالحياة والعلم أو صفات الخلق كالغضب والضحك وبهذا الاشتراك يتم الجمع وتصح نسبته إلى الحق والإنسان.

In ordinary language: encompassing individuals all at once. In the terminology of the people of spiritual truth: that through which sharing in attributes occurs, whether in divine attributes such as life and knowledge or creaturely attributes such as anger and laughter. Through this sharing, combination is completed and its attribution to God and the human being becomes valid.

Editorial note. The second sense is the source's spiritual terminology, not a substitute for legal generality.

↑ Term directory · Sources · Headword relations

93. ʿumūm al-balwā عُمُوم الْبَلْوَى

In the Darūrī: Widespread practical need: a consideration in assessing whether a solitary report plausibly preserves a generally required observance.

Coverage. Exact-compound dictionary article not verified. The complete b-l-y/b-l-w article supplies lexical evidence only; it does not establish the technical rule governing widely required observances and solitary reports.

Text: §112 · §113

baliya / balāʾ · بلي

Aḥmad b. Muḥammad al-Fayyūmī [L] · *al-Miṣbāḥ al-munīr fī gharīb al-Sharḥ al-kabīr* · Kitāb al-bāʾ, root b-l-y / b-l-w. Source ↗

بَلِيَ الثَّوْبُ يَبْلَى مِنْ بَابِ تَعِبَ بِلًى بِالْكَسْرِ وَالْقَصْرِ وَبَلَاءً بِالْفَتْحِ وَالْمَدِّ خَلُقَ فَهُوَ بَالٍ وَبَلِيَ الْمَيِّتُ أَفْنَتْهُ الْأَرْضُ.

Baliya al-thawbu, yablā, in the conjugational class of taʿiba, with the verbal nouns bilan, with kasra and short final alif, and balāʾan, with fatḥa and long final vowel: the garment became worn out, so it is bālin. Baliya al-mayyitu means that the earth consumed the dead person.

وَبَلَاهُ اللَّهُ بِخَيْرٍ أَوْ شَرٍّ يَبْلُوهُ بَلْوًا وَأَبْلَاهُ بِالْأَلِفِ وَابْتَلَاهُ ابْتِلَاءً بِمَعْنَى امْتَحَنَهُ وَالِاسْمُ بَلَاءٌ مِثْلُ سَلَامٍ وَالْبَلْوَى وَالْبَلِيَّةُ مِثْلُهُ.

Balāhu Allāhu bi-khayrin aw sharrin, yablūhu, balwan; ablāhu with alif; and ibtalāhu ibtilāʾan all mean that God tested him with good or evil. The noun is balāʾ, on the pattern salām; balwā and baliyya have the same meaning.

وَبَلَى حَرْفُ إيجَابٍ فَإِذَا قِيلَ مَا قَامَ زَيْدٌ وَقُلْتَ فِي الْجَوَابِ بَلَى فَمَعْنَاهُ إثْبَاتُ الْقِيَامِ وَإِذَا قِيلَ أَلَيْسَ كَانَ كَذَا وَقُلْتَ بَلَى فَمَعْنَاهُ التَّقْرِيرُ وَالْإِثْبَاتُ وَلَا تَكُونُ إلَّا بَعْدَ نَفْيٍ إمَّا فِي أَوَّلِ الْكَلَامِ كَمَا تَقَدَّمَ وَإِمَّا فِي أَثْنَائِهِ كَقَوْلِهِ تَعَالَى { أَيَحْسَبُ الْإِنْسَانُ أَنْ لَنْ نَجْمَعَ عِظَامَهُ بَلَى } وَالتَّقْدِيرُ بَلَى نَجْمَعُهَا وَقَدْ يَكُونُ مَعَ النَّفْيِ اسْتِفْهَامٌ وَقَدْ لَا يَكُونُ كَمَا تَقَدَّمَ فَهُوَ أَبَدًا يَرْفَعُ حُكْمَ النَّفْيِ وَيُوجِبُ نَقِيضَهُ وَهُوَ الْإِثْبَاتُ.

Balā is a particle of affirmation. If someone says, "Zayd did not stand," and you answer balā, it affirms that he did stand. If someone asks, "Was it not such-and-such?" and you say balā, it means confirmation and affirmation. It occurs only after a negation, whether at the beginning of the utterance, as above, or within it, as in His saying: "Does man think that We shall not gather his bones? Yes indeed!" The understood wording is: "Yes indeed, We shall gather them." The negation may or may not be accompanied by a question, as above. The particle always cancels the negation and establishes its contrary, namely affirmation.

وَقَوْلُهُمْ لَا أُبَالِيه وَلَا أُبَالِي بِهِ أَيْ لَا أَهْتَمُّ بِهِ وَلَا أَكْتَرِثُ لَهُ وَلَمْ أُبَالِ وَلَمْ أُبَلِ لِلتَّخْفِيفِ كَمَا حَذَفُوا الْيَاءَ مِنَ الْمَصْدَرِ فَقَالُوا لَا أُبَالِيه بَالَةً وَالْأَصْلُ بَالِيَةٌ مِثْلُ عَافَاهُ مُعَافَاةً وَعَافِيَةً قَالُوا وَلَا تُسْتَعْمَلُ إِلَّا مَعَ الْجَحْدِ وَالْأَصْلُ فِيهِ قَوْلُهُمْ تُبَالِي الْقَوْمُ إِذَا تَبَادَرُوا إِلَى الْمَاءِ الْقَلِيلِ فَاسْتَقَوْا فَمَعْنَى لَا أُبَالِي: لَا أُبَادِرُ إِهْمَالًا لَهُ وَقَالَ أَبُو زَيْدٍ مَا بَالَيْتُ بِهِ مُبَالَاةً وَالِاسْمُ الْبِلَاءُ وِزَانُ كِتَابٍ وَهُوَ الْهَمُّ الَّذِي تُحَدِّثُ بِهِ نَفْسَكَ.

Their expressions lā ubālīhi and lā ubālī bihi mean “I do not concern myself with it or pay it any heed.” They say lam ubāli and, in a shortened form, lam ubal, just as they remove the yāʾ from the verbal noun and say lā ubālīhi bālatan; its original form is bāliya, like ʿāfāhu, muʿāfātan and ʿāfiyatan. They say that it is used only with a negation. Its origin is their expression tubālī al-qawmu, when people hasten to a small quantity of water and draw it. Thus lā ubālī means “I do not hasten to it, because I disregard it.” Abū Zayd said: mā bālaytu bihi, mubālātan; the noun is al-bilāʾ, on the pattern kitāb, meaning the concern about which you converse with yourself.

Editorial note. This is a lexical witness for balwā, not a technical definition of ʿumūm al-balwā. No complete historical dictionary article under that exact compound has been verified in this release. The distinction is retained in the term register. The digital witness’s unusual tubālī al-qawmu is retained rather than silently vocalized differently.

Source notes

“Does man think that We shall not gather his bones? Yes indeed!”

Qurʾān 75:3–4 (al-Qiyāma); the quotation ends with balā at the beginning of verse 4.

القرآن الكريم، سورة القيامة 75:3–4؛ تنتهي العبارة المنقولة بكلمة «بلى» في أول الآية الرابعة.

Online witness: 1

↑ Term directory · Sources · Headword relations

94. ghāya غَايَة

In the Darūrī: End or limit. In a temporal expression such as “until night,” it means an endpoint, not a purposive final cause.

Text: §2 · §195

ghāya · الغاية

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 160. Source ↗

ما لأجله وجود الشيء.

That for the sake of which a thing exists.

↑ Term directory · Sources · Headword relations

95. ghalabat al-ẓann غَلَبَة الظَّنّ

In the Darūrī: Preponderant judgement: the balance of probable evidence which guides action; it does not create truth merely through preference.

Text: §90 · §237 · §241 · §257

ẓann · الظن. Complete article printed under ẓann. exact ẓann article explicitly discussing preponderance; not an independent compound ghalabat al-ẓann headword.

↑ Term directory · Sources · Headword relations

96. farḍ فَرْض

In the Darūrī: Obligatory requirement. The discussion records a distinction from wājib made by some jurists and its evidential basis.

Text: §17

farḍ · الفرض

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 164. Source ↗

ما ثبت بدليل قطعي لا شبهة فيه، ويكفر جاحده ويعذب تاركه.

That which is established by a conclusive proof containing no doubt. Its denier is judged an unbeliever, and the person who omits it is subject to punishment.

Editorial note. This is a historical, school-specific technical definition, not an editorial judgement about any person. Its distinction between farḍ and wājib must not be assumed to be shared by every jurist.

↑ Term directory · Sources · Headword relations

97. farʿ فَرْع

In the Darūrī: Derivative case or branch of law; in qiyās, the case whose ruling is sought through a relation to the original.

Text: §2 · §210 · §211

farʿ · الفرع

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 165. Source ↗

خلاف الأصل، وهو اسم لشيء يبنى على غيره.

The counterpart of the foundation: a name for something that is built upon something else.

Editorial note. The source headword is the singular farʿ. Furūʿ is its plural; that grammatical relationship is an editorial cross-reference, not a separate dictionary article attributed to al-Jurjānī.

↑ Term directory · Sources · Headword relations

98. furūʿ فُرُوع

In the Darūrī: Branches or derivative rulings, distinguished from sources and the general method for understanding their indications.

Text: §2 · §235 · §252

farʿ · الفرع. Complete article printed under farʿ. singular headword underlying the plural glossary form.

↑ Term directory · Sources · Headword relations

99. fasād فَسَاد

In the Darūrī: Corruption or invalidity; in legal use, failure of an act or contract in the respect relevant to its ruling.

Text: §28 · §29 · §56 · §206

fasād · الفساد

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 165. Source ↗

زوال الصورة عن المادة بعد أن كانت حاصلة، والفساد عند الفقهاء ما كان مشروعا بأصله غير مشروع بوصفه، وهو مرادف للبطلان عند الشافعي، وقسم ثالث مباين للصحة والبطلان عندنا.

The disappearance of a form from matter after it had been present. Among jurists, fasād is what is lawful in its basis but not lawful in its qualification. According to al-Shāfiʿī it is synonymous with invalidity; according to us it is a third category, distinct from both validity and invalidity.

Editorial note. The first sentence uses fasād in natural philosophy. “According to us” belongs to the dictionary author’s juridical voice and is not Ibn Rushd’s or the editor’s school affiliation.

↑ Term directory · Sources · Headword relations

100. fiʿl فِعْل

In the Darūrī: Act: voluntary human performance or Prophetic action. An act has no imperative grammatical form of its own.

Text: §43 · §150 · §228 · §229

fiʿl · الفعل

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 167. Source ↗

هو الهيئة العارضة للمؤثر في غيره بسبب التأثير، أولا كالهيئة الحاصلة للقاطع بسبب كونه قاطعا، وفي اصطلاح النحاة: ما دل على معنى في نفسه مقترن بأحد الأزمنة الثلاثة، وقيل: الفعل كون الشيء مؤثرا في غيره، كالقاطع ما دام قاطعا.

The state accruing to something that acts upon another because of its acting—for example, the state belonging to a cutter by virtue of its cutting. In the terminology of grammarians, it is a word indicating a meaning in itself that is connected with one of the three tenses. It has also been said that action is a thing's exercising an effect upon another, as with a cutter for as long as it is cutting.

Editorial note. The digital text inserts أولا ("first") before the example without an evident continuation; no substantive additional sense is inferred from it. The philosophical category of action and the grammatical verb are distinct uses of the same spelling.

↑ Term directory · Sources · Headword relations

101. fiqh فِقْه

In the Darūrī: Understanding of practical legal rulings. Detailed branch-law learning is related to, but not identical with, the requirements of independent inquiry.

Text: §2 · §235 · §252

fiqh · الفقه

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · p. 167. Source ↗

هو في اللغة عبارة عن فهم غرض المتكلم من كلامه، وفي الاصطلاح: هو العلم بالأحكام الشرعية العملية المكتسب من أدلتها التفصيلية، وقيل: هو الإصابة والوقوف على المعنى الخفي الذي يتعلق به الحكم، وهو علم مستنبط بالرأي والاجتهاد، ويحتاج فيه إلى النظر والتأمل، ولهذا لا يجوز أن يسمى الله تعالى فقيها؛ لأنه لا يخفى عليه شيء.

In ordinary language it means understanding the speaker's purpose from what he says. Technically, it is knowledge of practical legal rulings acquired from their detailed proofs. It has also been defined as reaching and discerning the concealed meaning to which a ruling attaches. It is knowledge derived by reasoned judgement and juristic exertion, requiring inquiry and reflection. For this reason God, exalted is He, may not be called a faqīh, since nothing is concealed from Him.

↑ Term directory · Sources · Headword relations

102. qurʾ قُرْء

In the Darūrī: An equivocal legal expression for a menstrual period or a period of purity, used as an example of indeterminate wording.

Text: §158

qaraʾa · قرأ

al-Rāghib al-Iṣfahānī [E] · *al-Mufradāt fī gharīb al-Qurʾān* · s.v. قرأ. Source ↗

قَرَأَتِ المرأة: رأت الدّم، وأَقْرَأَتْ: صارت ذات قُرْءٍ، وقَرَأْتُ الجاريةَ: استبرأتُها بالقُرء. والقُرْءُ في الحقيقة: اسم للدّخول في الحيض عن طهر.

ولمّا كان اسما جامعا للأمرين الطّهر والحيض المتعقّب له أطلق على كلّ واحد منهما، لأنّ كلّ اسم موضوع لمعنيين معا يطلق على كلّ واحد منهما إذا انفرد، كالمائدة: للخوان وللطّعام، ثم قد يسمّى كلّ واحد منهما بانفراده به. وليس القُرْءُ اسما للطّهر مجرّدا، ولا للحيض مجرّدا بدلالة أنّ الطّاهر التي لم تر أثر الدّم لا يقال لها: ذات قرء. وكذا الحائض التي استمرّ بها الدّم والنّفساء لا يقال لها ذلك. وقوله: يَتَرَبَّصْنَ بِأَنْفُسِهِنَّ ثَلاثَةَ قُرُوءٍ [البقرة/228] أي: ثلاثة دخول من الطّهر في الحيض.

وقوله عليه الصلاة والسلام: «اقعدي عن الصّلاة أيّام أَقْرَائِكَ» أي أيّام حيضك، فإنما هو كقول القائل: افعل كذا أيّام ورود فلان، وورود إنما يكون في ساعة وإن كان ينسب إلى الأيّام. وقول أهل اللّغة: إنّ القُرْءَ من: قَرَأَ، أي: جمع، فإنّهم اعتبروا الجمع بين زمن الطّهر وزمن الحيض حسبما ذكرت لاجتماع الدّم في الرّحم، والقِرَاءَةُ: ضمّ الحروف والكلمات بعضها إلى بعض في التّرتيل، [وليس يقال ذلك لكلّ جمع].

لا يقال: قرأت القوم: إذا جمعتهم، ويدلّ على ذلك أنه لا يقال للحرف الواحد إذا تفوّه به قراءة، والْقُرْآنُ في الأصل مصدر، نحو: كفران ورجحان. قال تعالى: إِنَّ عَلَيْنا جَمْعَهُ وَقُرْآنَهُ فَإِذا قَرَأْناهُ فَاتَّبِعْ قُرْآنَهُ [القيامة/17-18] قال ابن عباس: إذا جمعناه وأثبتناه في صدرك فاعمل به، وقد خصّ بالكتاب المنزّل على محمد صلّى الله عليه وسلم، فصار له كالعلم كما أنّ التّوراة لما أنزل على موسى، والإنجيل على عيسى صلّى الله عليهما وسلم.

Qaraʾat al-marʾa means that the woman saw menstrual blood; aqraʾat, that she became one who experiences a qurʾ. Qaraʾtu al-jāriya means that I ascertained her freedom from pregnancy by means of a qurʾ. Qurʾ, properly speaking, names the transition from a state of purity into menstruation.

Because the name embraces both things—purity and the menstruation which follows it—it is applied to either of them. Every name instituted for two meanings together can be applied to either separately: māʾida denotes both the table and the food, and each may then be called by that name independently. Qurʾ is not a name for purity alone or for menstruation alone. The evidence is that a woman in purity who has not seen any trace of blood is not called “one having a qurʾ”; neither is a menstruating woman whose bleeding continues uninterruptedly, nor a woman with postnatal bleeding. “They shall wait by themselves for three qurūʾ” [Q 2:228] thus means three transitions from purity into menstruation.

His saying—blessings and peace be upon him—“Refrain from prayer during the days of your aqrāʾ”, meaning the days of your menstruation, is like saying “Do such-and-such during the days of so-and-so’s arrival”: the arrival occurs in a single moment, though it is ascribed to days. When lexicographers say that qurʾ derives from qaraʾa, “to gather”, they consider the combination of the time of purity and the time of menstruation, as I have explained, because blood gathers in the womb. Qirāʾa is the joining of letters and words to one another in ordered recitation; [the expression is not used for every kind of gathering].

One does not say “I read the people” to mean “I gathered them”. This is also shown by the fact that uttering a single letter is not called reading. Qurʾān is originally a verbal noun, like kufrān and rujḥān. God says: “Upon Us are its gathering and its recitation; when We have recited it, follow its recitation” [Q 75:17–18]. Ibn ʿAbbās explains: when We have gathered it and established it in your breast, act upon it. The word has become restricted to the Book sent down to Muḥammad—God bless him and grant him peace—and has become like its proper name, just as Torah names what was sent down to Moses and Gospel what was sent down to Jesus—God bless them both and grant them peace.

قال بعض العلماء: «تسمية هذا الكتاب قُرْآناً من بين كتب الله لكونه جامعا لثمرة كتبه» بل لجمعه ثمرة جميع العلوم، كما أشار تعالى إليه بقوله: وَتَفْصِيلَ كُلِّ شَيْءٍ [يوسف/111]، وقوله: تِبْياناً لِكُلِّ شَيْءٍ [النحل/89]، قُرْآناً عَرَبِيًّا غَيْرَ ذِي عِوَجٍ [الزمر/28]، وَقُرْآناً فَرَقْناهُ لِتَقْرَأَهُ [الإسراء/106]، فِي هذَا الْقُرْآنِ [الروم/58]، وَقُرْآنَ الْفَجْرِ [الإسراء/78] أي: قراءته، لَقُرْآنٌ كَرِيمٌ [الواقعة/77] وأقرأت فلانا كذا. قال: سَنُقْرِئُكَ فَلا تَنْسى [الأعلى/6]، وتَقَرَّأْتُ: تفهّمت، وقَارَأْتُهُ: دارسته.

Some scholars say: “This Book, among God’s books, is called Qurʾān because it gathers together the fruit of His books”—indeed, because it gathers the fruit of all the sciences. God indicates this in “an exposition of everything” [Q 12:111] and “a clarification of everything” [Q 16:89]. Other occurrences are “an Arabic Qurʾān without crookedness” [Q 39:28]; “a Qurʾān which We have divided so that you may recite it” [Q 17:106]; “in this Qurʾān” [Q 30:58]; “the recitation of dawn” [Q 17:78], meaning its reading; and “a noble Qurʾān” [Q 56:77]. Aqraʾtu fulānan kadhā means “I taught so-and-so to recite such-and-such”. He says: “We shall teach you to recite, and you shall not forget” [Q 87:6]. Taqaraʾtu means “I sought to understand”; qāraʾtuhu means “I studied it together with him”.

Editorial note. The full root article is retained, including its discussion of reading and the Qurʾān after the menstrual terminology. Square brackets around the sentence on gathering are retained from the consulted edition, whose editor identifies an older parallel in al-Zarkashī. Al-Rāghib’s analysis is his own account, not a neutral ruling resolving the juristic disagreement. The source’s brief ḥadīth quotations are translated as quotations, without certifying their transmission.

Source notes

“Refrain from prayer during the days of your aqrāʾ”
Cf. Sunan Abī Dāwūd 297 and 280. No. 297 reads tadaʿu al-ṣalāta ayyāma aqrāʾihā; al-Rāghib gives a shortened imperative formulation. The consulted Mufradāt editor traces it to no. 297. These references identify related versions without authenticating the lexicon’s exact wording.
Online witnesses: 1 · 2 · 3

↑ Term directory · Sources · Headword relations

103. qarīna قَرِينَة

In the Darūrī: Contextual indication: verbal or circumstantial evidence that guides meaning, interpretation or an extension beyond the named case.

Text: §161 · §166 · §193 · §213

qarīna · القرينة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1132. Source ↗

بمعنى الفقرة.

In the sense of a segment of discourse.

وفي اللغة فعلية بمعنى المفاعلة مأخوذ من المقارنة وفي الاصطلاح أمر يشير إلى المطلوب.

In ordinary language it is a faʿīla form with a reciprocal meaning, derived from accompaniment. Technically: something pointing to what is intended.

وهي إما حالية أو معنوية أو لفظية نحو ضرب موسى عيسى وضرب من في الغار من على السطح فإن الإعراب منتف فيه بخلاف ضربت موسى حبلى وأكل موسى الكمثرى فإن في الأول قرينة لفظية وفي الثانية قرينة حالية.

It may be situational, semantic, or verbal. Consider “Mūsā struck ʿĪsā” and “The one in the cave struck the one on the roof”: visible case inflection is absent. Contrast “Ḥublā struck Mūsā,” with a feminine verb, and “Mūsā ate the pear”: in the first there is a verbal indicator, and in the second a situational indicator.

Editorial note. Unvowelled ضربت permits more than one reading in isolation. The example’s function requires the feminine third-person verb; Ḥublā is the illustrative feminine subject. This is editorial explanation, not an added dictionary paragraph.

↑ Term directory · Sources · Headword relations

104. qaḍāʾ قَضَاء

In the Darūrī: Make-up performance outside the appointed time; also judgement in other contexts. Whether it needs a distinct command is a central question.

Text: §51 · §57 · §204

qaḍāʾ · القضاء

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1141. Source ↗

لغة الحكم وفي الاصطلاح عبارة عن الحكم الكلي الإلهي في أعيات الموجودات على ما هي عليه من الأحوال الجارية في الأزل إلى الأبد.	In ordinary language: judgement. Technically: the universal divine judgement concerning the entities of existents and their states proceeding from beginninglessness to endlessness.
وفي اصطلاح الفقهاء القضاء تسليم مثل الواجب بالسبب.	In jurists' terminology: delivering the equivalent of what is obligatory by virtue of its occasion.
والقضاء على الغير إلزام أمر لم يكن لازما قبله.	Judgement against another is imposing something that was not binding before it.
والقضاء في الخصومة هو إظهار ما هو ثابت.	Adjudication in a dispute is making manifest what is established.
والقضاء يشبه الأداء هو الذي لا يكون إلا بمثل معقول بحكم الاستقراء كقضاء الصوم والصلاة لأن كل واحد منهما مثل الآخر صورة ومعنى.	Make-up performance resembling timely performance is what, as induction shows, occurs only through an intelligible equivalent, such as making up fasting and prayer: each corresponds to the other in form and meaning.

Editorial note. أعيات in the electronic witness is treated as a typographical reading for أعيان in translation. The last sentence concerns a make-up act and its original, not an assertion that fasting and prayer are the same act.

↑ Term directory · Sources · Headword relations

105. qaṭʿī قَطْعِيّ

In the Darūrī: Conclusive: an indication or judgement not merely probable. Degrees of evidential clarity remain important for culpability.

Text: §74 · §125 · §237 · §244

yaqīniyyāt · اليقينيات

Attributed to Jalāl al-Dīn al-Suyūṭī [L] · *Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm* · entry 954. Source ↗

قضايا يكون الحكم فيها جازما مطابقا ثابتا.	Propositions in which the judgement is decisive, conforms to reality, and is stable.

Editorial note. This supplies the complete entry for the logical category of certainties. It is not represented as an exact dictionary article headed qaṭʿī, nor as a full definition of legally decisive transmission or signification.

↑ Term directory · Sources · Headword relations

106. qiyās قِيَاس

In the Darūrī: Analogy or syllogistic inference, depending on context. Much juristic qiyās is analysed here as substitution within an understood meaning rather than a syllogism.

Text: §210 · §212 · §223 · §226

القياس · qiyās

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1160. Source ↗

قول مؤلف من قضايا إذا سلمت لزم عنها لذاتها قول آخر كقولنا العالم متغير وكل متغير حادث فإنه قول مركب من قضيتين إذا سلمتا لزم عنهما لذاتهما العالم حادث هذا عند المنطقيين وعند أهل الأصول القياس إبانة مثل حكم المذكورين بمثل علته في الآخر واختيار لفظ الإبانة دون الإثبات لأن القياس مظهر للحكم لا مثبت وذكر مثل الحكم ومثل العلة احتراز عن لزوم القول بانتقال الأوصاف واختيار لفظ المذكورين ليشمل القياس بين الموجودين وبين المعدومين.

A discourse composed of propositions which, when conceded, entail another discourse through themselves. For example, “The world changes; everything that changes is originated”: this consists of two propositions which, when conceded, themselves entail “The world is originated.” That is the logicians’ usage. For legal theorists, analogy discloses the like of a ruling concerning the things mentioned, through the like of its cause in the other. “Disclosure” is chosen rather than “establishment” because analogy manifests a ruling rather than creating it. “The like of the ruling” and “the like of the cause” avoid committing one to a transfer of attributes. “The things mentioned” includes analogy between existing things and between nonexistent things.

وأعلم أن القياس إما جلي وهو ما تسبق إليه الأفهام وإما خفي وهو ما يكون بخلافه ويسمى الاستحسان لكنه أعم من القياس الخفي فإن كل قياس خفي استحسان وليس كل استحسان قياسا خفيا لأن الاستحسان قد يطلق على ما ثبت بالنص والاجماع والضرورة لكن في الأغلب إذا ذكر الاستحسان يراد به القياس الخفي.

Analogy is either evident, which understandings readily apprehend, or hidden, which is otherwise and is called juristic preference. Juristic preference is nevertheless broader than hidden analogy: every hidden analogy is juristic preference, but not every juristic preference is hidden analogy, for the former may also denote what is established by text, consensus, or necessity. Usually, however, hidden analogy is intended when juristic preference is mentioned.

والقياس الاستثنائي ما يكون عين النتيجة أو نقيضها مذكورا فيه بالفعل كقولنا إن كان هذا جسما فهو متحيز لكنه جسم ينتج أنه متحيز وهو بعينه مذكور من القياس أو لكنه ليس بمتحيز ينتج أنه ليس بجسم ونقيضه قولنا إنه جسم مذكور في القياس.

An exceptive syllogism actually mentions its conclusion or its contradictory: “If this is a body, it occupies space; but it is a body,” yielding “It occupies space,” which is itself mentioned in the syllogism. Alternatively, “But it does not occupy space” yields “It is not a body,” whose contradictory, “It is a body,” is mentioned there.

والقياس الاقتراني نقيض الاستثنائي وهو ما لا يكون عين النتيجة ولا نقيضها مذكورا فيه بالفعل كقولنا الجسم مؤلف وكل مؤلف محدث ينتج الجسم محدث فليس هو ولا نقيضه مذكورا في القياس بالفعل.

A conjunctive syllogism is the opposite of an exceptive one: neither the conclusion itself nor its contradictory is actually mentioned. “A body is composite; every composite is originated” yields “A body is originated”; neither it nor its contradictory is actually stated in the syllogism.

وقياس المساواة هو الذي يكون متعلق محمول صغراه موضوعا في الكبرى فإن استلزامه لا بالذات بل بواسطة مقدمة أجنبية حيث تصدق بتحقق الاستلزام كما في قولنا أ مساو ب و ب مساو ج و أ مساو ج إذ المساوي للمساوي للشيء مساو لذلك الشيء وحيث لا يصدق ولا يتحقق كما في قولنا أ نصف ب وب نصف ل ج فلا يصدق أ نصف ل ج لأن نصف النصف ليس بنصف بل ربع.

An equality syllogism is one in which the correlate of the minor premise’s predicate is the major premise’s subject. Its entailment is not intrinsic but proceeds through an external premise. Where that premise is true, the entailment holds: “A equals B; B equals C; therefore A equals C,” since what equals the equal of something equals that thing. Where it is not true, the entailment fails: “A is half of B; B is half of C” does not yield “A is half of C,” because half of a half is not a half but a quarter.

Editorial note. The legal definition’s “حكم المذكورين … في الآخر” is compressed or defective; the wording of this witness is preserved. The paragraph’s argument indicates two compared cases, not an invented single merged case.

qiyās · القياس

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1161. Source ↗

ما يمكن أن يذكر فيه ضابطة عند وجود تلك الضابطة يوجد هو.

That for which a rule can be stated such that, whenever the rule obtains, it obtains.

Editorial note. A second, separately numbered definition in the same witness.

↑ Term directory · Sources · Headword relations

107. qiyās al-shabah قِيَاس الشَّبَه

In the Darūrī: Analogy of resemblance: extending a ruling because a likeness is thought to contain a shared ground, without identifying that ground securely.

Text: §218 · §224

shabah · الشبه

Muḥammad ʿAlī al-Tahānawī [L] · *Kashshāf iṣṭilāḥāt al-funūn wa-l-ʿulūm* · vol. 1, pp. 1004–1005; digital page positions 1058–1059. Source ↗

بالكسر وسكون الموحدة وبفتحتين أيضا المثل كما في المنتخب. وعند الأصوليين هو من مسالك إثبات العلية.

With kasra and a quiescent bāʾ, or with two fatḥas, it means a likeness, as stated in al-Muntakhab. Among legal theorists it is one of the methods for establishing causal relevance.

قالوا الوصف إما أن تعلم مناسبته بالنظر إلى ذاته أو لا، والأول المناسب، والثاني إما أن يكون مما اعتبره الشرع في بعض الأحكام والتفت إليه أو لا، والأول الشبه والثاني الطرد. وعلية الشبه تثبت بجميع المسالك من الإجماع والنص والسير، وهل تثبت بمجرد المناسبة أي تخريج المناط؟ فيه نظر، وإلا يخرج عن كونه شبيها إلى كونه مناسبا مع أن ما بينهما من التقابل.

They say: either the appropriateness of an attribute is known by considering it in itself, or it is not. The first is the appropriate attribute (al-munāsib). In the second case, either the revealed law has recognized it in some rulings and taken it into account, or it has not. The first is resemblance (al-shabah), and the second is mere concomitance (al-ṭard). The causal relevance of resemblance is established by all the methods, including consensus, explicit text and examination [see the textual note]. Whether it is established by appropriateness alone—that is, by eliciting the operative ground (takhrīj al-manāṭ)—requires consideration; otherwise it would cease to be a resemblance and become an appropriate attribute, notwithstanding the opposition between the two.

ومن أجل أنه لا تثبت بمجرد المناسبة قيل في تعريف الشبه تارة هو الذي لا تثبت مناسبته إلا بدليل منفصل. وقيل تارة هو ما يوهم المناسبة وليس بمناسب. فبناء كلا التعريفين على أن الشبه لا يثبت بمجرد المناسبة بل لا بد في مناسبته للحكم من دليل زائد عليه، إذ لو ثبت بالنظر إلى ذاته لما كان شبيها بل مناسبا.

Because it is not established by appropriateness alone, resemblance has sometimes been defined as that whose appropriateness is established only by separate evidence. At other times it has been defined as that which suggests appropriateness without being appropriate. Both definitions rest on the position that resemblance is not established by appropriateness alone: additional evidence is needed for its appropriateness to the ruling. If that were established by considering the attribute in itself, it would be an appropriate attribute rather than a resembling one.

وقيل إثباته بتخريج المناط مبني على تفسيره فمن فسره بما يوهم المناسبة منعه لأن تخريج المناط يوجب المناسبة، ومن فسره بالمناسب الذي مناسبته لذاته جوزه لجواز أن يكون الوصف الشبهي مناسبا يتبع المناسب بالذات وهذا فاسد لأن تخريج المناط يقتضي كون الوصف مناسبا بالنظر إلى ذاته.

It has also been said that establishing it by eliciting the operative ground depends on how it is explained. Those who explain it as what suggests appropriateness disallow this, because eliciting the operative ground establishes appropriateness. Those who explain it as the appropriate attribute whose appropriateness belongs to it intrinsically permit it, on the ground that the resembling attribute may be appropriate by following what is intrinsically appropriate. This is unsound, because eliciting the operative ground requires the attribute to be appropriate when considered in itself.

مثاله أن يقال في عدم جواز إزالة الخبث بالمائع أن إزالة الخبث طهارة تراد للصلاة فلا تجوز بغير الماء، كطهارة الحدث بجامع الطهارة، وهو وصف شبهي لأن مناسبتها لتعيين الماء فيها بعد البحث التام غير ظاهرة، لكن الشارع لما أثبت الحكم وهو تعيين الماء في بعض الصور وجودها كالصلاة والطواف ومس المصحف أوهم ذلك مناسبتها. ثم الشبه حجة عند جماعة وهو مذهب الشافعي.

An example is the argument against removing physical impurity with a liquid other than water: removal of impurity is a purification intended for prayer, and therefore is not permissible with anything other than water, by comparison with purification from ritual impurity; the common feature is purification. This is an attribute of resemblance, because, even after exhaustive inquiry, its appropriateness to requiring water is not evident. Yet when the Lawgiver established the ruling—that water is required—in some instances of its occurrence, such as prayer, circumambulation and touching the Qur'anic codex, this suggested its appropriateness. Resemblance is an authoritative proof according to a group of scholars, and this is al-Shāfiʿī's position.

وليس بحجة عند الحنفية وجماعة كالقاضي أبي بكر الباقلاني لأنه إما مطلع على المناسب المؤثر فيكون حاكما به أو لا، وهو حكم بغير دليل. اعلم أن لفظ الشبه يقال على معان أخر أيضا بالاشتراك، حتى قال إمام الحرمين: لا تتحرر في الشبه عبارة مستمرة في صناعة الحدود.

It is not an authoritative proof according to the Ḥanafīs and a group including al-Qāḍī Abū Bakr al-Bāqillānī: either the reasoner has discerned the causally effective appropriate attribute, in which case he judges by it, or he has not, in which case the judgement is without evidence. Know that the word resemblance also applies equivocally to other meanings. Indeed, the Imām al-Ḥaramayn said that no consistently applicable formulation of resemblance can be established within the art of definitions.

فمنهم من فسره بما تردد فيه الفرع بين الأصلين يشاركهما في الجامع إلا أنه يشارك أحدهما في أوصاف أكثر فيسمى إلحاقه به شبها كإلحاق العبد المقتول بالحر فإن له شبها بالفرس من حيث المالية وشبها بالحر، لكن مشابهته بالحر في الأوصاف والأحكام أكثر، فألحق بالحر لذلك. وحاصل هذا المعنى تعارض مناسبتين ترجح إحداهما.

Some have explained it as a case in which a derivative case lies between two original cases and shares the common feature with both, but shares more attributes with one. Assimilating it to that one is called resemblance. An example is assimilating an enslaved person who has been killed to a free person. The former resembles a horse in respect of being property, and also resembles a free person; but the resemblance to the free person in attributes and rulings is greater, so the case is assimilated to that of the free person. In essence, this meaning involves two conflicting relations of appropriateness, one of which is preferred.

ومنهم من فسره بما يعرف فيه المناط قطعا إلا أنه يفتقر في آحاد الصور إلى تحقيقه كما في طلب المثل في جزاء الصيد بعد العلم بوجوب المثل. ومنهم من فسره بما اجتمع فيه مناطان لحكمين لا على سبيل الكمال، لكن أحدهما أغلب، فالحكم به حكم بالأشبه كالحكم في اللعان بأنه يمين لا شهادة وإن وجدا فيه.

Some have explained it as a case in which the operative ground is known with certainty, but its presence in individual instances needs to be ascertained: for example, seeking an equivalent in compensation for hunted game after the obligation of an equivalent has been established. Others explain it as a case containing two operative grounds for two rulings, neither completely present, but one predominating; to judge by it is to judge by the closer resemblance. An example is ruling that mutual imprecation (liʿān) is an oath rather than testimony, although both features are present in it.

وقال القاضي هو الجمع بين الأصل والفرع بما لا يناسب الحكم، لكن يستلزم المناسب وهو قياس الدلالة فليس شيء من تلك المعاني معنى من الشبه المعدود في مسالك العلة. هكذا يستفاد من العضدي وحاشيته للمحقق التفتازاني وغيرهما.

Al-Qāḍī said that it consists in joining the original and derivative cases by something that is not appropriate to the ruling but entails what is appropriate; this is analogy by an indication (qiyās al-dalāla). None of these meanings is therefore the meaning of resemblance counted among the methods for establishing the effective cause. This is gathered from al-ʿAḍudī and the gloss on it by the investigator al-Taftāzānī, and from other works.

Editorial note. Continues on the following digital page, ending before shibh al-fiʿl. The witness prints al-sayr (السير) where its reported variant is al-sabr (السبر); “examination” follows the latter and the former is retained in the Arabic. The clause “whose appropriateness belongs to it intrinsically” is textually awkward in the consulted witness; it has not been silently rewritten. Modern English/French labels and editorial footnotes are not attributed to al-Tahānawī.

↑ Term directory · Sources · Headword relations

108. karāha كَرَاهَة

In the Darūrī: Dislike or disapproval, sometimes distinguished from strict prohibition; the required contextual indication must be examined.

Text: §17 · §29 · §208

makrūh · المكروه

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1469. Source ↗

ما هو راجح الترك فإن كان إلى الحرام تكون كراهته تحريمية وإن كان إلى الحل أقرب تكون تنزيهية ولا يعاقب على فعله.

That which it is preferable to leave. If it is on the side of the prohibited, its disapproval is prohibitory; if it is nearer to the permissible, its disapproval is non-prohibitory, and doing it is not punished.

Editorial note. The source distinguishes two kinds in a Ḥanafī idiom. Karāha is linked as the corresponding abstract noun, not presented as this article’s printed headword.

↑ Term directory · Sources · Headword relations

109. kasb / iktisāb كَسْب / اكْتِسَاب

In the Darūrī: Acquisition: the disputed account of human agency, choice and voluntary action. The reported theological positions are not all Ibn Rushd’s own.

Text: §43 · §44 · §45

kasb · الكسب

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1174. Source ↗

هو المفضي إلى اجتلاب نفع أو دفع ضر ولا يوصف فعل الله بأنه كسب لكونه منزها عن جلب نفع أو دفع ضر.

That which leads to obtaining a benefit or averting a harm. God's act is not described as acquisition, since He is exalted above obtaining a benefit or averting a harm.

↑ Term directory · Sources · Headword relations

110. kalām كَلَام

In the Darūrī: Speech; also rational theology. In §7 the mutakallimūn are the practitioners of kalām whose established arrangement Ibn Rushd follows, not merely anyone discussing uṣūl. Elsewhere the intended sense depends on context; theology is not identical with uṣūl.

Text: §7 · §9 · §41 · §63 · §235

kalām · الكلام

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1184. Source ↗

ما تضمن كلمتين بالإسناد.

That which contains two words connected by predication.

وعلم يبحث فيه عن ذات الله تعالى وصفاته وأحوال الممكنات من المبدأ والمعاد على قانون الإسلام والقيد الأخير لإخراج العلم الإلهي للفلاسفة وفي اصطلاح النحويين هو المعنى المركب الذي فيه الإسناد التام وعلم باحث عن أمور يعلم منها المعاد وما يتعلق به من الجنة والنار والصراط والميزان والثواب والعقاب وقيل الكلام هو العلم بالقواعد الشرعية الاعتقادية المكتسبة عن الأدلة.

Also: the science in which inquiry concerns God's essence, exalted is He, His attributes, and the conditions of contingent things in their origin and return, according to the rule of Islam. The last qualification excludes the philosophers' metaphysics. In the terminology of grammarians, it is a composite meaning containing complete predication. It is also a science investigating matters through which the return and what pertains to it are known: Paradise, Hell, the Bridge, the Balance, reward, and punishment. It has also been defined as knowledge of the doctrinal principles of revealed law acquired through proofs.

Editorial note. Kalām as connected discourse and kalām as theology are separately recognizable senses in this complete article; neither should erase the other.

↑ Term directory · Sources · Headword relations

111. kullī كُلِّيّ

In the Darūrī: Universal: a meaning under which particulars fall, crucial to understanding legal extension beyond a named example.

Text: §2 · §165 · §191 · §212 · §221

kullī ḥaqīqī · الكلي الحقيقي

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1191. Source ↗

ما لا يمنع نفس تصوره من وقوع الشركة فيه كالإنسان وإنما سمي كليا لأن كلية الشيء إنما هي بالنسبة إلى الجزئي والكلي جزء الجزئي فيكون ذلك الشيء منسوبا إلى الكل والمنسوب إلى الكل كلي.

That whose very conception does not prevent its being shared, as with "human being." It is called universal because a thing's universality is relative to the particular, and the universal is a part of the particular; the thing is thus related to the whole, and what is related to the whole is called kullī.

kullī iḍāfī · الكلي الإضافي

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1190. Source ↗

هو الأعم من شيء.

That which is broader than something else.

واعلم أنه إذا قلنا الحيوان مثلا كلي فهناك أمور ثلاثة الحيوان حيث هو ومفهوم الكلي والحيوان من حيث إنه يعرض له الكلية والمجموع المركب منهما أي من الحيوان والكلي والتغاير بين هذه المفهومات ظاهر فإن مفهوم الكلي ما لا يمنع نفس تصوره عن وقوع الشركة فيه ومفهوم الحيوان الجسم النامي الحساس المتحرك بالإرادة فالأول يسمى كليا طبيعيا لأنه موجود في الطبيعة أي في الخارج والثاني كليا منطقيا لأن المنطق إنما يبحث عنه والثالث كليا عقليا لعدم تحقيقه إلا في العقل.

Know that when we say, for example, “Animal is universal,” three things are involved: animal as such; the concept of the universal; and animal insofar as universality accrues to it—the combination composed of animal and universal. The difference between these concepts is evident. The concept of the universal is that whose very conception does not prevent sharing in it; the concept of animal is a growing, sentient body moving by will. The first is called the natural universal, since it exists in nature, that is, outside the mind; the second, the logical universal, because logic investigates it; and the third, the intellectual universal, since it is realized only in the intellect.

والكلي إما ذاتي وهو الذي يدخل في حقيقة جزئياته كالحيوان بالنسبة إلى الإنسان والفرس وإما عرضي وهو الذي لا يدخل في حقيقة جزئياته بألا يكون جزءا أو بأن يكون خارجا كالضاحك بالنسبة إلى الإنسان.

A universal is either essential, entering into the reality of its particulars, as animal does in relation to the human being and the horse; or accidental, not entering into their reality, by not being a part or by being external to it, as “capable of laughter” is in relation to the human being.

↑ Term directory · Sources · Headword relations

112. kināya كِنَايَة

In the Darūrī: Indirect expression: signifying by an associated meaning rather than simply naming the referent directly.

Text: §164 · §167

kināya · الكناية

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1194. Source ↗

كلام استتر المراد منه بالاستعمال وإن كان معناه ظاهرا في اللغة سواء كان المراد به الحقيقة أو المجاز فيكون تردد فيما أريد به فلا بد من النية أو ما يقوم مقامها من دلالة الحال كحال مذاكرة الطلاق ليزول التردد ويتعين ما أريد منه.

Discourse whose intended meaning is concealed in its use, although its linguistic meaning is apparent, whether the intended meaning is literal or figurative. There is therefore uncertainty about what is intended, and intention—or what takes its place, such as a contextual indication, for example the circumstance of discussing divorce—is required to remove the uncertainty and determine the intended meaning.

والكناية عند علماء البيان هي أن يعبر عن شيء لفظا كان أو معنى بلفظ غير صريح من الدلالة عليه لغرض من الأغراض كالإبهام على السامع نحو جاء فلان أو لنوع فصاحة نحو فلان كثير الرماد أي كثير القرى.

Among the scholars of rhetoric, kināya is expressing something, whether a word or a meaning, by an expression that does not indicate it explicitly, for some purpose: for example, leaving it unspecified to the hearer, as in “So-and-so came”; or for an eloquent effect, as in “So-and-so has abundant ashes,” meaning that he is abundantly hospitable.

وما استتر معناه لا يعرف إلا بقرينة زائدة ولهذا سموا التاء في قولهم أنت والهاء في قولهم إنه حرف كناية وكذا قولهم هو وهو مأخوذ من قولهم كنوت الشيء وكنيته أي سترته.

Also: that whose meaning is concealed and is known only through an additional indicator. For this reason they call the tāʾ in anta (“you”) and the hāʾ in innahu (“indeed he”) a letter of kināya, and likewise the expression huwa (“he”). The term is taken from their expressions kanawtu al-shayʾ and kanaytuhu, meaning “I concealed it.”

↑ Term directory · Sources · Headword relations

113. lafẓ لَفْظ

In the Darūrī: Expression or wording; its verbal form is distinguished from the meaning indicated in the whole discourse.

Text: §109 · §148 · §149 · §153

lafẓ · اللفظ

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1225. Source ↗

ما يتلفظ به الإنسان أو من في حكمه مهملا كان أو مستعملا.

What a human being, or something treated as equivalent, utters, whether it is without an assigned meaning or is in established linguistic use.

↑ Term directory · Sources · Headword relations

114. mubāḥ مُبَاح

In the Darūrī: Permitted: not demanded or forbidden in the respect being considered. Its status as “commanded” is itself disputed.

Text: §16 · §17 · §27

mubāḥ · المباح

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. المباح. Source ↗

ما لا يثاب على فعله، ولا يعاقب على تركه.

That for whose performance one is not rewarded and for whose omission one is not punished.

Editorial note. The qualification “insofar as the act is permitted” belongs to contextual interpretation; it is not an additional sentence in this short historical article.

↑ Term directory · Sources · Headword relations

115. mutawātir مُتَوَاتِر

In the Darūrī: Mass-transmitted: a mode of communication yielding certainty through the circumstances of its transmission, not a universally fixed count.

Text: §75 · §76 · §78

khabar mutawātir · الخبر المتواتر. Complete article printed under tawātur. expanded named report-type article.

mutawātir · المتواتر

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1271. Source ↗

هو الخبر الثابت على ألسنة قوم لا يتصور تواطؤهم على الكذب لكثرتهم أو لعدالتهم كالحكم بأن النبي صلى الله عليه وسلم ادعى النبوة وأظهر المعجزة على يده سمي بذلك لأنه لا يقع دفعة بل على التعاقب والتوالي.

A report established on the tongues of people whose collusion in falsehood is inconceivable because of their number or their probity. An example is the judgement that the Prophet, peace and blessings be upon him, claimed prophethood and that a miracle appeared through him. It is called mutawātir because it does not occur all at once, but successively and continuously.

↑ Term directory · Sources · Headword relations

116. mithāl مِثَال

In the Darūrī: Example or illustrative case; its relation to a universal meaning must be distinguished from a merely verbal likeness.

Text: §1 · §6 · §212

mithāl · المثال

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1275. Source ↗

ما اعتل فاؤه كوعد ويسر وقيل ما يذكر لإيضاح القاعدة بتمام إشارتها.

[In morphology,] a verb whose first root letter is weak, as with waʿada and yasara. It has also been defined as what is mentioned to clarify a rule with its full indication.

↑ Term directory · Sources · Headword relations

117. majāz مَجَاز

In the Darūrī: Figurative or transferred usage. It includes omission, addition and substitution, not merely literary metaphor.

Text: §65 · §153 · §154 · §162 · §164

majāz · المجاز

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1278. Source ↗

اسم لما أريد به غير ما وضع له لمناسبة بينهما كتسمية الشجاع أسدا وهو مفعل بمعنى فاعل من جاز إذا تعدى كالمولى بمعنى الوالي سمي به لأنه متعد من محل الحقيقة إلى محل المجاز قوله لمناسبة بينهما احترز به عما استعمل في غير ما وضع له لا لمناسبة فإن ذلك لا يسمى مجازا بل كان مرتجلا أو خطأ.

A name for an expression by which something other than its assigned meaning is intended, because of a relation between the two, as when a courageous man is called a lion. It has the pattern mafʿal with an active meaning, from jāza, “to pass beyond,” just as mawlā can mean wālī. It is so called because it passes from the domain of literal usage into the domain of figurative usage. “Because of a relation between the two” excludes an expression used outside its assigned meaning without such a relation: that is not figurative usage but a newly coined usage or a mistake.

والمجاز إما مرسل أو استعارة لأن العلاقة المصححة له إما أن تكون مشابهة المنقول إليه بالمنقول عنه في شيء وإما أن تكون غيرها فإن كان الأول يسمى المجاز استعارة كلفظ الأسد إذا استعمل في الشجاع وإن كان الثاني فيسمى مرسلا كلفظ اليد إذا استعمل في النعمة كما يقال جلت أياديه عندي أي كثرت نعمه لدي واليد في اللغة العضو المخصوص والعلاقة كون ذلك العضو مصدرا للنعمة فإنها تصل إلى المنعم عليه من اليد.

Figurative usage is either unrestricted transfer or metaphor. The relation validating it is either a resemblance, in some respect, between the transferred-to and transferred-from meanings, or another relation. In the first case it is called metaphor, as when “lion” is used for a courageous man. In the second it is called unrestricted transfer, as when “hand” is used for a favour: “His hands towards me are great,” meaning that his favours to me are many. In language “hand” denotes the particular bodily member; the relation is that this member is the source of a favour, which reaches its recipient from the hand.

والفرق بين المعنيين أن الاستعارة في الأول اسم للفظ المنقول وفي الثاني للنقل وعلى الثاني يسمى المشبه به وهو الحيوان المفترس مستعارا منه والمشبه وهو الشجاع مستعارا له واللفظ وهو لفظ الأسد مستعارا والمتلفظ وهو المستعمل للفظ الأسد في الشجاع مستعيرا ووجه الشبه وهو الشجاعة ما به الاستعارة ولا تصح هذه الاشتقاقات في الاستعارة بالمعنى الأول وهو ظاهر.

The difference between the two senses [of istiʿāra] is that in the first it names the transferred expression and in the second the transfer itself. In the second sense, the object of comparison—the predatory animal—is "that from which the borrowing is made"; the subject compared—the courageous person—is "that for which it is made"; the expression "lion" is "what is borrowed"; the speaker using "lion" for the courageous person is "the borrower"; and the point of resemblance, courage, is "that through which the borrowing occurs." These derivatives do not apply to metaphor in the first sense, as is evident.

والمجاز ما جاوز وتعدى عن محله الموضوع له إلى غيره لمناسبة بينهما إما من حيث الصورة أو من حيث المعنى اللازم المشهور أو من حيث القرب والمجاورة كاسم الأسد للرجل الشجاع وكألفاظ يكنى بها الحديث.

Figurative usage is also that which goes beyond and passes from the place assigned to it into another because of a relation between them—in form, in a well-known concomitant meaning, or in proximity and adjacency—as with the name "lion" for the courageous man and with expressions by which discourse is conveyed indirectly.

والمجاز العقلي ويسمى مجازا حكميا ومجازا في الإثبات وإسنادا مجازيا وهو إسناد الفعل أو معناه إلى ملابس له غير ما هو له أي غير الملابس الذي ذلك الفعل أو معناه له يعني غير الفاعل فيما بني للفاعل وغير المفعول فيما بني للمفعول بتأول متعلق بإسناده.

Intellectual figurative usage—also called figurative judgement, figurative affirmation, or figurative predication—is attributing an act, or its meaning, to something associated with it other than that to which it properly belongs: that is, other than the agent in an active construction or the patient in a passive construction, by an interpretive transfer affecting the attribution.

وحاصله أن تنصب قرينة صارفة للإسناد عن أن يكون إلى ما هو له كقوله في عيشة راضية فيما بني للفاعل وأسند إلى المفعول به إذ العيشة مرضية وسيل مفعم في عكسه اسم مفعول من أفعمت الإناء ملأته وأسند إلى الفاعل.

In sum, one establishes an indicator diverting the attribution from its proper subject. For example, "in a contented life" [Q 69:21; 101:7] uses an active form but attributes it to what is properly the object, since the life is that with which one is content. Conversely, "a filled torrent" uses a passive participle from "I filled the vessel," but attributes it to the agent that does the filling.

والمجاز اللغوي هو الكلمة المستعملة في غير ما وضعت له بالتحقيق في اصطلاح به التخاطب مع قرينة مانعة عن إرادته أي إرادة معناها في ذلك الاصطلاح.

Linguistic figurative usage is a word used for other than what it was actually assigned to denote in the convention governing the discourse, together with an indicator preventing that meaning from being intended—that is, its meaning within that convention.

والمجاز المركب هو اللفظ المستعمل فيما شبه بمعناه الأصلي أي بالمعنى الذي يدل عليه ذلك اللفظ بالمطابقة للمبالغة في التشبيه كما يقال للمتردد في أمر إني أراك تقدم رجلا وتؤخر أخرى.

Composite figurative usage is an expression used for something compared with its original meaning—the meaning it indicates by complete correspondence—in order to intensify the comparison. For example, one says to someone hesitating over a matter: "I see you putting one foot forward and drawing the other back."

Editorial note. This complete numbered article includes the source's subordinate discussions of intellectual, linguistic, and composite figurative usage. They are not reduced to its opening definition.

↑ Term directory · Sources · Headword relations

118. mujtahid مُجْتَهِد

In the Darūrī: One qualified to undertake independent juristic inquiry; competence may concern a determinate question rather than every branch of law.

Text: §231 · §232 · §233 · §234 · §236

mujtahid · المجتهد

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1281. Source ↗

من يحوي علم الكتاب ووجوه معانيه وعلم السنة بطرقها ومتونها ووجوه معانيها ويكون مصيبا في القياس عالما بعرف الناس.

One who possesses knowledge of the Book and the aspects of its meanings, and of the Sunna in its transmission routes, wording, and aspects of meaning; who reasons correctly by analogy; and who knows people's customary practice.

↑ Term directory · Sources · Headword relations

119. mujmal مُجْمَل

In the Darūrī: Indeterminate wording or indication, insufficient by itself to select the required meaning; clarification can come through several kinds of evidence.

Text: §151 · §155 · §158 · §214 · §218

mujmal · المجمل

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1289. Source ↗

هو ما خفي المراد منه بحيث لا يدرك بنفس اللفظ إلا ببيان من المجمل سواء كان ذلك لتزاحم المعاني المتساوية الإقدام كالمشترك أو لغرابة اللفظ كالهلوع أو لإنتقاله من معناه الظاهر إلى ما هو غير معلوم فترجع إلى الاستفسار ثم الطلب ثم التأمل كالصلاة والزكاة والربا فإن الصلاة في اللغة الدعاء وذلك غير مراد وقد بينها النبي ص - بالفعل فتطلب المعنى الذي جعلت الصلاة لأجله صلاة أهو التواضع والخشوع أو الأركان المعلومة ثم نتأول أي نتعدى إلى صلاة - الجنازة فيمن يخلفه ويصلي أم لا.

An expression whose intended meaning is hidden so that it cannot be grasped from the wording itself without explanation from the one who left it indeterminate. This may result from competing senses with equal claims, as with an equivocal word; unfamiliarity, as with halūʿ; or transfer from its apparent sense to an unknown one. One consequently turns to requesting explanation, then investigation, then reflection: examples include prayer, alms, and usury. Prayer ordinarily means supplication, but that is not what is intended here, and the Prophet explained it by action. One investigates what makes prayer prayer: humility and reverence, or the known integral acts? One then interprets—that is, extends the consideration—to funeral prayer, concerning someone who replaces him and whether he prays or not.

Editorial note. The final phrase "فيمن يخلفه" is unclear in this witness; it is translated cautiously rather than silently reconstructed. The article is retained complete up to the next numbered headword.

↑ Term directory · Sources · Headword relations

120. maḥkūm ʿalayhi مَحْكُوم عَلَيْهِ

In the Darūrī: The person to whom the ruling applies; understanding, capacity and other conditions affect the nature of the address.

Text: §36 · §38 · §42

ḥākim · الحاكم. Complete article printed under ḥākim. exact ḥākim article, which expressly defines maḥkūm fīhi, maḥkūm ʿalayhi and mukallaf; not three invented separate articles.

↑ Term directory · Sources · Headword relations

121. maḥkūm fīhi مَحْكُوم فِيهِ

In the Darūrī: The act or matter about which a legal judgement is made; distinguish the person addressed by it.

Text: §36 · §43

ḥākim · الحاكم. Complete article printed under ḥākim. exact ḥākim article, which expressly defines maḥkūm fīhi, maḥkūm ʿalayhi and mukallaf; not three invented separate articles.

↑ Term directory · Sources · Headword relations

122. mukhayyil مُخَيِّل

In the Darūrī: A ground presenting a plausible rationale for a ruling, often considered with suitability. Not “imaginal” in the metaphysical sense.

Text: §217 · §224

mukhayyilāt · المخيلات

Attributed to Jalāl al-Dīn al-Suyūṭī [L] · *Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm* · entry 970. Source ↗

قضايا إذا وردت على النفس أثرت فيها تأثيرا عجيبا من قبض، وبسط.

Propositions which, when presented to the soul, affect it strikingly through contraction or expansion.

Editorial note. This is the logical and poetic sense of imaginative propositions. It must not be substituted for the uṣūlī use of mukhayyil for a feature that suggests the appropriateness of a legal cause.

ikhāla · الإخالة

Attributed to Jalāl al-Dīn al-Suyūṭī [L] · *Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm* · entry 308. Source ↗

ملاءمة الحكم للمصلحة ومناسبة العلة.

The ruling’s fitting the benefit, and the appropriateness of the cause.

Editorial note. This is the uṣūlī technical sense relevant to mukhayyil, separately attributed from the logical article on mukhayyilāt.

maṣlaḥa · المصلحة. Complete article printed under istiṣlāḥ. related technical discussion of ikhāla and mukhayyila within the complete maṣlaḥa article.

↑ Term directory · Sources · Headword relations

123. mudrak مُدْرَك

In the Darūrī: Source or means of apprehension: where or how a judgement is known. The lexical vocalization has an initial ḍamma.

Text: §13 · §47

d-r-k · درك

al-Rāghib al-Iṣfahānī [E] · *al-Mufradāt fī gharīb al-Qurʾān* · s.v. درك. Source ↗

الدرك كالدرج، لكن الدرج يقال اعتبارا بالصعود، والدرك اعتبارا بالحدور، ولهذا قيل: درجات الجنة، ودركات النار، ولتصور الحدور في النار سميت هاوية، وقال تعالى: إن المنافقين في الدرك الأسفل من النار [النساء/145]، والدرك أقصى قعر البحر. ويقال للحبل الذي يوصل به حبل آخر ليدرك الماء درك، ولما يلحق الإنسان من تبعة درك كالدرك في البيع. قال تعالى: لا تخاف دركا ولا تخشى [طه/77]، أي: تبعة.

Dark resembles daraj, but daraj is used with regard to ascent and dark with regard to descent. Hence one speaks of the ascending degrees of Paradise and the descending levels of the Fire; because descent is conceived in the Fire it is called Hāwiya, the abyss. God Most High says: “The hypocrites are in the lowest level of the Fire” [Q 4:145]. Darak also means the deepest bottom of the sea. The rope joined to another rope to reach water is called darak, as is a liability that catches up with a person, such as liability in a sale. God says: “Fearing neither pursuit nor harm” [Q 20:77], that is, being overtaken.

وأدرك: بلغ أقصى الشيء، وأدرك الصبي: بلغ غاية الصبا، وذلك حين البلوغ، قال: حتى إذا أدركه الغرق [يونس/90]، وقوله: لا تدركه الأبصار وهو يدرك الأبصار [الأنعام/103]، فمنهم من حمل ذلك على البصر الذي هو الجارحة، ومنهم من حمله على البصيرة، وذكر أنه قد نبه به على ما روي عن أبي بكر رضي الله عنه في قوله: يا من غاية معرفته القصور عن معرفته، إذ كان غاية معرفته تعالى أن تعرف الأشياء فتعلم أنه ليس بشيء منها، ولا بمثلها بل هو موجد كل ما أدركته.

Adraka means to reach a thing's furthest point. "The boy adraka" means that he reached the limit of childhood, at puberty. God says: "Until drowning overtook him" [Q 10:90]. As for "Eyes do not encompass Him, but He encompasses eyes" [Q 6:103], some interpret this as bodily sight and others as inner perception. It has been said that this points to the saying reported from Abū Bakr, God be pleased with him: "O You, the limit of whose knowledge is falling short of knowing You!" For the utmost knowledge of Him Most High is to know things and thereby know that He is neither any of them nor like them, but is the bringer-into-existence of everything one apprehends.

والتدارك في الإغاثة والنعمة أكثر، نحو قوله تعالى: لولا أن تداركه نعمة من ربه [القلم/49]، وقوله: حتى إذا اداركوا فيها جميعا [الأعراف/38]، أي: لحق كل بالآخر. وقال: بل ادارك علمهم في الآخرة [النمل/66]، أي: تدارك، فأدغمت التاء في الدال، وتوصل إلى السكون بألف الوصل، وعلى ذلك قوله تعالى: حتى إذا اداركوا فيها [الأعراف/38]، ونحوه: اثاقلتم إلى الأرض [التوبة/38]، واطيرنا بك [النمل/47]، وقرئ: بل أدرك علمهم في الآخرة، وقال الحسن: معناه جهلوا أمر الآخرة، وحقيقته انتهى علمهم في لحوق الآخرة فجهلوها. وقيل معناه: بل يدرك علمهم ذلك في الآخرة، أي: إذا حصلوا في الآخرة، لأن ما يكون ظنونا في الدنيا، فهو في الآخرة يقين.

Tadāruk is most often used for aid and favour, as in "Had not a favour from his Lord reached him" [Q 68:49]. "Until, when they have all caught up with one another in it" [Q 7:38] means that each joined the other. He also says: "Rather, their knowledge concerning the Hereafter has reached its limit" [Q 27:66]: iddāraka here represents tadāraka, with the tāʾ assimilated into dāl and a connecting alif permitting pronunciation of the initial consonant cluster. The same applies to iddārakū in Q 7:38, and similarly to iththāqaltum, "you clung heavily to the earth" [Q 9:38], and iṭṭayyarnā bika, "we take you as an evil omen" [Q 27:47]. The reading "bal adraka ʿilmuhum fī l-ākhira" is also transmitted. Al-Ḥasan says it means that they were ignorant of the Hereafter: strictly, their knowledge ended when it came to reaching the Hereafter, so they were ignorant of it. Another interpretation is that their knowledge will apprehend it in the Hereafter—when they arrive there—because what is conjectural in this world is certain in the Hereafter.

Editorial note. The inherited glossary's technical contextual gloss is not claimed to be a dictionary definition of this exact vocalization. The root article distinguishes sensory and intellectual apprehension.

↑ Term directory · Sources · Headword relations

124. mursal مُرْسَل

In the Darūrī: A report whose chain leaves an intermediary unmentioned; acceptance is discussed separately from connected transmission.

Text: §111

mursal · المرسل

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1333. Source ↗

من الحديث ما أسنده التابعي أو تبع التابعي إلى النبي ص - من غير أن يذكر الصحابي الذي روى الحديث عن النبي ص - كما يقول قال رسول الله صلى الله عليه و سلم.

A report that a Successor or a Successor's successor attributes to the Prophet without mentioning the Companion who transmitted it from the Prophet, as when he says, "The Messenger of God said."

↑ Term directory · Sources · Headword relations

125. musnad مُسْنَد

In the Darūrī: A report with an articulated connected attribution; its comparative force still depends on the relevant transmitters and circumstances.

Text: §111

musnad · المسند

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1366. Source ↗

من الحديث خلاف المرسل وهو الذي اتصل إسناده إلى رسول الله صلى الله عليه وسلم وهو ثلاثة أقسام المتواتر والمشهور والآحاد.

Among reports, the counterpart of mursal: a report whose attribution is connected to God's Messenger, peace and blessings be upon him. It has three divisions: massively transmitted, widely transmitted, and solitary.

والمسند قد يكون متصلا ومنقطعا والمتصل مثل ما روى مالك عن نافع عن ابن عمر عن رسول الله صلى الله عليه وسلم والمنقطع مثل ما روى مالك عن الزهري عن ابن عباس عن رسول الله صلى الله عليه وسلم فهذا مسند لأنه قد أسند إلى رسول الله صلى الله عليه وسلم ومنقطع لأن الزهري لم يسمع من ابن عباس رضي الله عنه.

A musnad report may have a connected or an interrupted chain. A connected example is Mālik's transmission from Nāfiʿ, from Ibn ʿUmar, from God's Messenger, peace and blessings be upon him. An interrupted example is Mālik's transmission from al-Zuhrī, from Ibn ʿAbbās, from God's Messenger, peace and blessings be upon him. This is musnad because it is attributed to God's Messenger, but interrupted because, according to the source, al-Zuhrī did not hear from Ibn ʿAbbās, God be pleased with him.

Editorial note. The apparent tension between the opening definition and the subsequent acceptance of an interrupted musnad is preserved: attribution to the Prophet and continuity of every link are not silently conflated.

↑ Term directory · Sources · Headword relations

126. mashhūrāt مَشْهُورَات

In the Darūrī: Widely accepted propositions; general acceptance alone does not establish rational necessity or demonstrative truth.

Text: §12

mashhūrāt · المشهورات

Attributed to Jalāl al-Dīn al-Suyūṭī [L] · *Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm* · entry 964. Source ↗

ما يحكم بها لاعتراف الناس جميعا بها لمصلحة عامة، أو رقة، أو حمية، أو انفعالات من عبادات، وشرائع، وآداب.

Propositions accepted in judgement because all people acknowledge them: on account of a general benefit, compassion, zeal, or responses produced by acts of worship, religious laws, and cultivated manners.

Editorial note. The witness reads ʿibādāt (acts of worship), not ʿādāt (customs); the translation retains that reading. This is a definition of accepted propositions, not a claim that their popularity makes them demonstratively certain.

↑ Term directory · Sources · Headword relations

127. maṣlaḥa مَصْلَحَة

In the Darūrī: Benefit or welfare. Its legal authority depends on its relation to recognized purposes or evidence, not on attractiveness alone.

Text: §146 · §217

maṣlaḥa · المصلحة. Complete article printed under istiṣlāḥ. exact headword.

↑ Term directory · Sources · Headword relations

128. muṭlaq مُطْلَق

In the Darūrī: Unqualified: wording without a stated restriction in the relevant respect. Unqualified and general are not simply interchangeable categories.

Text: §189 · §201 · §203

muṭlaq · المطلق

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1398. Source ↗

ما يدل على واحد غير معين. — What indicates one unspecified instance.

↑ Term directory · Sources · Headword relations

129. maʿqūl مَعْقُول

In the Darūrī: Intelligible meaning or object of understanding. In legal interpretation it contrasts with reliance upon verbal form alone.

Text: §149 · §193 · §212

maʿqūlāt ūlā · المعقولات الأولى

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1416. Source ↗

ما يكون بإزائه موجود في الخارج كطبيعة الحيوان والإنسان فإنهما يحملان على الموجود الخارجي كقولنا زيد إنسان والفرس حيوان. — Those to which something existing externally corresponds, such as the nature of animal or human being. They are predicated of an external existent, as in “Zayd is a human being” and “The horse is an animal.”

maʿqūlāt thāniya · المعقولات الثانية

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1417. Source ↗

ما لا يكون بإزائه شيء فيه كالنوع والجنس والفصل فإنها لا تحمل على شيء من الموجودات الخارجية. — Those to which no thing in external existence corresponds, such as species, genus, and differentia. These are not predicated of any external existent.

maʿqūl · المعقول

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1418. Source ↗

الكلي الذي يطابق صورة في الخارج كالإنسان والحيوان والضاحك. — The universal that corresponds to a form externally, such as human being, animal, and capable of laughter.

↑ Term directory · Sources · Headword relations

130. maʿlūl مَعْلُول

In the Darūrī: That explained or grounded by an ʿilla; correspondence with a feature does not by itself establish explanatory dependence.

Text: §210 · §220 · §222

maʿlūl akhīr · المعلول الأخير

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1421. Source ↗

هو ما لا يكون علة لشيء أصلا. — That which is not a cause of anything at all.

Editorial note. This is specifically the final effect, not an unqualified definition of every effect.

↑ Term directory · Sources · Headword relations

131. maʿnā مَعْنَى

In the Darūrī: Meaning, intelligible content or relevant feature. Translating it uniformly as “cause” would conceal important distinctions.

Text: §149 · §158 · §193 · §212

maʿānī · المعاني

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1404. Source ↗

هي الصورة الذهنية من حيث انه وضع بإزائها الألفاظ والصور الحاصلة في العقل فمن حيث إنها تقصد باللفظ سميت مفهوما ومن حيث انه مقول في جواب ما هو سميت ماهية ومن حيث ثبوته في الخارج سميت حقيقة ومن حيث امتيازه عن الأغيار سميت هوية.

They are the mental form considered insofar as expressions are assigned to it. The forms present in the intellect are called a concept insofar as they are intended by an expression; a quiddity insofar as they are predicated in answer to “What is it?”; a reality insofar as they are established externally; and an identity insofar as they are distinguished from other things.

Editorial note. The plural maʿānī is the source headword. Its discussion of mafhūm is retained within that article and separately cross-referenced, not relabeled.

maʿnā · المعنى

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1426. Source ↗

ما يقصد بشيء.

What is intended by a thing.

↑ Term directory · Sources · Headword relations

132. mafhūm مَفْهُوم

In the Darūrī: Understood import: the meaning apprehended through an expression and its context, including but not limited to contrary implication.

Text: §149 · §193 · §194 · §195

maʿānī · المعاني. Complete article printed under maʿnā. plural headword; explicit internal discussion.

mafhūm al-mukhālafa · مفهوم المخالفة. Complete article printed under dalīl al-khiṭāb. named technical counterpart.

mafhūm al-muwāfaqa · مفهوم الموافقة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1445. Source ↗

هو ما يفهم من الكلام بطريق المطابقة.

What is understood from speech by direct correspondence.

Editorial note. This source’s concise use of muṭābaqa is reproduced as written; it should not be silently assimilated to another school’s definition.

manṭūq · المنطوق

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. المنطوق. Source ↗

ما دل عليه اللفظ في محل النطق كتحريم التأفيف الدال عليه {فَلَا تَقُلْ لَهُمَا أُفٍّ وَلا تَنْهَرْهُمَا}، والمفهوم ما دل عليه اللفظ لا في محل النطق.

What the expression signifies at the locus of its utterance: for example, the prohibition of saying ‘uff’ signified by ‘Do not say “uff” to them, and do not rebuke them’ [Q 17:23]. The implied meaning, by contrast, is what the expression signifies outside the locus of its utterance.

↑ Term directory · Sources · Headword relations

133. muqaddima مُقَدِّمَة

In the Darūrī: Premise, or an introductory discussion. Premises can contribute to assent without being consciously arranged as a syllogism.

Text: §9 · §75 · §76

muqaddima · المقدمة

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1456. Source ↗

تطلق تارة على ما يتوقف عليه الأبحاث الآتية وتارة تطلق على قضية جعلت جزء القياس وتارة تطلق على ما يتوقف عليه صحة الدليل.

Sometimes applied to what subsequent investigations depend upon, sometimes to a proposition made a constituent of a syllogism, and sometimes to what the validity of a proof depends upon.

والمقدمة الغريبة هي التي لا تكون مذكورة في القياس لا بالفعل ولا بالقوة كما إذا قلنا أ مساو ل ب و ب مساو ل ج ينتج أ مساو ل ج بواسطة مقدمة غريبة وهي كل مساو لشيء مساو لذلك الشيء.

An extraneous premise is one mentioned in a syllogism neither actually nor potentially. Thus, “A equals B; B equals C” yields “A equals C” by an extraneous premise, here worded: “Everything equal to a thing is equal to that thing.”

ومقدمة الكتاب ما يذكر فيه قبل الشروع في المقصود لارتباطها ومقدمة العلم ما يتوقف عليه الشروع فمقدمة الكتاب أعم من مقدمة العلم بينهما عموم وخصوص مطلق والفرق بين المقدمة والمبادىء أن المقدمة أعم عن المبادىء فالمبادىء يتوقف عليها المسائل بلا واسطة والمقدمة ما يتوقف عليه المسائل بواسطة أو لا واسطة.

A book’s introduction is what is mentioned before commencing the intended subject because of its connection with it. A science’s introduction is what commencing that science depends upon. The former is therefore broader than the latter, their relation being unrestricted generality and particularity. An introduction is also broader than principles: problems depend immediately on principles, whereas they may depend on an introduction either mediately or immediately.

Editorial note. The extraneous premise is abbreviated or defective in this witness: transitivity requires equality to the equal of a thing. The translation preserves the transmitted wording rather than silently supplying it.

↑ Term directory · Sources · Headword relations

134. maqṣūd مَقْصُود

In the Darūrī: What is intended: the intelligible aim of the address, recovered through indications rather than supplied by arbitrary preference.

Text: §161 · §191 · §217 · §239

qaṣada · قصد

al-Rāghib al-Iṣfahānī [E] · *al-Mufradāt fī gharīb al-Qurʾān* · s.v. قصد. Source ↗

القَصْدُ: استقامة الطريق، يقال: قَصَدْتُ قَصْدَهُ، أي: نحوت نحوه، ومنه: الِاقْتِصَادُ، والِاقْتِصَادُ على ضربين: أحدهما محمود على الإطلاق، وذلك فيما له طرفان: إفراط وتفريط كالجود، فإنه بين الإسراف والبخل، وكالشّجاعة فإنّها بين التّهوّر والجبن، ونحو ذلك، وعلى هذا قوله: وَاقْصِدْ فِي مَشْيِكَ [لقمان/19] وإلى هذا النحو من الاقتصاد أشار بقوله: وَالَّذِينَ إِذا أَنْفَقُوا [الفرقان/67].

Qaṣd is straightness of a path. “I directed myself towards his direction” means “I went where he was going.” From this comes iqtiṣād, moderation. Moderation is of two kinds. The first is unconditionally praiseworthy: it concerns things with two extremes, excess and deficiency. Generosity, for example, lies between extravagance and stinginess, and courage between recklessness and cowardice, and similarly in other cases. Such is “Be moderate in your walking” [Q 31:19]. God also indicates this kind of moderation in “Those who, when they spend …” [Q 25:67].

والثاني يكنّى به عمّا يتردّد بين المحمود والمذموم، وهو فيما يقع بين محمود ومذموم، كالواقع بين العدل والجور، والقريب والبعيد، وعلى ذلك قوله: فَمِنْهُمْ ظالِمٌ لِنَفْسِهِ وَمِنْهُمْ مُقْتَصِدٌ [فاطر/32]، وقوله: وَسَفَراً قاصِداً [التوبة/42] أي: سفرا متوسّط غير متناهي هي البعد، وربما فسّر بقريب.

The second is an indirect expression for something intermediate between the praiseworthy and the blameworthy: it lies between something praised and something blamed, as between justice and injustice, or the near and the far. Such is “Among them are those who wrong themselves, and among them are those who take a middle course” [Q 35:32]. “And a journey of moderate length” [Q 9:42] means an intermediate journey, not extremely distant; it is sometimes explained as a short journey.

والحقيقة ما ذكرت، وأَقْصَدَ السّهم: أصاب وقتل مكانه، كأنه وجد قَصْدَهُ قال: فأصاب قلبك غير أن لم تقصد. وانْقَصَدَ الرّمحُ: انكسر، وتَقَصَّدَ: تكسّر، وقَصَدَ الرّمحَ: كسره، وناقة قَصِيدٌ: مكتنزة ممتلئة من اللّحم، والقَصِيدُ من الشّعر: ما تمّ شطر أبنيته.

The true sense is what I have explained. Aqṣada al-sahm means that the arrow struck and killed on the spot, as though it had found its mark. The poet says: “It struck your heart, though you were not killed outright.” Inqaṣada al-rumḥ means that the spear broke; taqaṣṣada, that it broke into pieces; and qaṣada al-rumḥ, that he broke it. A camel called qaṣīd is compact and full-fleshed. Qaṣīd in poetry is that in which one half of its metrical structures is complete.

Editorial note. The digital witness has هي البعد where في البعد is required by the sense; the translation reads “in distance”. The final prosodic definition is translated as transmitted, without silently replacing it with a modern definition of qaṣīda.

↑ Term directory · Sources · Headword relations

135. muqayyad مُقَيَّد

In the Darūrī: Qualified: wording limited by a condition or attribute. Moving a qualification between contexts requires a warrant.

Text: §189 · §195

muqayyad · المقيد

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1461. Source ↗

ما قيد لبعض صفاته.

What is qualified with respect to some of its attributes.

↑ Term directory · Sources · Headword relations

136. makrūh مَكْرُوه

In the Darūrī: Disapproved or disliked, one of the fivefold legal classifications; use in context can require distinction from outright forbiddance.

Text: §17 · §208

makrūh · المكروه. Complete article printed under karāha. exact headword.

↑ Term directory · Sources · Headword relations

137. mukallaf مُكَلَّف

In the Darūrī: A person subject to legal responsibility; physical action, comprehension and the relevant legal conditions must be distinguished.

Text: §38 · §42 · §45 · §50

ḥākim · الحاكم. Complete article printed under ḥākim. exact ḥākim article, which expressly defines maḥkūm fīhi, maḥkūm ʿalayhi and mukallaf; not three invented separate articles.

↑ Term directory · Sources · Headword relations

138. mulāʾim مُلَائِم

In the Darūrī: Congruent or fitting: a proposed ground related to a kind of consideration which revelation has recognized.

Text: §217 · §224

munāsib · المناسب

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. المناسب. Source ↗

الملائم لأفعال العقلاء عادة. وقيل ما يجلب نفعا أو يدفع ضرا. وقيل ما لو عرض على العقول تلقته بالقبول.

What ordinarily accords with the actions of rational people. It is also said to be what brings benefit or averts harm; or that which, were it presented to intellects, they would receive with acceptance.

mulāʾim · الملائم

Attributed to Jalāl al-Dīn al-Suyūṭī [L] · *Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm* · entry 311. Source ↗

ما أثر جنس العلة في جنس الحكم.

That in which the genus of the cause has an established effect upon the genus of the ruling.

↑ Term directory · Sources · Headword relations

139. munāsib مُنَاسِب

In the Darūrī: Suitable: a proposed ground connected intelligibly with a legally recognized benefit or prevention of harm.

Text: §217 · §224

munāsib · المناسب. Complete article printed under mulāʾim. exact munāsib headword; mulāʾim occurs in the definition, not as an independent article.

↑ Term directory · Sources · Headword relations

140. munāwala مُنَاوَلَة

In the Darūrī: Handing over a written text with authorization to transmit; distinct from direct hearing and a bare written attribution.

Text: §104 · §105

munāwala · المناولة. Complete article printed under ijāza. exact headword.

↑ Term directory · Sources · Headword relations

141. mandūb مَنْدُوب

In the Darūrī: Recommended: an act commended without being obligatorily demanded. Its contrary does not acquire a ruling by a purely verbal inversion.

Text: §17 · §32 · §208

mandūb · المندوب

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1494. Source ↗

هو المتفجع عليه ب يا أو وا وعند الفقهاء هو الفعل الذي يكون راجحا على تركه في نظر الشارع ويكون تركه جائزا.

In grammar: the person lamented with yā or wā. Among jurists: an act whose performance is preferable to its omission in the Lawgiver’s assessment, while its omission remains permissible.

Editorial note. The grammatical sense is a separate homographic usage. Nadb is linked as the corresponding abstract noun.

↑ Term directory · Sources · Headword relations

142. manṭūq مَنْطُوق

In the Darūrī: What is explicitly expressed, contrasted with the unmentioned case or the meaning understood beyond verbal form.

Text: §149 · §191 · §210 · §212

manṭūq · المنطوق. Complete article printed under mafhūm. exact manṭūq article, including its explicit contrast with mafhūm.

↑ Term directory · Sources · Headword relations

143. muʾawwal مُؤَوَّل

In the Darūrī: Interpreted wording: an expression taken in a less immediately apparent sense because an adequate indication supports that reading.

Text: §151 · §164 · §166

muʾawwal · المؤول

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1516. Source ↗

ما ترجح من المشترك بعض وجوهه بغالب الرأي لأنك متى تأملت موضع اللفظ وصرفت اللفظ عما يحتمله من الوجوه إلى شيء معين بنوع رأي فقد أولته إليه قوله من المشترك قيد اتفاقي وليس بلازم إذ المشكل والخفي إذا علم بالرأي كان مؤولا أيضا وإنما خصه ب غالب الرأي لأنه لو ترجح بالنص كان مفسرا لا مؤولا.

An equivocal expression for which one of its senses has been preferred by predominant judgement. Whenever you consider an expression’s position and, by a kind of judgement, direct it from its several possible senses to a particular one, you have interpreted it accordingly. “Of an equivocal expression” is an incidental qualification, not a necessary one: the problematic and the obscure are also interpreted when known through judgement. Predominant judgement is specified because, were the preference established by an explicit text, the expression would be explained rather than interpreted.

↑ Term directory · Sources · Headword relations

144. nadb نَدْب

In the Darūrī: Recommendation, distinct from obligation; its establishment depends on the relevant usage and indication.

Text: §17 · §200 · §208

mandūb · المندوب. Complete article printed under mandūb. derived adjectival headword for the legal category.

↑ Term directory · Sources · Headword relations

145. naskh نَسْخ

In the Darūrī: Abrogation: termination of an earlier legal ruling by later revelation; not identical with specification or additional explanation.

Text: §114 · §115 · §118 · §126 · §181

naskh · النسخ

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1547. Source ↗

في اللغة عبارة عن التبديل والرفع والإزالة يقال نسخت الشمس الظل إذا أزالته وفي الشرع هو أن يرد دليل شرعي متراخيا عن دليل شرعي مقتضيا خلاف حكمه فهو تبديل بالنظر إلى علمنا وبيان لمدة الحكم بالنظر إلى علم الله تعالى.

In ordinary language: replacement, removal, and elimination. One says “The sun removed the shade” when it eliminates it. In revealed law: a legal proof arrives later than another legal proof and requires a ruling contrary to it. It is replacement relative to our knowledge, but clarification of the ruling’s duration relative to God’s knowledge.

وفي الشريعة هو بيان انتهاء الحكم الشرعي في حق صاحب الشرع وكان انتهاؤه عند الله تعالى معلوما إلا أن في علمنا كان استمراره ودوامه وبالناسخ علمنا انتهاءه وكان في حقنا تبديلا وتغييرا.

Also in revealed law: clarifying the termination of a legal ruling from the Lawgiver’s standpoint. Its termination was known to God, whereas in our knowledge it continued and endured. Through the abrogating proof we learn its termination; for us this is replacement and change.

↑ Term directory · Sources · Headword relations

146. naṣṣ نَصّ

In the Darūrī: Unambiguous indication: a determinate meaning, not simply any “text.” The book admits unambiguity through understood import as well as wording.

Text: §151 · §157 · §193 · §215

naṣṣ · النص

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1549. Source ↗

ما ازداد وضوحا على الظاهر لمعنى في المتكلم وهو سوق الكلام لأجل ذلك المعنى فإذا قيل أحسنوا إلى فلان الذي يفرح بفرحي ويغتم بغمي كان نصا في بيان محبته.

What possesses greater clarity than the apparent expression because of something in the speaker’s intention: the speech is directed towards that meaning. Thus, “Be good to so-and-so, who rejoices when I rejoice and grieves when I grieve” is explicit in expressing love for him.

وما لا يحتمل إلا معنى واحدا وقيل ما لا يحتمل التأويل.

Also: what admits only one meaning; or, it is said, what does not admit interpretive redirection.

↑ Term directory · Sources · Headword relations

147. naẓar نَظَر

In the Darūrī: Inquiry or reflective consideration, including the disciplined examination of evidence; more specific than casual “looking.”

Text: §1 · §13 · §45 · §148

naẓar · النظر

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. النظر. Source ↗

طلب المعنى بالقلب من جهة الذكر، كما يطلب إدراك المحسوس بالعين، ذكره الحرالي، قال: وأول موقع العين على الصورة نظر، ومعرفة خبرتها الحسية بصر، ونفوذه إلى حقيقتها رؤية. فالبصر متوسط بين النظر والرؤية كما قال تعالى {وَتَرَاهُمْ يَنْظُرُونَ إِلَيْكَ وَهُمْ لَا يُبْصِرُونَ}. وقال غيره: تقليب البصر أو البصيرة لإدراك الشيء ورؤيته، وقد يراد به التأمل والفحص، وقد يراد به المعرفة الحاصلة بعد الفحص، واستعمال النظر في البصر أكثر عند العامة، وفي البصيرة أكثر عند الخاصة.

ونظر الله إلى عباده إحسانه إليهم وإفاضة نعمه عليهم. والنظير: المثل، واصله المناظر كأنه ينظر كل منهما إلى صاحبه فيناديه. والمناظرة: المباحثة والمباراة في النظر. والنظر: البحث، وهو أعم من القياس لأن كل قياس نظر ولا عكس.

النظر عند أهل الأصول: الفكر المؤدي إلى علم أو ظن.

Seeking a meaning with the heart through recollection, just as one seeks to apprehend something sensible with the eye: this is al-Ḥarāllī's account. He says: the eye's first encounter with a form is looking; acquaintance with its sensible character is sight; and penetration to its reality is vision. Sight thus lies between looking and vision, as in God's saying, 'You see them looking towards you, but they do not see' [Q 7:198]. Another account is: directing sight or insight about in order to apprehend and see a thing. It may mean reflection and examination, or the knowledge obtained after examination. Ordinary people more often use naẓar for bodily sight; the select more often use it for insight.

God's looking towards His servants means His beneficence towards them and His pouring out blessings upon them. Naẓīr means a counterpart; its origin is munāẓir, as though each looks towards the other and calls to him. Munāẓara is mutual investigation and competing in inquiry. Naẓar also means investigation: it is more general than syllogistic reasoning, since every syllogism is inquiry, but not conversely.

For the specialists in legal theory, naẓar is thought leading to knowledge or probable judgement.

↑ Term directory · Sources · Headword relations

148. naql نَقْل

In the Darūrī: Transmission; also a word's transfer from one usage to another. Context distinguishes the two technical senses.

Text: §66 · §153 · §256

al-manqūl · المنقول

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · entry 1507. Source ↗

هو ما كان مشتركا بين المعاني وترك استعماله في المعنى الأول ويسمى به لنقله من المعنى الأول والناقل إما الشرع فيكون منقولا شرعيا كالصلاة والصوم فإنهما في اللغة للدعاء ومطلق الإمساك ثم نقلهما الشرع إلى الأركان المخصوصة والإمساك المخصوص مع النية وإما غير الشرع وهو إما العرف العام فهو المنقول العرفي ويسمى حقيقة عرفية كالدابة فإنها في أصل اللغة لكل ما يدب على الأرض ثم نقله العرف العام إلى ذات القوائم الأربع من الخيل والبغال والحمير أو العرف الخاص ويسمى منقولا اصطلاحيا كاصطلاح النحاة والنظار أما اصطلاح النحاة فكالفعل فإنه كان موضوعا لما صدر عن الفاعل كالأكل والشرب والضرب ثم نقله النحويون إلى كلمة دلت على معنى في نفسها مقترنة بأحد الأزمنة الثلاثة وأما اصطلاح النظار فكالدوران فإنه في الأصل للحركة في السكك ثم نقله النظار إلى ترتب الأثر على ما له صلوح العلية كالدخان فإنه أثر يترتب على النار وهي تصلح أن تكون علة للدخان وإن لم يترك معناه الأول بل يستعمل فيه أيضا يسمى حقيقة إن استعمل في الأول وهو المنقول عنه ومجازا إن استعمل في الثاني وهو المنقول إليه كالأسد فإنه وضع أولا للحيوان المفترس ثم نقل إلى الرجل الشجاع لعلاقة بينهما وهي الشجاعة.

A transferred expression is one shared between meanings whose use in its first meaning has been abandoned. It is so named because it has been transferred from that first meaning. The transferring agency may be the revealed law: it is then a legally transferred expression, such as ṣalāh and ṣawm. In ordinary language these mean supplication and unrestricted abstention, respectively; the law then transferred them to the specified ritual components and to the specified abstention accompanied by intention. Alternatively, the agency is something other than the law. If it is general custom, the expression is customarily transferred and is called a customary literal usage: for example, dābba originally means anything that moves upon the earth, but general custom transferred it to four-footed horses, mules, and donkeys. If it is a particular custom, it is called a technically transferred expression, as in the terminology of grammarians and speculative investigators. In grammar, fiʿl was assigned to what proceeds from an agent, such as eating, drinking, and striking; grammarians then transferred it to a word signifying a meaning in itself together with one of the three tenses. Among speculative investigators, dawarān originally meant movement through streets; they transferred it to an effect's following something capable of being its cause. Smoke, for example, is an effect following fire, which is capable of being its cause. If the first meaning has not been abandoned and the word is still also used in it, its use in the first, original meaning is called literal, and its use in the second, transferred meaning is called figurative. Thus asad was first assigned to the predatory animal and then transferred to a courageous man through a relationship between the two, namely courage.

al-athar · الأثر

ʿAbd al-Raʾūf al-Munāwī [L] · *al-Tawqīf ʿalā muhimmāt al-taʿārīf* · s.v. الأثر. Source ↗

حصول ما يدل على وجود الشيء والنتيجة، وأثرت الحديث نقلته.

The occurrence of something that indicates a thing's existence; also, a result. "I transmitted the report" (athartu al-ḥadīth) means "I conveyed it" (naqaltuhu).

↑ Term directory · Sources · Headword relations

149. nahy نَهْي

In the Darūrī: Prohibition or prohibitive address. Its force, contextual restriction and possible effect on validity need separate analysis.

Text: §28 · §197 · §206 · §208

nahy · النهي

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1575. Source ↗

ضد الأمر وهو قول القائل لمن دونه لا تفعل.

The opposite of command: a speaker’s saying to someone beneath him, “Do not do it.”

↑ Term directory · Sources · Headword relations

150. niyya نِيَّة

In the Darūrī: Intention: aiming at obedience or distinguishing a particular performance; not every legal effect depends on such an intention.

Text: §22 · §43 · §47

niyya · النية

Attributed to Jalāl al-Dīn al-Suyūṭī [L] · *Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm* · entry 82. Source ↗

الإرادة المتوجهة نحو الفعل ابتغاء لمرضاة الله وامتثالا لأمره.

The will directed towards an act in seeking God’s good pleasure and complying with His command.

↑ Term directory · Sources · Headword relations

151. wājib وَاجِب

In the Darūrī: Obligatory: legally demanded. Alternative duties, extended times, necessary means and culpability prevent a merely schematic definition from doing all the work.

Text: §17 · §18 · §21 · §23 · §243

wājib · الواجب

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1596. Source ↗

في اللغة عبارة عن السقوط قال الله تعالى فإذا وجبت جنوبها الجمع 36 أي سقطت وهو في عرف الفقهاء عبارة عما ثبت وجوبه بدليل فيه شبهة العدم كخبر الواحد وهو ما يثاب بفعله ويستحق بتركه عقوبة لولا العذر حتى يضلل جاحده ولا يكفر به في العمل اسم لما لزم علينا بدليل فيه شبهة كخبر الواحد والقياس والعام المخصوص والآية المؤولة كصدقة الفطر والأضحية.

In ordinary language it denotes falling: God’s saying “When their sides have fallen” means that they have fallen. In jurists’ convention it is that whose obligation is established by a proof admitting a possibility of non-establishment, such as a solitary report. Its performance is rewarded and its omission merits punishment in the absence of an excuse, so that its denier is judged mistaken but not an unbeliever. As a practical obligation it names what binds us through a proof admitting uncertainty, such as a solitary report, analogy, a specified general expression, or an interpreted verse; examples include the end-of-Ramaḍān alms and the sacrificial offering.

والواجب لذاته هو الموجود الذي يمتنع عدمه امتناعا ليس الوجود له من غيره بل من نفس ذاته فإن كان وجوب الوجود لذاته سمى واجبا لذاته وإن كان لغيره سمي واجبا لغيره.

The intrinsically necessary is an existent whose nonexistence is impossible, and whose existence is not from another but from its own essence. When the necessity of existence belongs to it through itself, it is called intrinsically necessary; when through another, necessary through another.

Editorial note. The legal definition is Ḥanafī in orientation and distinguishes wājib from farḍ. The Qurʾanic verse is Q 22:36, not the erroneous sūra label in the witness. The metaphysical paragraph is a distinct technical sense.

↑ Term directory · Sources · Headword relations

152. waḍʿ وَضْع

In the Darūrī: Assignment or institution of a word's meaning; distinguish original linguistic assignment from subsequent transfer and specialized legal usage.

Text: §153 · §199

waḍʿ · الوضع

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1619. Source ↗

في اللغة جعل اللفظ بإزاء المعنى وفي الاصطلاح تخصيص شيء بشيء متى أطلق أو أحسن الشيء الأول فهم منه الشيء الثاني والمراد بالإطلاق استعمال اللفظ وإرادة المعنى.

In ordinary language: setting an expression in correspondence with a meaning. Technically: assigning one thing to another such that whenever the first is uttered or perceived, the second is understood from it. Utterance here means using the expression and intending the meaning.

والإحساس استعمال اللفظ أعم من أن يكون فيه إرادة المعنى أولا وفي اصطلاح الحكماء هو هيئة عارضة للشيء بسبب نسبتين نسبة أجزاء بعضها إلى بعض ونسبة أجزائه إلى الأمور الخارجية عنه كالقيام والقعود فإن كلا منهما هيئة عارضة للشخص بسبب نسبة أعضائه بعضها إلى بعض و إلى الأمور الخارجية عنه.

Perception means use of the expression more generally, whether or not the meaning is intended. In the philosophers' terminology, position is a configuration occurring to a thing because of two relations: the relation of its parts to one another, and their relation to things external to it. Standing and sitting are each a configuration occurring to a person through the relations of the limbs to one another and to external things.

Editorial note. The witness reads aḥsana (أحسن) where its following explanation requires aḥassa, "perceived". The translation follows that evident reading; the Arabic witness is preserved.

↑ Term directory · Sources · Headword relations

153. yaqīn يَقِين

In the Darūrī: Certainty: assent not merely outweighed probability. Its sources and possible degrees are discussed without reducing it to a transmitter count.

Text: §74 · §75 · §78 · §125

yaqīn · اليقين

al-Sharīf al-Jurjānī [L] · *Kitāb al-Taʿrīfāt* · online entry 1644. Source ↗

في اللغة العلم الذي لا شك معه وفي الاصطلاح اعتقاد الشيء بأنه كذا مع اعتقاد أنه لا يمكن إلا كذا مطابقا للواقع غير ممكن الزوال والقيد الأول جنس يشتمل على الظن أيضا والثاني يخرج الظن والثالث يخرج الجهل والرابع يخرج اعتقاد المقلد المصيب وعند أهل الحقيقة رؤية العيان بقوة الإيمان لا بالحجة والبرهان وقيل بمشاهدة الغيوب بصفاء القلوب وملاحظة الأسرار بمحافظة الأفكار.

In ordinary language: knowledge accompanied by no doubt. Technically: believing a thing to be thus, together with believing that it can only be thus, in conformity with reality and incapable of cessation. The first qualification is a genus also including opinion; the second excludes opinion; the third excludes ignorance; and the fourth excludes the belief of an imitator who happens to be correct. Among the people of spiritual realization, it is immediate vision through the strength of faith, not through argument and demonstration; or, it is said, witnessing unseen things through purity of hearts and observing mysteries through watchfulness over thoughts.

وقيل هو طمأنينة لقلب على حقيقة الشيء يقال يقن الماء في الحوض إذا استقر فيه.

It is also said to be the heart's tranquillity regarding a thing's reality. Water is said to yaqina in a basin when it settles there.

وقيل اليقين رؤية العيان وقيل تحقيق التصديق بالغيب بإزالة كل شك وريب وقيل اليقين نقيض الشك وقيل اليقين رؤية العيان بنور الإيمان.

وقيل اليقين ارتفاع الريب في مشهد الغيب وقيل اليقين العلم الحاصل بعد الشك.

Other definitions are: immediate vision; realizing assent to the unseen through removing every doubt and uncertainty; the opposite of doubt; and immediate vision through the light of faith.

Also: the disappearance of uncertainty in witnessing the unseen; or knowledge acquired after doubt.

↑ Term directory · Sources · Headword relations

PROVENANCE AND EDITORIAL LIMITS

Dictionary sources

al-Rāghib al-Iṣfahānī [E]

al-Mufradāt fī gharīb al-Qurʾān · المفردات في غريب القرآن

before Ibn Rushd; traditionally d. 502 AH / 1108 CE (date disputed) · 6 selected complete articles.

Al-Rāghib al-Iṣfahānī, al-Mufradāt fī gharīb al-Qurʾān, in the digital transcription of the edition edited by Ṣafwān ʿAdnān al-Dāwūdī, reproduced at Arabic-keyboard.info. Exact root headwords identify the articles. Modern editorial introductions, footnotes and verse-number labels are distinguished from the historical author's wording; the English translations here are new.

Full historical root articles in a digital transcription, not a new manuscript collation.

Source ↗

al-Muṭarrizī [L]

al-Mughrib fī tartīb al-Muʿrib · المغرب في ترتيب المعرب

d. 610 AH / 1213 CE · 3 selected complete articles.

Al-Muṭarrizī, al-Mughrib fī tartīb al-Muʿrib; digital transcription cited by root. A print pagination is not asserted where absent from the consulted transcription.

Complete root articles checked to the following headword in the continuous digital text; not independently collated against a manuscript.

Source ↗

Ibn Manẓūr [L]

Lisān al-ʿArab · لسان العرب

d. 711 AH / 1311 CE · 1 selected complete article.

Ibn Manẓūr, Lisān al-ʿArab, root s-b-r, vol. 7, pp. 108–109 in the pagination displayed by Islamweb. The online article is reproduced once, not twice from its unvowelled and vowelled display variants. A particular printed imprint is not asserted from that web pagination alone.

Complete root article, including non-technical senses, reports and poetic witnesses; a difficult final verse remains explicitly marked.

Source ↗

Aḥmad b. Muḥammad al-Fayyūmī [L]

al-Miṣbāḥ al-munīr fī gharīb al-Sharḥ al-kabīr · المصباح المنير في غريب الشرح الكبير

d. c. 770 AH / 1368–69 CE · 4 selected complete articles.

Al-Fayyūmī, al-Miṣbāḥ al-munīr fī gharīb al-Sharḥ al-kabīr; Wikisource transcription, cited by letter and root. Printed pagination and a particular imprint are not asserted where the consulted transcription supplies neither. Each selected root is reproduced through the next root heading.

Full root articles in a digital transcription, with new English translations. Vocalization follows that witness; no independent manuscript collation is claimed.

Source ↗

al-Sharīf al-Jurjānī [L]

Kitāb al-Taʿrīfāt · كتاب التعريفات

d. 816 AH / 1413 CE · 113 selected complete articles.

ʿAlī b. Muḥammad al-Sharīf al-Jurjānī, Kitāb al-Taʿrīfāt. Beirut: Dār al-Kutub al-ʿIlmiyya, first edition, 1403/1983. Digital witness: OpenITI, Shamela0007312-ara1. The separate JK000768-ara1 witness and Wikisource reproduction are comparison controls where expressly noted. Entries identified by an online entry number instead of a printed page use the separately cited Islamicbook transcription. Their numbering is that witness's numbering, not an invented page reference. Punctuation and spacing are editorially regularized.

Historical Arabic source; digital transcription, not fresh manuscript collation.

Source ↗ · Digital witness ↗

Attributed to Jalāl al-Dīn al-Suyūṭī [L]

Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm · معجم مقاليد العلوم في الحدود والرسوم

attributed to al-Suyūṭī (d. 911 AH / 1505 CE) · 8 selected complete articles.

Muʿjam maqālīd al-ʿulūm fī al-ḥudūd wa-l-rusūm, attributed to al-Suyūṭī. Cairo: Maktabat al-Ādāb, 1424/2004. Digital witness: OpenITI, Shamela0007039-ara1. Articles are cited by their numbered entries; the historical attribution is reported, not independently established. Folio markers and modern editorial notes are not part of the quoted definitions.

Complete numbered definitions checked to the following numbered article in the digital witness.

Source ↗

ʿAbd al-Raʾūf al-Munāwī [L]

al-Tawqīf ʿalā muhimmāt al-taʿārīf · التوقيف على مهمات التعاريف

d. 1031 AH / 1622 CE · 19 selected complete articles.

ʿAbd al-Raʾūf al-Munāwī, al-Tawqīf ʿalā muhimmāt al-taʿārīf. Cairo: ʿĀlam al-Kutub, first edition, 1410/1990. Digital full-text reproduction at Arabic-keyboard.info; articles identified by their exact headwords. Modern introductory matter and modern editorial bibliographical footnotes are not represented as the author's articles.

Historical Arabic text in a modern digital transcription; individual transcription difficulties are marked.

Source ↗

Muḥammad ʿAlī al-Tahānawī [L]

Kashshāf iṣṭilāḥāt al-funūn wa-l-ʿulūm · كشاف اصطلاحات الفنون والعلوم

compiled in the 12th AH / 18th CE century · 3 selected complete articles.

Muḥammad ʿAlī al-Tahānawī, Kashshāf iṣṭilāḥāt al-funūn wa-l-ʿulūm, ed. ʿAlī Daḥrūj. Beirut: Maktabat Lubnān Nāshirūn, 1996. Historical Arabic articles as transcribed by The Arabic Lexicon; modern English/French headword labels and modern editorial footnotes are excluded from the historical article, not silently attributed to al-Tahānawī. Exact article URLs identify the witnesses used.

Historical technical dictionary; full selected Arabic headword articles with new English translations.

Source ↗

Text and translation

The Darūrī text linked from this companion follows the scholarly reading edition: the al-ʿAlawī 1994 base, compared with Bou Akl's printed 2015 edition, French translation and apparatus. The Escorial codex has not been independently inspected. The authorial completion in 552 AH and copyist's notice of 606 AH are distinct.

The historical authors' definitions, examples and doctrinal positions are translated as evidence, not endorsed as universally accepted accounts. A Ḥanafī distinction is not silently generalized to every school. Multiple senses and apparently extraneous examples remain where part of the selected article.

Modern website labels, menus, editorial bibliographical footnotes and translations into other European languages are not attributed to the historical authors.

Scope remains selected-source coverage, not an exhaustive concordance of every relevant lexicon. In particular, this release does not supply a complete Tāj al-ʿArūs article set, nor all Kashshāf or Lisān articles for all 153 terms. Some compounds have only clearly marked related-headword evidence. The audit below records those relations so that numerical coverage cannot conceal them.

Headword-relation audit

The 153 dossiers are listed in Arabic alphabetical order. “Exact” refers to the source headword, not to an assertion that all of its senses occur in Ibn Rushd. Any other relation is stated explicitly. Full texts are printed once; links may legitimately point to an article elsewhere in the appendix.

Glossary term	Complete articles and relation
ibāḥa	J-ibaha · ibāḥa: exact headword
ibdāl / tabdīl	J-ibdal · ibdāl: exact headword
ijāza	J-munawala · munāwala: related hadith-transmission procedure; not an ijāza headword S-ijaza · ijāza: exact headword
ijtihād	J-ijtihad · ijtihād: exact headword
ijzāʾ	U-jaza · j-z-ʾ: complete root article explicitly treating sufficiency and discharge S-ijza · ijzāʾ: exact headword
ijmāʿ	J-ijma · ijmāʿ: exact headword
adāʾ	J-ada · adāʾ: exact headword
idhn	J-idhn · idhn: exact headword
irāda	J-irada · irāda: exact headword
istithnāʾ	M-istithna · istithnāʾ: exact headword
istiḥsān	J-istihsan · istiḥsān: exact headword
istidlāl	J-istidlal · istidlāl: exact headword
istiṣḥāb	J-istishab · istiṣḥāb: exact headword
istiṣlāḥ	K-maslaha · maṣlaḥa: related technical article: unrestricted interests are expressly discussed under maṣlaḥa, not a separate istiṣlāḥ headword
istiʿāra	J-istiara · istiʿāra: exact headword
istiqrāʾ	J-istiqra · istiqrāʾ: exact headword
ishtirāk	J-mushtarak · al-mushtarak: derived adjectival headword for lexical sharedness
aṣl	J-asl · aṣl: exact headword
uṣūl al-fiqh	J-usul-fiqh · uṣūl al-fiqh: exact headword
iqrār	J-iqrar · iqrār: exact headword
imkān	J-imkan · imkān: exact headword
bāṭil / buṭlān	J-batil · bāṭil: exact headword
barāʾa aṣliyya	R-bara · baraʾa: complete root article; technical compound is not an independent headword
burhān	J-burhan · burhān: exact headword R-burhan · bariha / burhān: full lexical root article containing the exact technical noun burhān
bayān	J-bayan · bayān: exact headword
taʾthīm	M-ithm · al-ithm: complete lexical headword underlying taʾthīm; not a substitute for the juristic doctrine
taʾwīl	J-tawil · taʾwīl: exact headword
takhṣīṣ	M-takhshis · takhṣīṣ: exact headword
tarjīḥ	J-tarjih · tarjīḥ: exact headword
taṣdīq	J-tasdiq · taṣdīq: exact headword

Glossary term	Complete articles and relation
taṣwīb	J-sawab · al-ṣawāb: complete related headword, with the juristic correctness/error distinction
taʿāruḍ	J-muarada · al-muʿāraḍa: complete related headword: dialectical counter-opposition
taʿdīl	M-taadul · al-taʿādul: complete related headword containing an explicit definition of witness accreditation
taqlīd	J-taqlid · taqlīd: exact headword
taklīf	J-taklif · taklīf: exact headword
tamthīl	J-tamthil · tamthīl: exact headword
tanbīh	J-tanbih · tanbīh: exact headword
tawātur	J-khabar-mutawatir · khabar mutawātir: expanded named report-type article J-tawatur · tawātur: exact headword
tawaqquf	F-waqf · waqf: full root article expressly defining tawaqqafa and deferred judgement, not a separate technical tawaqquf article
tawqīf	U-waqafa · w-q-f: complete lexical root article with explicit tawqīf as instruction
jarḥ	M-jarh · jarḥ: exact headword
juzʾī	J-juzi-haqiqi · juzʾī ḥaqīqī: specified technical headword J-juzi-idafi · juzʾī iḍāfī: specified technical headword
jins	J-jins · jins: exact headword
ḥākim	K-hakim · ḥākim: exact ḥākim article, which expressly defines maḥkūm fīhi, maḥkūm ʿalayhi and mukallaf; not three invented separate articles
ḥujja	J-hujja · ḥujja: exact headword
ḥadd	J-hadd · ḥadd: exact headword
ḥadīth	M-sahih · ṣaḥīḥ: complete adjacent ṣaḥīḥ articles: legal, grammatical and hadith senses, individually distinguished
ḥarām	M-haram · ḥarām: exact headword
ḥaraj	M-haraj · ḥaraj: exact headword
ḥiss	J-ihsas · iḥsās: corresponding act, not identical faculty headword
ḥusn / qubḥ	J-husn · ḥusn: exact headword
ḥaṣr	J-hasr · ḥaṣr: exact headword
ḥaqīqa	J-haqiqa · ḥaqīqa: exact headword
ḥukm	J-hukm · ḥukm: exact headword
khāṣṣ	J-khass · khāṣṣ: exact headword
khabar	J-khabar · khabar: exact headword
khabar al-wāḥid	J-khabar-wahid · khabar al-wāḥid: exact headword
khaṭaʾ	J-khata · khaṭaʾ: exact headword
khiṭāb	R-khutb · khaṭaba: complete root article; technical compound is not an independent headword
dalāla	J-dalala · dalāla: exact headword
dalīl	J-dalil · dalīl: exact headword
dalīl al-khiṭāb	J-mafh-mukhalafa · mafhūm al-mukhālafa: named technical counterpart
rāwī	U-rawa · r-w-y: complete root article, including the report-transmitter sense
rukhṣa	J-rukhsa · rukhṣa: exact headword

Glossary term	Complete articles and relation
ziyāda	M-ziyada · al-ziyāda: exact headword
sibār	L-sabr · sabr / sibr / sibār: full root article; includes sibār explicitly
sabab	J-sabab · sabab: exact headword
sabr wa-taqsīm	L-sabr · sabr / sibr / sibār: full root article; includes sibār explicitly
sunna	J-sunna · sunna: exact headword
shubha	J-shubha · shubha: exact headword
sharṭ	J-shart · sharṭ: exact headword
sharʿ	J-shar · sharʿ: exact headword
ṣaḥīḥ / ṣiḥḥa	M-sihha · ṣiḥḥa: exact headword M-sahih · ṣaḥīḥ: complete adjacent ṣaḥīḥ articles: legal, grammatical and hadith senses, individually distinguished
ṣalāḥ	M-salah · ṣalāḥ: exact headword
ṣināʿa	J-sinaa · ṣināʿa: exact headword
ṣīgha	F-sawgh · ṣawgh: full root article expressly defining ṣīgha and ṣīghat al-qawl
ḍidd	J-diddan · ḍiddān: dual form of headword
ḍarūra	J-darura · ḍarūra: exact headword
ḍarūrī	M-daruri · ḍarūrī: exact headword M-badihi · badīhī: separate related headword explicitly distinguishing senses of necessary knowledge
ḍamīr	J-mudmar · muḍmar: alternative grammatical headword
ṭaliba	F-talab · ṭalab: full root article expressly distinguishing singular ṭaliba from plural ṭalaba
ẓāhir	J-zahir · ẓāhir: exact headword
ẓann	J-zann · ẓann: exact headword M-zann · ẓann: exact ẓann article explicitly discussing preponderance; not an independent compound ghalabat al-ẓann headword
ʿāmm	J-amm · ʿāmm: exact headword
ʿibāda	J-ibada · ʿibāda: exact headword
ʿadāla	J-adala · ʿadāla: exact headword
ʿurf	J-urf · ʿurf: exact headword
ʿazīma / ʿazm	J-azima · ʿazīma: exact headword
ʿaql	J-aql · ʿaql: exact headword
ʿilm	J-ilm · ʿilm; ʿalam (homograph): exact headword
ʿilla	J-illa · ʿilla: exact headword
ʿumūm	J-umum · ʿumūm: exact headword
ʿumūm al-balwā	F-baliya · baliya / balāʾ: complete lexical root article defining balwā; NOT an exact headword for the compound ʿumūm al-balwā
ghāya	J-ghaya · ghāya: exact headword
ghalabat al-ẓann	M-zann · ẓann: exact ẓann article explicitly discussing preponderance; not an independent compound ghalabat al-ẓann headword
farḍ	J-fard · farḍ: exact headword
farʿ	J-far · farʿ: exact headword
furūʿ	J-far · farʿ: singular headword underlying the plural glossary form

Glossary term	Complete articles and relation
fasād	J-fasad · fasād: exact headword
fiʿl	J-fil · fiʿl: exact headword
fiqh	J-fiqh · fiqh: exact headword
qurʾ	R-qara · qaraʾa: complete root article; technical compound is not an independent headword
qarīna	J-qarina · qarīna: exact headword
qaḍāʾ	J-qada · qaḍāʾ: exact headword
qaṭʿī	S-yaqiniyyat · yaqīniyyāt: related epistemic category, not the adjective qaṭʿī
qiyās	J-qiyas · qiyās: exact headword J-qiyas-dabita · qiyās: exact headword
qiyās al-shabah	K-shabah · shabah: complete technical shabah article explicitly treating analogy of resemblance
karāha	J-makruh · makrūh: derived adjectival headword for the legal category
kasb / iktisāb	J-kasb · kasb: exact headword
kalām	J-kalam · kalām: exact headword
kullī	J-kulli-haqiqi · kullī ḥaqīqī: specified technical headword J-kulli-idafi · kullī iḍāfī: specified technical headword
kināya	J-kinaya · kināya: exact headword
lafẓ	J-lafz · lafẓ: exact headword
mubāḥ	M-mubah · mubāḥ: exact headword
mutawātir	J-khabar-mutawatir · khabar mutawātir: expanded named report-type article J-mutawatir · mutawātir: exact headword
mithāl	J-mithal · mithāl: exact headword
majāz	J-majaz · majāz: exact headword
mujtahid	J-mujtahid · mujtahid: exact headword
mujmal	J-mujmal · mujmal: exact headword
maḥkūm ʿalayhi	K-hakim · ḥākim: exact ḥākim article, which expressly defines maḥkūm fīhi, maḥkūm ʿalayhi and mukallaf; not three invented separate articles
maḥkūm fīhi	K-hakim · ḥākim: exact ḥākim article, which expressly defines maḥkūm fīhi, maḥkūm ʿalayhi and mukallaf; not three invented separate articles
mukhayyil	S-mukhayyilat · mukhayyilāt: plural headword; logical/poetic sense S-ikhala · ikhāla: related technical headword K-maslaha · maṣlaḥa: related technical discussion of ikhāla and mukhayyila within the complete maṣlaḥa article
mudrak	R-darak · d-r-k: complete root article on reaching and apprehension; not an exact technical mudrak headword
mursal	J-mursal · mursal: exact headword
musnad	J-musnad · musnad: exact headword
mashhūrāt	S-mashhurat · mashhūrāt: exact headword
maṣlaḥa	K-maslaha · maṣlaḥa: exact headword
muṭlaq	J-mutlaq · muṭlaq: exact headword
maʿqūl	J-maqulat-ula · maʿqūlāt ūlā: explicitly specified kind of headword J-maqulat-thaniya · maʿqūlāt thāniya: explicitly specified kind of headword J-maqul · maʿqūl: exact headword

Glossary term	Complete articles and relation
maʿlūl	J-malul-akhir · maʿlūl akhīr: specified kind, not exact unqualified headword
maʿnā	J-maani · maʿānī: plural headword; explicit internal discussion J-mana · maʿnā: exact headword
mafhūm	J-maani · maʿānī: plural headword; explicit internal discussion J-mafh-mukhalafa · mafhūm al-mukhālafa: named technical counterpart J-mafh-muwafaqa · mafhūm al-muwāfaqa: specified kind of concept M-mantuq · manṭūq: exact manṭūq article, including its explicit contrast with mafhūm
muqaddima	J-muqaddima · muqaddima: exact headword
maqṣūd	R-qasd · qaṣada: complete root article; technical compound is not an independent headword
muqayyad	J-muqayyad · muqayyad: exact headword
makrūh	J-makruh · makrūh: exact headword
mukallaf	K-hakim · ḥākim: exact ḥākim article, which expressly defines maḥkūm fīhi, maḥkūm ʿalayhi and mukallaf; not three invented separate articles
mulāʾim	M-munasib · munāsib: exact munāsib headword; mulāʾim occurs in the definition, not as an independent article S-mulaim · mulāʾim: exact headword
munāsib	M-munasib · munāsib: exact munāsib headword; mulāʾim occurs in the definition, not as an independent article
munāwala	J-munawala · munāwala: exact headword
mandūb	J-mandub · mandūb: exact headword
manṭūq	M-mantuq · manṭūq: exact manṭūq article, including its explicit contrast with mafhūm
muʾawwal	J-muawwal · muʾawwal: exact headword
nadb	J-mandub · mandūb: derived adjectival headword for the legal category
naskh	J-naskh · naskh: exact headword
naṣṣ	J-nass · naṣṣ: exact headword
naẓar	M-nazar · naẓar: exact headword
naql	J-manqul · al-manqūl: complete related headword: lexical transfer, not report transmission M-athar · al-athar: complete related headword explicitly defining report transmission
nahy	J-nahy · nahy: exact headword
niyya	S-niyya · niyya: exact headword
wājib	J-wajib · wājib: exact headword
waḍʿ	J-wad · waḍʿ: exact headword
yaqīn	J-yaqin · yaqīn: exact headword